

CONSTABLE'S MISCELLANY
OF
Original and Selected Publications
IN THE VARIOUS DEPARTMENTS
OF
LITERATURE, SCIENCE & THE ARTS.
VOL. LIII.

LIFE OF SIR WILLIAM WALLACE, VOL. I.



Drawn by A. Nasmyth.

Engraved by W. Miller

WALLACE'S TREE - TORWOOD.

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Title: Life of Sir William Wallace of Elderslie, Vol. 1 (of 2)

Author: John D. Carrick

Release date: December 14, 2014 [eBook #47661]

Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/47661

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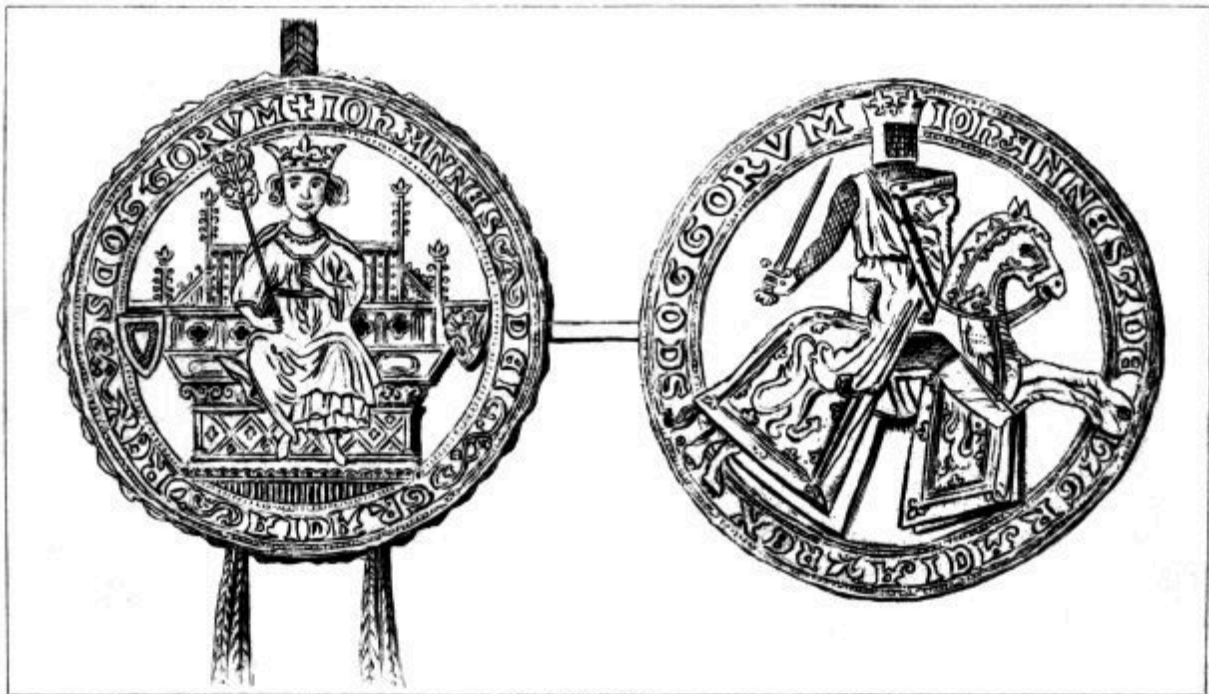
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O F
E L D E R S L I E .

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PREFACE.

In presenting to the British Public the Life of a man, whose name has been for ages the *slogan*, or *cri de guerre*, when the liberty of his country was in danger, few words may suffice in the way of Preface.

The unprovoked aggression of England on the freedom of Scotland, produced, in the latter country, one of those grand national convulsions, which seldom fail to call forth some master-spirit from obscurity. Owing to circumstances, however, connected with the unsettled and turbulent state of the times, the transcendent talents of the Knight of Elderslie had been, among his contemporaries, more a subject for grateful admiration, than historical record; and, in consequence, no small degree of fiction has been mixed up with his story, while his real achievements have become in a manner obscured by their own undefined greatness.

The Proprietors of Constable's Miscellany, conceiving that a work exclusively devoted to the elucidation of the occurrences in the life and times of the Deliverer of Scotland, would be an important addition to our stock of historical knowledge, the writer was requested to undertake the present work, having become partially conversant with the subject, while engaged in drawing up a Life of Wallace, some years ago,¹ for the use of juvenile readers.

In venturing before the Public as the biographer of the Guardian of Scotland, the Author is not unconscious of the difficulties that surround him. The subject is one with which his countrymen in all ranks of life have been from their early years more or less familiar; and are all qualified, to a certain extent, to become his critics. With so numerous a host of reviewers, the errors he may have committed have no chance to escape detection, while the strong partiality with which such readers are imbued, will no doubt be occasionally offended, when they find the tame realities of historical evidence substituted for the more pleasing details of romantic and

poetical embellishment. With another class of readers, whose cooler temperament and neutralized feelings may enable them to view the narrative of our hero's transactions through a different medium, the writer runs an equal hazard of being charged with overstepping the limits of probability. Thus circumstanced, the hope of his production meeting any thing like general approbation becomes extremely faint, and excites the apprehension that he will have to measure his success only by the mildness with which his labours may be censured.

It remains only to be added, that to JOHN STRACHAN, Esq. of Thornton, Stirlingshire, (late of Woodside), the Publishers lie under deep obligation for the kind manner in which he furnished information connected with Wallace's Oak, and for the sketch of the tree itself, after a painting by Nasmyth, executed in 1771, which illustrates the present Volume. The building, represented in the back ground, is the ruins of Tor Castle, where the unfortunate James III. is supposed to have passed the night previous to the fatal battle of Sauchie.

March 1830.

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INTRODUCTION.

There is no portion of the history of Scotland more embarrassing to modern writers, than the period which relates to the life and achievements of Wallace.

Having been long since anticipated in all the leading details respecting him by Henry the Minstrel, our historians in general seem nervous in approaching the subject; and have either contented themselves with such materials as the old English writers and certain monastic chronicles have furnished, or have deliberately borrowed, without the grace of acknowledgment, the facts recorded by an author they affected to despise, as one whom the learned were not agreed to admit within the pale of respectable authority. This treatment, however, we conceive to be not only unfair, but rather discourteous in those who may have extended their suffrages to writers guilty of much greater aberrations from historical veracity than any which are chargeable against him. It is true, that the works of those writers are in Latin; but still, we do not see that a great falsehood, told in the classical language of ancient Rome, should be entitled to a larger portion of public faith than a lesser one set forth in the more modern *patois* of Scotland.

When Walsingham, in describing the battle of Falkirk, tells us that the sharpness and strength of the English arrows were such, that “they thoroughly penetrated the men-at-arms, obscured the helmets, perforated the swords, and overwhelmed the lances”—(*ut ipsos armatos omnino penetrarent, cassides tenebrarent, gladios perforarent, lanceas funderent*)—and another learned author,² in narrating the same battle, makes the loss of the Scots in killed, wounded and prisoners, amount to more in number than were disposed of in any one of the most sanguinary conflicts between the Roman and Barbaric worlds,—we would naturally expect, that the indulgence which can readily attribute such outrages on our credulity, to the style of the age in which the writers lived, might also be extended to our

Minstrel, even when he describes his hero “like a true knight-errant, cleaving his foes through brawn and bayne down to the shoulders.”

It is said by Lord Hailes, in speaking of Henry, that “he is an author whom every historian copies, yet no historian but Sir Robert Sibbald will venture to quote.” This, though intended as a sneer by the learned annalist, may be viewed as complimentary to the candour of Sir Robert, who, while he avails himself of the facts related by another, is not above acknowledging the obligation. Considering the situation of this unfortunate but ingenious man, no author had ever a stronger claim on the indulgence of his readers. Blind from his birth, he was deprived of the advantage of correcting the manuscript of his work, while his poverty prevented him from procuring an amanuensis capable of doing justice to his talents. Hence we find a number of errors and omissions, that from the ease with which they can be rectified, appear evidently the faults of transcribers. Succeeding historians, far from making the allowance which his case demanded, have acted towards him with a degree of peevish hostility exceedingly unbecoming. Because his dates do not always correspond with the transactions he records, he has been termed a “*liar*” a “*fabulist*,” “*a man blind in more respects than one*;” with other appellations no less unworthy of themselves than unmerited by him. When it is considered that there is no circumstance connected with Wallace mentioned by subsequent writers, but what had already found a place in the work of the Minstrel;—that they had no other story to give than what he had previously given;—and that they must either repeat what he had already stated, or remain silent: we are led to conclude, that he could not have so effectually pre-occupied the ground, without having very complete information regarding the subject of his biography. This information, he tells us himself, was derived from a memoir written in Latin by John Blair, assisted by Thomas Gray, the former chaplain to Wallace, and the latter parson of Liberton, both eye-witnesses of the transactions they relate. It follows, therefore, that Scottish authors, having obtained, in a great measure, their information respecting Wallace from the pages of Blind Harry, their characters, as historians, become seriously involved with the fate of him whom they have so unceremoniously vituperated. Under these circumstances, it appears a very proper subject of inquiry, to ascertain whether he has, or has not executed his task with becoming fidelity. Were the memoir of Blair extant, this matter could very soon be determined; but having long since disappeared, doubts

are now entertained of its ever having been in existence. Sir Robert Sibbald has published a few fragments, entitled *Relationes quædam Arnaldi Blair, Monachi de Dumfermelini, et Capellani D. Willielmi Wallas, Militis 1327*. Though these are merely transcripts from the Scotichronicon of Fordun, yet some have supposed them to have been the groundwork on which Blind Harry founded his poem. This opinion, however, can scarcely be maintained save by those who have only seen the title; the most superficial inspection will be sufficient to induce a very different conclusion. Arnold Blair may have, on some occasion, officiated as chaplain to Wallace, and, proud of the distinction, in imitation of his namesake, may have made the ill-arranged excerpts from Fordun, for the purpose of handing down his own name in connexion with that of the illustrious defender of his country: but the confident manner in which Henry refers to *his* author, as evidence of facts which are not alluded to, even in the most distant manner, in the work of Arnold, shows the impossibility of its being the foundation of his narrative; for we cannot suppose that an author, wishing to pass off a tissue of fables for a series of truths, would act with so much inconsistency, as to court detection by referring for authority to a quarter where he was sure of finding none. When Henry introduced his translation to the public, the approbation with which it was received may very justly be viewed as the test of its correctness, there being no scarcity of men in the country capable of collating it with the original, and detecting the imposition, if any existed; and it may therefore reasonably be inferred, that the excellency of the translation was such as to supersede the original; being, from its language, more accessible to all classes than the other, which, on that account, was more likely to go into desuetude, and ultimately to disappear.

The character of Minstrel which has been attached to Henry,—joined to the vulgar and disgusting translation of his work into modern Scotch, by Hamilton of Gilbertfield,—has, it is presumed, injured his reputation as a historian, more than any deviation he has made from the authentic records of the country. No other work of his exists, or is known to have existed, which might entitle him to rank as a minstrel; but being called upon—and possibly compelled by circumstances—to recite his translation in the presence of the great, he received a minstrel's reward, and became, perhaps improperly, confounded with the profession.

Had Barbour, Wyntown, Langtoft and other authors, who wrote their chronicles in rhyme, been quoted by subsequent writers as minstrels, it would no doubt have weakened their authority as historians. These men, however, professed to give, though in verse, a faithful register of the transactions of their country. Henry seems to have had only the same object in view; and thus endeavours to impress the reader with the fidelity of the translation, and the disinterestedness of his motives:—

“Off Wallace lyff quha has a forthar feill,
May schaw furth mair with wit and eloquence;
For I to this haiff don my diligence,
Eftyr the pruff geyffyn fra the Latyn buk,
Quhilk Maister Blayr in his tym wndyrtuk,
In fayr Latyn compild it till ane end;
With thir witnes the mar is to commend.
Byschop Synclar than lord was off Dunkell,
He gat this buk, and confermd it him sell
For werray true; thar off he had no dreid,
Himselff had seyn gret part off Wallace deid.
His purpos was till haue send it to Rom,
Our fadyr off kyrk tharon to gyff his dom.
Bot Maister Blayr, and als Schir Thomas Gray,
Eftir Wallace thai lestit mony day,
Thir twa knew best of gud Schir Wilyhamys deid,
Fra sexteyn yer quhill nyne and twenty yeid.
Fourty and fyve off age, Wallace was cauld,
That tym that he was to [the] Southeroun sauld.
Thocht this mater be nocht till all plesance,
His suthfast deid was worthi till awance.
All worthi men at redys this rurall dyt,
Blaym nocht the buk, set I be wnperfytt.
I suld hawe thank, sen I nocht trawaill spard;
For my laubour na man hecht me reward;
Na charge I had off king nor othir lord;
Gret harm I thocht his gud deid suld be smord.
I haiff said her ner as the process gais;
And fenyeid nocht for frendschip nor for fais.
Costis herfor was no man bond to me;
In this sentence I had na will to be,
Bot in als mekill as I rahersit nocht
Sa worthely as nobill Wallace wrocht.
Bot in a poynt, I grant, I said amyss,
Thir twa knyghtis suld blamyt be for this,
The knyght Wallas, off Cragg  richtwyss lord,
And Liddaill als, gert me mak [wrang] record.

On Allyrtoun mur the croun he tuk a day,
To get battaill, as myn autour will say.
Thir twa gert me say that ane othir wyss;
Till Maister Blayr we did sumpart off dispyss.”

Buke Eleuenth, v. 1410–1450.

What more can an author say to satisfy his reader of the purity of his intentions, as well as of the genuineness of the source from whence he has drawn his materials? Without reward, or promise of reward, he appears to have undertaken his task from the purest feelings of patriotism, and finished it before he experienced any of the fostering influence of patronage. That the transactions he relates are substantially correct, or at least such as were generally believed to be so at the time he wrote, we have the evidence of one nearly cotemporary. Major thus expresses himself:³ “Henry, who was blind from his birth, in the time of my infancy composed *the whole Book of William Wallace*; and committed to writing in vulgar poetry, in which he was well skilled, the *things that were commonly related of him*. For my own part, I give only partial credit to writings of this description. By the recitation of these however, in the presence of men of the highest rank, he procured, as he indeed deserved, food and raiment.” Though Major says nothing of Blair’s *Memoirs*, yet he frees Henry from the charge of relating any thing that was not previously believed by his countrymen.

Thomas Chambers, in his *History of the House of Douglas*, says, “These things fell out in the year 1298; which passages, as the most part of actions done in the time of Sir William Wallace, are either passed over, or slenderly touched by the writers of our chronicles, although the truth thereof be unquestionable, being related by those eyewitnesses who wrote the diary or history of Sir William Wallace in Latin, which is paraphrastically turned into English rhyme, the interpreter expressing the main body of the story very truly; howsomever, missing or mistaking some circumstances, he differeth therein from the Latin.”⁴ From the manner in which this is expressed, it may be supposed that Chambers had seen the original. If this could be established, his testimony would be of considerable importance. Nicholson, Archdeacon of Carlisle, in his *Scottish Historical Library*, says, that the names of the great northern Englishmen, whom Henry represents Wallace as having been engaged with, such as Sir Gerard Heron, Captain Thirlwall, Morland, Martindale, &c. are still well known on

the borders of Cumberland and Northumberland. The reader may also find, by the Statistical Account of Scotland, that the localities mentioned in the poem, are given with a precision beyond the reach of one labouring under the infirmity of blindness.

The invasion of Lorn by MacFadyan and a horde of Irish, at the instigation of Edward, is a circumstance unnoticed by any historian, save the translator of Blair; and were it not for the undoubted evidence, arising from traditions still preserved among a people who never heard of the work of the Minstrel, it might be considered as the mere creation of his own fancy. But such decided testimony in favour of the correctness of his statement, when taken in connection with the accurate manner in which he has described the advance of Wallace through a country, respecting the intricacies of which he, of himself, could form no idea—the near approach he has made to the Celtic names of the places, which can still be distinctly traced—and the correct description he has given of the grand scene of action on the Awe,—are sufficient to stamp the impress of truth on his narrative, and satisfy any one of the impossibility of a man, situated as he was, ever being able to accomplish it without the diary of an eye-witness.

After the defeat of MacFadyan, Wallace is represented as holding a council or meeting with the chieftains of the West Highlands, in the Priory of Ardchattan. The ruins of the Priory are still to be found on the banks of Loch Etive, a few miles from the scene of strife; and among the rubbish, as well as in the neighbouring grounds, coins of Edward I. have at different times been dug up, in considerable quantities. So late as March 1829, the following paragraph appeared in the Glasgow Herald:—"In digging a grave, a few days ago at Balvodan (or St Modan's), a burial-place in the neighbourhood of the Priory of Ardchattan, Argyllshire, a number of ancient silver coins were found, in a remarkably fine state of preservation. The place where they had been deposited was about four feet below the surface; and they seem to have been contained in an earthen vessel, which mouldered into dust, on exposure to the atmosphere; they were turned up by the shovel, as those who were attending the interment were surrounding the grave, and each of the party present having picked up a few, the rest were, by the Highlanders, returned with the earth to the grave. The coins were struck in the reign of the First Edward, whose name can be distinctly traced on them; and they were probably placed there at the time, when that

monarch had succeeded in getting temporary possession of the greater part of Scotland. In that case they must have lain where they were found for upwards of five hundred years.” The writer had an opportunity of examining a number of these coins on the spot; he found a great many of them to be struck in Dublin, and they seemed below the regular standard. Though numerous discoveries have been made of the coins of this ambitious monarch in other parts of Scotland, yet in the West Highlands they are extremely rare. Neither Edward, nor any of his English generals, ever penetrated so far in that direction. It is, therefore, highly probable, that the above money may have formed part of the contents of the military chest of MacFadyan, which, in that superstitious age, had found its way into the hands of the priesthood.

Although Henry cannot be collated with his original, the truth or falsehood of his narrative may, in part, be ascertained by comparing him with those who preceded him on the same subject. The most reputable of these writers, and those whose characters for veracity stand highest in the estimation of the learned, are John de Fordun, and Andro de Wyntown, both original historians; for, though Wyntown outlived Fordun, he had not an opportunity of seeing his history. With respect to Fordun’s agreement with the Minstrel, the reader has the evidence of Nicholson, Archdeacon of Carlisle, who says, that “Hart’s *edition* of Wallace contains a preface which confirms the whole of it out of the Scoti-Chronicon.”⁵ Wyntown, who finished his history in 1424, being about 46 years before Henry, in alluding to those deeds of Wallace which he had left *unrecorded*, says,

“Of his gud Dedis and Manhad
Gret Gestis; I hard say, ar made;
Bot sá mony, I trow noucht,
As he in-till hys dayis wroucht.
Quha all hys Dedis of prys wald dyte,
Hym worthyd a gret Buk to wryte;
And all thái to wryte in here
I want báthe Wyt and gud Laysere.”

B. viii. c. xv. v. 79–86.

The first couplet may allude to Blair’s Diary, or perhaps to Fordun’s History, which he had no doubt heard of; and, in the succeeding lines, he

doubts that, however much may have been recorded, it must still fall very short of what was actually performed. This is so far satisfactory, from one who lived almost within a century of the time, and who no doubt often conversed with those whose fathers had fought under the banners of Wallace; it is a pity that his modesty, and his want of “gud laysere,” prevented him from devoting more of his time to so meritorious a subject. The first transaction which he has narrated, is the affair at Lanark; but it is evident from what he says, that Wallace must have often before mingled in deadly feud with the English soldiers, and done them serious injury; otherwise, it would be difficult to account for their entertaining towards him the degree of animosity expressed in the following lines:

“Gret Dyspyte thir Inglis men
Had at this Willame Walays then.
Swá thai made thame on á day
Hym for to set in hard assay:”

B. viii. c. xiii. v. 19–22.

Every particular that Wyntown gives of the conflict which ensues, in consequence of this preconcerted quarrel on the part of the English, is detailed in the account of the Minstrel with a degree of correctness, leaving no room to doubt that either the two authors must have drawn their materials from the same source, or that Henry, having heard Wyntown’s version of the story, considered it so near the original as to leave little to be corrected. The language, as will be seen from the following examples, is nearly the same:

“Twelf hundyre nynty yhere and sewyn
Frá Cryst wes borne the Kyng of Hewyn,”

B. viii. c. xiii.

Henry thus enters upon the same subject—

“Tuelff hundreth yer, tharto nynté and sewyn,
Fra Cryst wes born the rychtwiss king off hewyn.”

“*Buke Sext*,” 107, 108.

Wyntown gives the following dialogue, as having taken place between Wallace and an athletic wag belonging to the English garrison of Lanark,

who, when surrounded by his companions, made “a Tyt at hys sword:”

W. “Hald styлле thi hand, and spek thi worde.”

I. “Wyth thi Swerd thow máis gret bost.”

W. “Tharefor thi Dame made lytil cost.”

I. “Quhat caus has thow to were the Grene?”

W. “Ná caus, bot for to make the Tene.”

I. “Thow suld noucht bere sà fare a Knyf.”

W. “Swà sayd the Preyst, that swywyd thi Wyf:
Swà lang he cald that Woman fayr,
Quhill that his Barne wes made thi Ayre.”

I. “Me-thynk thow drywys me to scorne.”

W. “Thi Dame wes swywyd or thow wes borne.”

B. viii. c. xiii. 28–38.

The similarity of Henry’s version is too apparent to be the effect of chance. After a little *badinage*, which does not appear in Wyntown, he says,

“Ma Sotheroune men to thaim assemblit ner.
Wallace as than was laith to mak a ster.
Ane maid a scrip, and tyt at his lang suorde:
‘Hald still thi hand,’ quod he, ‘and spek thi word.’
‘With thi lang suerd thow makis mekill bost.’
‘Tharoff,’ quod he, ‘thi deme maid litill cost.’
‘Quhat causs has thow to wer that gudlye greyne?—’
‘My maist causs is bot for to mak the teyne.’
‘Quhat suld a Scot do with sa fair a knyff?—’
‘Sa said the prest that last janglyt thi wyff;
‘That woman lang has tillit him so fair,
‘Quhill that his child, worthit to be thine ayr.’
‘Me think,’ quod he, ‘thow drywys me to scorn.’
‘Thi deme has beyne japyt or thow was born.’”

“*Buke Sext,*” 141–154.

The parties soon come to blows; and, in the conflict, Wallace cut off the hand of one of his opponents. Wyntown thus takes notice of the circumstance.

“As he wes in that Stowre fechtand,
Frá ane he strak swne the rycht hand;
And frá that Carle mycht do ná mare,
The left hand held fast the Buklare,
And he swá mankyd, as brayne-wode,
Kest fast wyth the Stwmpe the Blode
In-til Willame Walays face:
Mare cumryd of that Blode he was,
Than he was a welle lang qwhile
Feychtand stad in that peryle.”

B. viii. c. xiii. 47–56.

Henry narrates the anecdote with little variation.

“Wallace in stour wes cruelly fechtand;
Fra a Sotheroune he smat off the rycht hand:
And quhen that carle off fechtynge mycht no mar,
With the left hand in ire held a bukлар.
Than fra the stowmpe the blud out spurgyt fast,
In Wallace face aboundandlye can out cast;
In to great part it marryt him off his sicht.”

“*Buke Sext*, 163–169.”

The escape of Wallace by means of his mistress—her murder by order of the sheriff—his return the ensuing night—with the slaughter of the sheriff—are particularly taken notice of by Wyntown. Henry’s translation includes all these occurrences, and only differs by being more circumstantial. The account of the battle of Falkirk agrees in numerous instances. The covenant between Cumming and Bruce, which Henry states to have taken place near Stirling, is corroborated in place and circumstance by Fordun, Wyntown and Barbour. The hanging of Sir Bryce Blair and Sir Ronald Crawford in a barn at Ayr, is confirmed by the last mentioned writer, although he does not descend to particulars.

These, and many other instances may be adduced, to show, that, though Henry or his authority may have occasionally indulged in the marvellous, yet the general outline of his history, and even many of the particulars, are in strict accordance with truth; and the work itself necessarily becomes not only valuable as a depository of ancient manners, but as containing matter, which, if properly investigated, may be useful to the historian. Whether the apocryphal part—and which, it must be allowed, is considerable—ought to be attributed to the fancy of the translator, or if it formed a portion of the original text, we have no means of ascertaining. From the frequent and apparent sincerity, however, with which Henry appeals to his “auctor,” and the value he seems to attach to a faithful discharge of his task, we might be led to infer, that if it were practicable to collate his performance with the memoir of Blair, the rendering of it would be found unexceptionable. Under these circumstances, the writer of the following narrative has not scrupled to avail himself of such statements as appeared entitled to credit; and, though he cannot consider the Minstrel as deserving the same degree of confidence as Wyntown or Barbour, yet, when he finds him consistent and characteristic, he conceives it would be unjust to suspect falsehood in every instance, where he does not happen to be supported by the respectable testimonies already enumerated. That he is more circumstantial than any of the Scottish historians, is easily accounted for, by his attention, or rather that of his author, being engrossed by the actions of one individual. A degree of minuteness is in this case adopted, which would be altogether incompatible with the plan of a general historian.

These remarks it has been deemed necessary to make in defence of one to whom we are indebted for the only original memoir of the greatest hero, and purest patriot, Scotland or any other country ever produced; an author, however, who, instead of having the merits of his work fairly appreciated, has been vilified and abused by those who, in their zeal for establishing new historical creeds, have found it a matter of less labour to *sneer* than to *investigate*.

The sources from whence the present writer has drawn his materials, will, it is hoped, be found such as are generally entitled to credit. Being of opinion that the authors who lived nearest the period under review ought to be best informed respecting the transactions connected with it, he has therefore endeavoured to collate as many ancient Scottish and English

authorities as possible. The biographical notices of such Englishmen as figured in the Scottish wars, are chiefly drawn from the historians of England; conceiving that it belongs to the writers of a country to be best acquainted with the details of its internal and domestic history; but to enumerate the authorities he has consulted, would here be superfluous, as they are duly noted at the proper stages of the narrative.

L I F E
OF
SIR WILLIAM WALLACE.

CHAPTER I.

STATE OF SCOTLAND IN THE THIRTEENTH CENTURY.

The scanty and imperfect records which exist respecting the early state of Scotland, have been a fruitful source of complaint to all writers who have applied themselves to the investigation of her history. Those, however, who would form an estimate of her relative situation and internal resources, by reference to her condition at the time she became allied to England on the accession of James VI., would arrive at very erroneous conclusions on the subject.

That Scotland retrograded under the dynasty of the Stuarts, few, who are conversant with her early history, will be inclined to deny. But, without inquiring how far the incapacity or imprudence of that unfortunate race may have contributed to her decline, the writer will endeavour to arrange a few remarks respecting the above-mentioned period, for the benefit of those readers whose attention may not have been directed to that interesting portion of our annals.

The jurisprudence of Scotland, like that of the other states of Europe, embraced the feudal system in all its degrees of servitude, from the knightly devoirs of the baron, down to the humble and more laborious task of the bondsman, who could be either put to death at the will of his over-lord, or bartered away to the church, for a certain number of masses. Yet though this state of society existed to a considerable extent, there were some privileged classes exempt from its more degrading operation. The most influential of these, as might be expected, were the priesthood, who, as soon as admitted to orders, became emancipated from their temporal bondage.⁶

Merchants and burgesses were of course free. Had this not been the case, those useful classes could not have existed, as the control of the feudal superior over the *adscriptos glebæ*, extended not only to an absolute property in themselves and their offspring, but also over any means they

might accumulate. When a bondsman, therefore, bought a burghage, and remained a year and a day in a burgh, without being molested or claimed by his lord, he became a free man for ever.⁷

Another useful portion of society is to be found in our records under the name of *liberi firmarii*, or free yeomanry, the formation of which, it is presumed, may be attributed in a great measure to the ecclesiastical establishments. The clergy, from their superior education, were wiser, in their generation, than their neighbours; and instead of allowing the produce of their lands to be eaten up by hordes of idle serfs, they preferred letting them at a valuation to industrious free men, whom they encouraged by the immunities which they had it in their power to grant. These free men were generally the descendants of the clergy, the younger sons of gentlemen, or burgesses possessed of small capitals. From this judicious management, the church lands were always the best cultivated, and consequently the most productive in the country.

At an early period the maritime towns were frequented by foreigners; and the productions of almost every clime were to be found in Scotland. By an Act of Alexander III.,⁸ it appears that the trade of the country had rather declined during his minority; the causes of which are stated to have been, captures by pirates, shipwrecks on the coast, storms at sea, and detentions on slight grounds in various ports and places. In order, therefore, to revive the foreign commerce of the kingdom, and give the necessary security and facility to transactions with strangers, all the lieges were strictly prohibited from interfering with the said traffic, except the burgesses at the different ports. This regulation gave confidence to foreigners, by bringing them into immediate contact with a description of men, with whom reciprocal advantages would naturally beget and maintain a friendly understanding.⁹

The consequence of this liberal policy was soon felt; and before the year expired, vessels from all quarters made their appearance in the Scottish harbours, willing to exchange their cargoes for the productions of the country; and in the course of a few years, Scotland exhibited a very flourishing appearance, abounding in money and wealth of every description. The Flemings, whom the English had expelled, found protection and encouragement in Scotland, and were allowed to fortify their

factory at Berwick, called “The Red Hall,” under condition of their defending it to the last extremity against the enemies of that kingdom. This engagement, as will be seen, they afterwards nobly performed.

A number of wealthy Lombards, jealous perhaps of their rivals the Flemings, now made application to the Government of Scotland for permission to erect similar establishments in various parts of the country, particularly at Queensferry and other stations on the Forth,—craving, at the same time, certain spiritual privileges. The States of the kingdom acceded at once to their request, in so far as they regarded trade; but as the Lombards were the vassals of the Pope, they prudently declined mixing up any ecclesiastical matters with affairs of commerce. In the meantime, the unfortunate death of the King put an end to the negotiation. Fordun, who narrates the circumstance, does not condescend on the nature of the spiritual privileges required. It is highly probable, however, that they consisted in their being admitted into Scotland on the same terms which they enjoyed in England and other European states, where they were recognised in a special manner as “the Pope’s merchants,” and were intrusted by him with the receiving and remitting the immense revenues which were drawn from every country where their Holy Father’s supremacy was acknowledged. Trade, with them, was often a secondary consideration. Lending of money, for which they exacted enormous usury, constituted the most lucrative part of their operations; and in these nefarious transactions, it has been conjectured, that they were often commissioned to employ the funds belonging to the Holy See, whose bulls were frequently issued in their favour, when their crimes or rapacity had aroused the vengeance of the governments under which they resided.¹⁰ Their severity to their debtors, made them known by the name of *Caursini*; and they at last became generally obnoxious for their extortion. If the account given of them by Matthew Paris may be relied on, the caution of the Scots respecting the admission of such harpies into the country was highly commendable.

The great mart for foreign commerce in the kingdom, previous to 1296, appears to have been Berwick. The importance of this place was considerable. Even in the reign of Malcolm IV., it possessed more ships than any other town in Scotland, and was exposed, from its wealth, to visits from the piratical fleets of the Norwegians. In 1156, a ship belonging to a citizen, called Knut the Opulent, and having his wife on board, was taken

by Erlend, Earl of Orkney; but it is recorded Knut hired fourteen ships, with a competent number of men, for which he paid one hundred merks of silver, and went in pursuit of the pirate, who had anchored for the night at one of the adjacent islands.¹¹

The wealth and importance of this ancient emporium of commerce, became so great in the reign of Alexander II., as to excite the admiration of contemporary authors, one of whom calls it a “second Alexandria;” and eulogizes the inhabitants for the extent of their donations to religious houses. “But we have,” says Macpherson, in his *Annals of Commerce*, “better authority than the voice of panegyric, for the prosperity of Berwick; as we find the customs of it assigned by King Alexander to a merchant of Gascoigne for 2,197l. 8s. Sterling—a sum equal to 32,961 bolls of wheat, at the usual price of 16 pennies.”¹²

In the years 1283 and 1284, Robert Durham the Mayor, together with Simon Martel, and other good men of Berwick, enacted the *Statute of the Gilt*.

“By c. 20. None but gild-brothers were permitted to buy hides, wool, or wool-fells, in order to sell them again, or cut cloth, except foreign merchants.

“C. 22. 37. and 44. Herrings and other fish, corn, beans, peas, salt, and coals,¹³ were ordered to be sold ‘*at the bray*,’ along side the vessel bringing them, and no where else; and they were not to be carried on shore when the sun was down. Any burgess who was present at a purchase of herrings, might claim a portion of them for his own consumption, at the original cost.

“C. 27. Brokers were elected by the community of the town, and their names registered. They paid annually a tun (*dolium*) of wine for their license;”—a proof that their business must have been lucrative.

“C. 28. No regrator was allowed to buy fish, hay, oats, cheese, butter, or other articles brought into the town for sale, till the bell rung.

“The government of the town was declared to be by a mayor, four provosts (*præpositis*), and twenty-four councillors,” &c.

In 1283, when Edward was preparing for his invasion of Wales, he commissioned one John Bishop, a burgess of Lynne, to purchase merchandise (*mercimonia*) for him in Scotland. This is rather a singular instance of the superiority of the Scots market in those days.¹⁴

The other cities in Scotland, though inferior to Berwick, were not without their proportion of trade. About the same time, the sheriffs of Cumberland and Lancaster were ordered to send people to purchase fish on the west coast of Scotland, and convey them to the *depôt* at Chester; and one Adam de Fulcham was commissioned to furnish 100 barrels of sturgeons, of 500 weight each, 5000 salt fish, also dried fish. The fish of Aberdeen were so well cured, that they were exported to the principal fishing port of Yarmouth.

Four hundred fish of Aberdeen (perhaps salmon), one barrel sturgeons, five dozen lampreys, fifty pounds whale oil, *balen* (for burning, perhaps, during the voyage), and a half last of herrings, constituted the fish part of the provisions put on board of a ship fitted out at Yarmouth for bringing the infant Queen of Scotland from the court of her father, the King of Norway. The fish of Aberdeen cost somewhat under three pennies; stock-fish under one penny each, and the half last of herring 30s.¹⁵

In the reign of Alexander III., the merchants of St Omer's, and partners of the Florentine houses of Pullici and Lambini, had established correspondents in Scotland; and one Richard de Furbur, a trader of the inland town of Roxburgh, had sent factors and supercargoes to manage his business in foreign countries, and various parts of Britain.

The exports of Scotland, at this time, consisted of wool and woolfells, hides, black cattle,¹⁶ fish, salted and cured, horses, greyhounds, falcons, pearls, and herrings, particularly those caught in Lochfyne, which had a preference, and found a ready market among the French, who came and exchanged their wines at a place still known by the name of *French Foreland*; and so much was wine a regular understood barter, that Lochfyne (*Lochfion*), or the Wine Loch, became the only name for one of the most extensive arms of the Western Ocean on the Scottish coast. The pearl was a more ancient branch of traffic, and said to have been in request among the Romans. The Scottish pearl, however, appears to have been partially

superseded in the French market, by the introduction of an article of superior lustre from the East. The goldsmiths of Paris, therefore, made a trade regulation, forbidding any worker in gold or silver to set any Scotch pearls along with Oriental ones, except in large jewels for churches. The greyhounds,¹⁷ however, kept up their price; and the Scottish falcons were only rivalled by those of Norway.

The reader may have some idea of the quantity of wine consumed at the table of Alexander III., from the circumstance of one hundred and seventy-eight hogsheads being supplied in the year 1263, and sixty-seven hogsheads and one pipe furnished the following year. The difference in the quantity of these two years may have been occasioned by the battle of Largs having taken place on the 2d October 1263; after which there would, no doubt, be a considerable influx of barons and their followers to the royal presence, to partake of the festivities incident to the occasion.¹⁸

Horses were, it is said, an article of importation as well as exportation with the Scots in the thirteenth century. Alexander I. rode a fine Arabian; and, in the Norwegian account of Haco's invasion, we are told that a large body of Scottish knights appeared on Spanish steeds, which were completely armed. It is probable, however, that the warriors so mounted might have been the forces of the Temple, as this wealthy order had been some time before established in the country; and its services would no doubt be required on so stirring an occasion.

Asia, in the thirteenth century, was the grand military school for the nations of Europe; and every country having representatives in the armies of the crusaders, the improvements that took place in the art of war were quickly transfused through the various kingdoms of Christendom; and the offensive and defensive armour of each was, therefore, nearly the same. The warriors of Scotland and England assimilated very closely to each other; and, with the exception, perhaps, of the glaive-men and the bill-men of the English, and the Highlanders and Isles-men of the Scots, no material difference could be discovered. The Scots, as well as the English, had "men-at-arms," who fought on foot; and while the latter used the lance, the former were armed with a spear of no common length. These men among the Scots were selected on account of their stature and strength, and were generally placed in the front-rank of the squares, being completely enclosed

in defensive armour, which consisted of steel helmets, a tunic, stuffed with wool, tow, or old cloth, with a habergeon, or shirt of iron rings, the joints defended by plates of the same metal. The stubbornness with which they maintained their ranks may very reasonably be supposed to have acquired for the Scottish phalanx or schiltrons, that high character for firmness and obstinate valour for which it was so long distinguished.

Hauberks of different kinds, with padded or quilted pourpoints, having iron rings set edgewise, were generally worn. In the early part of the reign of Alexander III, chain-mail was first introduced into Scotland by the crusaders; it was formed of four rings, joined to a fifth, and all firmly secured by rivets. Eastern armour, however, had appeared in the country before this period, as we find that Alexander I. had a splendid suit of Arabian manufacture, richly ornamented with jewels, with a spear and shield of silver, which, along with his Arabian steed, covered with a fair mantle of fine velvet, and other rich housings, he dedicated to the patron Saint of Scotland, within the church of St Andrew's, in the early part of the thirteenth century. This was considered so valuable a donation, as to require the sanction of David, the heir-apparent of the throne.¹⁹

Habergeons, of various forms and dimensions, according to the fancy or circumstances of the wearer, prevailed in this age. These were generally covered by a gown or tabard, on the back and front of which the arms of the wearer were emblazoned. Jacked or boiled leather, with quilted iron-work, was also in use for defending the arms and legs. Helmets, bacinets and skullcaps, surmounted, according to the dignity of the person, formed defences for the head; and the shields were either round, triangular, or kite-shape, with the device or arms of the warrior painted upon them in glaring colours. The common soldiers wrapped pieces of cloth about the neck, their numerous folds of which formed an excellent defence from the cut of a sword. The "*Ridir*," or Knight among the Highlanders, differed little in his equipment from those of the same rank in the Low Country. In battle, he was usually attended by a number of *Gall-oglaich*. These were soldiers selected as the stoutest and bravest of the clan, and might be considered as the "men-at-arms" among the Gaël. They were supplied either with the corslet, or the *lùireach mhailleach*, (the habergeon, literally the coat of rings,) and were armed with the Lochaber-axe, the *clamdhmhor*, (great two-handed sword) and sometimes a heavy shelving stone-axe, beautifully

polished, and fixed into a strong shaft of oak.²⁰ In the rear of the *Gall-oglaich*, stood the *Ceatharnaich*, an inferior sort of soldiers, armed with knives and daggers. Their duty was to take, kill, or disable those whom the prowess of the front rank had brought to the ground. The boldest and most dexterous among the *Gall-oglaich* was made squire or armour-bearer to the chief. This man, as well as the rest of his companions, received a larger portion of victuals when they sat at their leader's table; but the part allotted for the armour-bearer was greater than any, and called, on that account, *beath fir*, or, "the Champion's Meal."

Among the Knights of the Isles, the conical-shaped helmet was more in use than any other. From piratical habits, and long intercourse with the Norwegians, their followers in general were better equipped than those of the mainland. The habergeon was very common among them; and from the gown they put over it, being universally dyed of a yellow or saffron-colour, they presented a more uniform appearance than their neighbours.

Besides the lance and spear, the mace, the pike, the *martel de fer* (a sort of iron hammer), the two-handed sword, various forms of daggers, knives, clubs, flails, scythes fixed on poles, bows, cross-bows,²¹ and slings made by a thong fixed to the end of a staff, were in use among the Scots. These slingers used their weapons with both hands. They had no defensive armour, and were generally placed among the archers, who were divided into companies of twenty-five men each.

The military engines in use in attacking or defending castles, or other fortified places, were the *Loup de Guerre*, or war-wolf, a frame formed of heavy beams, with spikes, and made to fall on the assailants in the manner of a portcullis—the *Scorpion*, a large stationary cross-bow of steel, which discharged darts of an uncommon size, and the *Balista*, *Catapulta*, and *Trebuchet*, which were engines of great power in throwing large stones, which were often heated to a high temperature. The *Bricolle* threw large square-headed darts, called *Carreaux*, or *Quarrels*. This engine was used by the Flemings in fortifying their factory at Berwick, called the "Red Hall." The *Espringal* threw darts with brass plates, instead of feathers, to make their flight steady. The *Berfrarium*, an engine also called *Belfredus*, was made of wood, covered with skins to defend it from fire, and was formed like a tower, and of a height to overlook the walls. It consisted of several

stories, and was rolled on wheels towards the object of attack, and filled with archers and spearmen; the latter, under cover of the former, either rushed upon the walls, or fought hand to hand with the besieged. The name was afterwards given to high towers erected in cities, for the purpose of alarming by bells. Hence the origin of the term “Belfrey.” The most expert in the manufacture of these engines of destruction was a monk of Durham. This man supplied the greatest portion of the artillery required for the defence of Berwick.

Respecting the state of the Arts, it would be difficult to give any thing like a circumstantial detail. That various useful mechanical professions were known and prosecuted, there is abundance of evidence to prove; but to what degree of perfection they were brought, is not so clear. That the compass was familiar to the mariners of Scotland at an early age, appears from the manner in which Barbour expresses himself, in the description of Bruce and his companions, who, in crossing from Arran to Carrick in the night-time, steered by the light of a fire upon the shore.

“For thai na *nedill* had, na *stane*,
Bot rowyt always in till ane,
Steerand all tyme apon the fyr.”

Buke Feyrd, 1. 23–25.

According to Wyntown, great attention was paid to agriculture by Alexander III., who fixed that well-known measurement of land called “Ox-gang.” The passage is worth extracting.

“Yhwmen, pewere Karl, or Knáwe,
Dat wes of mycht an Ox til hawe,
He gert that man hawe part in Pluche;
Swá wes corne in his Land enwche;
Swá than begowth, and eftyr lang
Of Land was mesure, ane Ox-gang.
Mychty men, that had mà
Oxyn, he gert in Pluchys gá.
A Pluch of Land eftyr that
To nowmyr of Oxyn mesur gat.
Be that Vertu all hys Land
Of corn he gart be abowndand.
A Bolle of átis pennys foure
Of Scottis Monè past noucht oure;
A boll of bere for awcht or ten
In comowne prys sawld wes then;
For sextene a boll of qwhete;
Or fore twenty the derth wes grete.
This fályhyd frá he deyð suddanly.”

B. vii. c. x. 507–525.

If the beautiful specimens of architecture which were produced in this age may be regarded as furnishing certain criteria for judging of the general state of the arts, we would be warranted in assigning to them a much higher degree of perfection than many of our readers would be inclined to admit. It is, however, difficult to believe, that a nation could have arrived at a high degree of excellence in an art which required a superior knowledge of the principles of science, as well as the greatest refinement in taste, without having made a corresponding proficiency in those of a subordinate character. The exquisite workmanship which adorned the crosses and monuments within the sacred precincts of the Island of Iona, commands at once the admiration and respect of strangers; and the fragments which have escaped the ravages of modern Vandalism, display a neatness of execution in the figures, lettering and embellishments, which may justly claim competition with the productions of the present day. Some, who will not look further than the subsequent poverty and degradation of Scotland, insist that these crosses and monuments are French manufacture, and were

imported from France. This conjecture will not admit of a moment's reflection. They might as well inform us that the Abbey of Melrose, the Cathedral of Glasgow, and all the rest of our sacred edifices, were importations from the same quarter. With more propriety, however, it may be alleged, that the most elegant of our Ecclesiastical structures were erected by a band of ingenious architects and workmen belonging to various countries, who associated together about this time, under the name of Free Masons, and wandered about Europe, offering their services where they expected the most liberal encouragement. Of these men, it is presumed Scotland has a right to claim a fair proportion.

Naval architecture also appears to have met with due encouragement; for we find, in the year 1249, Hugh de Chantillon, Earl of St Paul and de Blois, a powerful vassal of Louis IX., joined the crusaders under that monarch at Cyprus, with fifty knights carrying banners, besides a numerous body of Flemings, on board of a vessel of great strength and dimensions, which, according to Matthew Paris,²² (who calls it a marvellous vessel), was built at Inverness, in the Murray Firth. On this occasion Macpherson remarks,²³ "That a French nobleman should apply to the carpenters of Inverness for a ship, is a curious circumstance; which seems to infer, that they had acquired such a degree of reputation in their profession, as to be celebrated in foreign countries." A large vessel was afterwards built for the Venetians at the same place.²⁴

As the state of literature at this period was nearly on a level all over Britain, the following specimens of the earliest lyrical effusions of the Scottish and English Muse known to exist, may serve the purpose of exciting a more elaborate inquiry.

ANCIENT ENGLISH SONG.

Summer is come in,
Loud sings the cuckoo;
Groweth seed, and bloweth meed,
And springth woods new,
Singth the cuckoo.

Ewe bleateth after lamb,
Loweth after calf, cow;
Bullock starteth, buck verteth,
Merry sings the cuckoo,
Cuckoo, cuckoo,
Well singth the cuckoo,
May'st thou never cease.

ANCIENT SCOTTISH SONG.

“Quhen Alysandyr oure Kyng wes dede,
That Scotland led in Luwe and Le,
Away wes Sons of Ale and Brede,
Of Wyne and Wax, of Gamyn and Gle:
Oure Gold wes changyd in-to Lede.
Cryst, borne in-to Virgynyte,
Succour Scotland and remede,
That Stad is in perplexytè.”

The law of Scotland is known to all to have been that of the Romans. The municipal and commercial departments were under the control of the Court of the “Four Burghs,” which consisted of representatives from Berwick, Edinburgh, Roxburgh and Stirling; to whom all matters connected with commerce, and the rights and privileges of the burgesses, were referred. The Chamberlain’s Court had also a jurisdiction over the burghs in matters respecting the trade and general policy of the kingdom. The chamberlain, in the discharge of his duty, was constrained to make periodical progress through the kingdom, to adjust the standards, weights and measures, kept in the different burghs. It was also his duty to detect any imposition that might be practised by the King’s servants, in exacting more goods at the King’s price (which was lower than the market), than what were required for his service, and thereby making a profit to themselves.

From the regulations of the Chamberlain's Court, it appears that inspectors were appointed to examine and certify, by their seal of office, the quantity and quality of cloth, bread, and casks containing liquors; and that other officers, called "Troners," had the inspection of wool. Salmon fishings also were carefully regulated; and fishing during the night, or while the salmon were not in season, was prohibited.²⁵

The great councils of the nation, from whence all the laws emanated, had their meetings at Scone; and the promulgation of any new act was preceded by the ringing of the great bell of the monastery where the meetings were held. By this practice, "the bell of Scoon" became, in time, a cant expression for the law of the land.²⁶ These councils were almost solely attended by the barons and ecclesiastics of the highest rank. Neither merchants nor burgesses were admitted. Representations, therefore, from the Chamberlain's Court, and the Court of the Four Burghs, afforded the only chance for correcting the mistakes which might arise from the ignorance of these aristocratic legislators.

From the intercourse which existed between Scotland and England during the long interval of peace, previous to the aggression of Edward, the manners, particularly of the higher classes, were in many respects nearly the same. The frequent intermarriages tended, more than any other cause, to render the inhabitants of the two countries familiar with the habits and customs of each other, while both imitated the French in dress and language; and their domestic economy, in numerous instances, also bore a close resemblance.

Though the barons and churchmen among the Scots had no taste for the high-spiced wines so much relished by the English, yet in the viands which graced their festivities, particularly those who held lands in England, there appeared to have been little or no alteration. On great occasions, the seal, the porpoise, and the wild boar, though now banished from the table, never failed to make their appearance. Venison pasties, game, poultry, and baked meats of all descriptions, with fish in endless variety, were common at the tables of the great. Shell-fish, particularly oysters, were much in demand among the ecclesiastics. This is evident from the quantity of shells which are still to be found in digging about the ruins of religious establishments.

The frequent recurrence of those periods when food of an opposite description was forbidden, sufficiently accounts for this profusion.

Among the culinary preparations that were peculiar to Scotland, one known by the name of *Mìr-Mòr*, was held in the highest estimation. This savoury dish always had a place at the royal table; and so much was it a favourite, that in the traditionary songs of the Gaëlic bards, it is mentioned as a viand fit only for a hero, and represented by them to be given as such by Fingal to his friend *Goll Mac-mhairn*, in addition to his *beath fir*, or “champion’s meal,” which he received sitting at the right hand of the royal donor. Of this highly-prized *morceau friand*, minced meat, marrow and herbs, were the principal ingredients; and in this composition it is not difficult to trace the origin of the “Haggies,” a dish still considered national among the Scots.

Were it a fair criterion to estimate the strength and importance of a country by the princely revenues of its church establishment, Scotland, in the thirteenth century, might be considered as holding a very respectable rank among the nations of Europe. The deference which the Roman Pontiffs, on various occasions, paid to the Kings of Scotland, while it displayed their anxiety to preserve, by conciliatory conduct, the spiritual supremacy in the kingdom, also shows that the national or patriotic feelings of the Scottish ecclesiastics were stronger than those ties which connected them with the See of Rome; for, by their well-timed support of the royal authority, the thunders of the Vatican, so terrible in other countries, rolled harmlessly over without distracting the state; and the King was often enabled to contest, and bring to a favourable termination, those differences which arose between him and the Pope, with whose legates he frequently assumed very high ground, not only forbidding them his presence, but even refusing them a safe conduct through his dominions.

To give any thing like a satisfactory account of the revenues of the several ecclesiastical endowments, would occupy a space not consistent with the design of the present work. It may, however, be briefly stated, that the wealth of the church did not altogether arise from her spiritual emoluments. Agriculture, and various branches of traffic, engaged the attention, and increased the riches as well as the luxuries of the priesthood. In 1254 the Cistercian monks were the greatest breeders of sheep in England. Being exempted from duties, their wealth rapidly increased. That

they possessed similar privileges in Scotland, is pretty evident; for in 1275,²⁷ when Bagamont, an emissary from Rome, was sent to levy a tenth on the property of the Scottish church for the relief of the Holy Land, this wealthy order of temporal as well as spiritual shepherds, compounded for the enormous sum of 50,000 merks. By this compromise, the amount of their revenues remained unknown.

The following is part of the live-stock, which (according to an inventory preserved in the chartulary of Newbottle) at one time belonged to the Abbey of Melrose, viz. 325 forest mares, 54 domestic mares, 104 domestic horses, 207 stags or young horses, 39 three-year old colts, and 172 year old colts. Amidst all this profusion of wealth, the serious reader may desire to know how the ceremonials of religion were attended to. From the many jokes which Fordun relates as having taken place among the clergy of his day, we cannot suppose that either the teachers or the people were more devout than their neighbours. An old writer describes the interior of a cathedral as a place where the men came with their hawks and dogs, walking to and fro, to converse with their friends, to make bargains and appointments, and to show their guarded coats; and among the Scots, it is well known, weapons were too often displayed on such occasions.

From what has been stated in the foregoing pages, it is pretty evident that Scotland occupied a more prominent station among the nations of Europe, before the aggression of Edward I. than she has ever done since. The single fact, that Alexander II. mustered and led to the borders of England, in 1244, an army of 100,000 foot, with a well appointed body of cavalry, proves that, at the period under review, when the numerical strength of the two British kingdoms were marshalled, the inferiority of Scotland was by no means very apparent. An army so numerous as that we have mentioned, no subsequent monarch of that kingdom ever had it in his power to bring into the field. On the death of Alexander III. the prosperity of Scotland became eclipsed—anarchy overspread the land—the machiavelism of her arch-enemy prevailed—her ancient glory was trampled in the dust—and commerce deserted a country overrun with the horrors of war. Thus, in the emphatic language of the Bard, “Oure gold wes changyd into lede;” “and,” says MacPherson, “our fishermen and merchants into cut-throats and plunderers, whose only trade was war, and whose precarious and only profit was the ruin of her neighbours.”

CHAPTER II.

ON THE CLAIM OF ENGLAND TO THE FEUDAL HOMAGE OF SCOTLAND.

Scotland, at various periods of her history, has been placed in situations of imminent peril, from the encroachments and invasions of her ambitious neighbour in the South. Misled by an insatiable thirst for conquest, the English monarchs were either prosecuting their views of aggrandizement on the continent of Europe, or disturbing the tranquillity of Britain by endeavouring to subvert the liberty and independence of her states. The Welsh, after being driven from the most fruitful of their domains, continued an arduous, but ineffectual struggle for their freedom, amid the few barren rocks and vallies that remained to them of their ancient and once flourishing kingdom. The Scots, though always numerically inferior to the English, and, from the comparative poverty of their country, deficient in those internal resources which their richer neighbours possessed; yet, from their warlike propensities, their parsimonious habits, and that love of independence which formed so striking a feature in the character of all the tribes of which the nation was composed, were either prepared to guard the frontier of their kingdom, or retaliate an aggression by invading the territories of the enemy. This last measure was the mode of defence they chiefly resorted to; aware that, with the exception of Berwick, the English, without advancing farther into the country than was consistent with their safety, would find no booty equivalent to what could be driven by the Scots from the fertile plains of their more wealthy opponents. These hostilities were frequently embittered by a claim of superiority which the English urged against the crown and kingdom of Scotland; and as the attempts which were made, from time to time, to enforce it, have produced more misery and bloodshed than any other national quarrel that ever existed between the two countries, an inquiry into the nature and foundation of the alleged plea of vassalage, may be of importance in elucidating the conduct of the conflicting parties in the following narrative. In this inquiry, we shall

dispense with any reference, either to “Brute the Trojan” on the one side, or to that no less questionable personage, “Scota, daughter to the King of Egypt,” on the other; and proceed, at once, to the only well-authenticated evidence that exists on the subject.

In the year 1174, William, King of Scotland, dissatisfied with the conduct of Henry II. of England, invaded Northumberland, instigated thereto by a sense of his own wrongs, real or imaginary, and those discontented barons who wished to place the young King on the throne,—an ambitious youth, whom his father had imprudently allowed to be crowned during his own lifetime. While the numerous army of William was spread over the adjacent country, wasting, burning, and slaying with that indiscriminate recklessness peculiar to the age; he, with a chosen band of his followers, besieged the Castle of Alnwick. The devastations committed by the marauding army of the Scots inflamed the minds of the Barons of Yorkshire with a generous indignation; and they determined to exert themselves for the relief of their distressed countrymen. Having congregated at Newcastle to the number of four hundred horsemen, encased in heavy armour; they, though already fatigued with a long journey, pressed forward under the command of Sir Bernard de Baliol; and, by travelling all night, came in sight of the battlements of Alnwick Castle by daybreak. William, it would seem, had been abroad in the fields, with a slender escort of sixty horse; and, mistaking the English for a detachment of his own troops, he was too far advanced to retire, before he became sensible of his danger. “Now it will be seen who are true knights,” said the intrepid monarch, and instantly charged the enemy. His efforts, however, were unavailing; he was soon overpowered, and, along with his companions, made prisoner.

The chivalry of Yorkshire thus secured for their monarch a valuable prize. The magnanimity of Henry, however, was not equal to the gallantry of his subjects; for, on getting possession of the unfortunate prince, he inflicted on him every possible mortification. Not satisfied with exhibiting his rival, like a felon, with his feet tied under his horse’s belly, to the rude gaze of the vulgar; he summoned all his barons to Northampton, to witness “the humiliating spectacle of a sovereign prince exposed in public to a new-invented indignity.”²⁸

It may appear difficult to account for this treatment of a Royal Captive, taken under such circumstances, in an age when the honours of chivalry were eagerly sought after by all the crowned heads of Europe. When we reflect, however, that on the Thursday preceding the capture of William, Henry himself had been ignominiously scourged at the tomb of his formidable enemy, Thomas à Becket, his lacerated feelings might, perhaps, have found some relief in this public exhibition of his power to inflict, on a brother monarch, something of a similar degradation.

William was at first committed prisoner to Richmond castle, in Yorkshire; but Henry, either from apprehension of his being insecure among the scarcely-extinguished embers of the late insurrection, or wishing to enhance his value in the eyes of the Scots, by removing him to a greater distance, had him conveyed beyond seas, to Falaise in Normandy. Meanwhile, the Scottish army, thunderstruck at so unusual a calamity, after some ineffectual and misdirected attempts at revenge, abandoned their spoil, and hastily retreated to their own country. Alarmed, however, at the irregularities which the absence of the Head of their Government was likely to produce among the discordant and inflammable materials of which the kingdom was composed, they too hastily agreed to the ignominious terms proposed by the enemy; and submitted to their King becoming the *liegeman of Henry for Scotland, and all his other territories*; and further,

“The King of Scotland, David, his brother, his Barons, and other liegemen, agreed that the Scottish church should yield to the English church such subjection, in time to come, as *it ought of right, and was wont to pay* in the days of the Kings of England, predecessors of Henry. Moreover, Richard Bishop of St Andrew’s, Richard Bishop of Dunkeld, Geoffrey Abbot of Dunfermline, and Herbert Prior of Coldingham, agreed that the English church should have that right over the Scottish *which in justice it ought to have*. They also became bound, that they themselves would not gainsay the *right* of the English Church.”

“A memorable clause!” says Lord Hailes, “drawn up with so much skill as to leave entire the question of the independence of the Scottish church. Henry and his ministers could never have overlooked such studied ambiguity of expression. The clause, therefore, does honour to the Scottish clergy, who, in that evil day, stood firm to their privileges, and left the

question of the independence of the national church to be agitated, on a more fit occasion, and in better times.”

“In pledge for the performance of this miserable treaty, William agreed to deliver up to the English, the castles of Rokesburgh, Berwick, Jedburgh, Edinburgh and Stirling, and gave his brother David and many of his chief barons as hostages.”

Thus stood the right of England to feudal homage over Scotland in 1175. A superiority acquired in such an ungenerous manner, was not likely to be long submitted to with patience. The Scots had always plumed themselves on being an *unconquered* people, and able to preserve their independence against all who had attempted to invade them. *Vassalage* implies *protection*;—It was therefore presumption in England to pretend to *defend* Scotland against those enemies before whom she herself had been obliged to *truckle*.

It was not long before the conduct of William displayed that covered scorn of his *liege-lord*, which his late injuries were calculated to inspire. Countenanced by him, the Scottish bishops, at a council held at Northampton, boldly declared, in the presence of the Pope’s legate, “*that they had never yielded subjection to the English church, nor ought they.*”

William also entered the lists with the Roman Pontiff,—before whose threats and anathemas Henry had so ignominiously crouched:—Yet though all the thunder of the Vatican was levelled against him,—and the Archbishop of York, armed with Papal authority, had not only excommunicated him, but placed the kingdom under an interdict; still he maintained his point with inflexible resolution, till the judgment of the apostolic father was annulled, and an honourable compromise obtained. The contrast thus exhibited by his *vassal* could not be very consoling to the feelings of the English monarch.

In the year 1178, William, in the same spirit, founded and amply endowed an abbey at Aberbrothick, in honour of the holy martyr, Thomas à Becket,—a saint who had been thrust down the throat of his liege-lord with the salutary application of the whip. It would be doing William injustice to doubt the sincerity of the gratitude which instigated him to this act of munificence.

In 1189, Henry II. died, and was succeeded by his son Richard *Cœur de Lion*. Unlike his father, Richard, though haughty and imperious, was alive to all the noble and virtuous qualities which ought to constitute the character of a king. As soon after the obsequies of his father as decency would permit, he invited William to his court at Canterbury, and magnanimously restored Scotland to her independence. The important document runs thus—"That Richard had rendered up to William, *by the grace of God, King of Scots*, his castles of Rokesburgh and Berwick, to be possessed by him and his heirs for ever as their own proper inheritance."

"Moreover, we have granted to him an acquittance of all obligations which our father *extorted from him by new instruments, in consequence of his captivity*; under this condition always, that he shall completely and fully perform to us whatever his brother Malcolm, King of Scotland, of right performed, or ought of right to have performed, to our predecessors."²⁹ "Richard," says Lord Hailes, "also ordained the boundaries of the two kingdoms to be re-established as they had been at the captivity of William." He calls them, "the marches of the kingdom of Scotland, (*marchiæ regni Scotiæ*.)"

"He became bound to put William in full possession of all his fees in the earldom of Huntingdon or elsewhere, (*et in omnibus aliis*), under the same conditions as heretofore."

"He delivered up all such of the evidences of the homage done to Henry II. by the barons and clergy of Scotland, as were in his possession, and he declared, that all evidences of that homage, whether delivered up or not, should be held as cancelled."

"The price which William agreed to pay for this ample restitution, was ten thousand merks sterling."

It is with difficulty a smile can be suppressed when we find, even in the 19th century, an author of such learning and talents as Dr Lingard, endeavouring to fritter away the meaning and import of the above deed of restitution, by such fallacious reasoning as the following: "The King's" (Richard I.) "CHARTER to the King of Scots may be seen in Rymer, i. 64. It is NOT, as sometimes has been supposed, a FORMAL RECOGNITION OF THE INDEPENDENCE OF SCOTLAND, but a recognition, on the part of Richard, of all

those RIGHTS which Henry had extorted from William for his RANSOM. In lieu of them he received ten thousand pounds, probably the sum which William would have given to Henry. The respective rights of the two crowns, are now replaced on the same footing as formerly. William was to do to Richard whatever Malcolm ought to have done to Richard's predecessors, and Richard was to do to William whatever *they* ought to have done to Malcolm, according to an award to be given by eight barons, to be equally chosen by the two Kings. Moreover, William was to possess in England the lands which Malcolm had possessed: and to become the liegeman of Richard for all lands for which his predecessors had been the liegemen of the English Kings. The award was afterwards given, by which it appears that the words *libertates, dignitates, honores, debiti, &c.* mean the allowances to be made, and the honours to be shewn, to the King of Scots, as often as he came to the English court by the command of his lord the English King, from the moment that he crossed the borders till his return into his own territories, Rym. i. 87. This will explain the clause of *Salvis dignitatibus suis*, in the oath taken by the Scottish Kings, which some writers have ERRONEOUSLY CONCEIVED TO MEAN, SAVING THE INDEPENDENCE OF THEIR CROWN."³⁰ If William was already the *vassal* of Henry, where was either the policy or the necessity of the *latter* bringing *his* right of homage into question, by making it again a subject of negotiation? and if it was not for "A FORMAL RECOGNITION OF THE INDEPENDENCE OF SCOTLAND" that William paid the *ten thousand pounds* (merks) to Richard, *for what purpose was that sum paid?* Henry extorted no money from William for his "RANSOM;" his vanity being amply gratified by the deed of homage. Richard had no claim to 10,000*l.* from William, without granting him what he considered an equivalent. This equivalent could *not* have been the *independence of the Scottish church*; for even during the reign of Henry, we find, by a note appended by the learned author to his work, (vol. ii. p. 397, 3d Edit.), that when the obedience of the Scottish church was demanded by the Archbishop of York, "it was answered that none was due; and the answer, after a long controversy, was confirmed by Pope Clement III. in 1188."

How "*Salvis dignitatibus suis*" can be explained so as *not* to include the *independence* of the *monarch's crown*, we are much at a loss to perceive. One thing, however, is sufficiently apparent, that the sophistry we have

quoted ought not to have found a place in a publication of such acknowledged merit as that of Dr Lingard.

As he has evidently allowed the prejudices of the old English chroniclers to warp his judgment in this affair, we may be permitted, in order to place the question on its proper basis, to quote the following short passage from his own work, by which it will be seen that the LION of England, showed as little *pluck* as HE of Scotland, when placed in a similar situation.—“In an assembly of the German Princes and English envoys, by the delivery of the cap from his head, he [Richard I.] resigned his crown into the hands of Henry; who restored it to him again to be held as a fief of the empire, with the obligation of a yearly payment of five thousand pounds.”³¹ Had this claim been prosecuted against England with the same pertinacity as England advanced her absurd pretensions against Scotland, it is presumed they would have been repelled with similar scorn and derision.

Though the generosity of Richard towards William in the above transaction appears sufficiently conspicuous, yet there was that in the situation of his affairs which rendered it a matter of political expediency. From the arrangements necessarily connected with the crusade, in which he and his barons were about to embark, it became a matter of necessity, before he left Britain, to do something towards smoothing down the mane of the chafed Lion of Scotland. The gracious manner in which the boon was conferred, fixed its proper value in the estimation of the Scots, and “converted an impatient vassal and implacable enemy into a faithful and affectionate ally.”

English historians have, on this occasion, charged Richard with impolicy. Happy would it have been for both countries, if his successors had possessed half the sagacity he displayed on this occasion. The consequence of this prudent measure was a cessation of hostilities between the two nations for nearly a century. This tranquillity—uninterrupted except by the assistance which Alexander II. rendered the English barons, when engaged in protecting their liberties against the encroachments of King John—was highly beneficial to both kingdoms. Intermarriages took place among the nobility, and to such an extent, that there were few families of note but had their connexions; and many became possessed of lands under both governments. Trade rose to be an object of attention, and received

encouragement from the legislature. The Scottish burghs emerged from obscurity; and money became so plenty, that, though William had given ten thousand merks for the resignation of the homage of Scotland, and a farther sum of two thousand,³² to enable Richard to make up the ransom exacted from him by the Emperor, still he was able to offer fifteen thousand merks for Northumberland,³³ besides giving dowries upon the marriage of his two daughters,³⁴ amounting to fifteen thousand more. The burgesses of the towns had, in this short interval, so much increased their means, as to offer six thousand merks on this occasion. The nobles offered ten thousand; and on the supposition that both ranks tendered according to their ability, it may afford some criterion for judging of their relative situations in pecuniary matters. Though all these drains had been made on the treasury, yet Alexander II. was able to give ten thousand merks, besides lands, as a dowry to his second sister. He also sent³⁵ two bishops as envoys to Haco, King of Norway, to negotiate the purchase of all the Western Isles, which they entreated him to value *in fine silver*. The overture, though declined by Haco, shows the state of the precious metals among the Scots of those days.

In the year 1234, though the resignation by Richard must have been still fresh in the memory of the English, Pope Gregory IX., at the request of Henry, exhorted Alexander to perform the conditions of the old treaty between Henry II. and William of Scotland. Alexander had too great a regard for the Head of the Papal Church, to let him remain long in ignorance of the impropriety of such exhortations; and with the same spirit which characterized the conduct of his father towards the See of Rome, refused, according to Lord Hailes,³⁶ “to receive a Legate, whose original commission respected England alone,” as it “might be interpreted in a sense prejudicial to the independency of the Scottish church. It is reported that Alexander consented to his admission, at the joint request of the nobility of both kingdoms, and that he insisted for, and obtained a written declaration from the Legate, that this should not be drawn into a precedent. Certain it is, that the Legate proceeded not beyond Edinburgh, and that Alexander avoided his presence.” It is added, “The Legate sojourned in the principal towns on this side the sea, and having collected a large sum of money, secretly, and without leave asked, he departed from Scotland.”

Lord Hailes continues, “Such was the magnanimity of Alexander II. that the high-spirited Pontiff, Gregory IX. submitted to soothe him by a detail of specious and affected reasons, tending to evince the propriety of a legation in Scotland.” The “church of Scotland,” says that Pope, “acknowledges the Romish see as her immediate mother in things spiritual. To leave her destitute of the consolation of a Legate from us, would be an indignity which we cannot in conscience allow. Were we, by our Legate, to visit the church of England, and yet neglect the neighbouring church of Scotland, she might think us destitute of maternal affection.”

In 1239, Alexander married Mary de Couci, daughter of a powerful baron in Picardy. The politics of this lady’s family were adverse to England, and Henry became jealous of her influence over her husband. Various circumstances occurred to foster the seeds of animosity in the mind of the English monarch; among other things, it was told him that Alexander had said, That “he owed no homage to England for *any* part of his territories, and would perform none.” Henry secretly prepared for war, by soliciting succour from the Earl of Flanders, and instigating the Irish to invade Scotland; while he collected a numerous army at Newcastle, ready to co-operate with them.

Though the claim of homage was not put forth among the reasons for this display of hostility, yet the real ground of quarrel was well enough understood by the Scots; and on that account the war became so popular, that though Henry had intercepted troops sent to aid Alexander by John de Couci, his brother-in-law, he was enabled to confront his enemy with a formidable body of well appointed cavalry, and nearly one hundred thousand foot, all hearty in the cause, and animated, by the exhortations of their clergy, to the highest pitch of enthusiasm. Under these circumstances, Henry found it expedient to negotiate; and his lofty pretensions were softened down to a very moderate and reasonable agreement, viz. *“Alexander became engaged to live in amity with England, and never to aid her enemies, unless the English should do him wrong.”*

With such a character, Henry found it was in vain to tamper. We, therefore, hear nothing more of Scottish homage till after the death of Alexander, who being succeeded by his son, a child of eight years old, Henry solicited a mandate from Pope Innocent IV. to the effect, “That Alexander, being his liegeman, should not be anointed or crowned without

his permission. He also requested a grant of the tenth of the ecclesiastical revenues of Scotland.” To expect that the last request would have been granted, was preposterous; but Henry perhaps imagined, that by angling with two hooks, he might chance to catch one fish. “The Pope honestly and peremptorily rejected both requests; the *first*, as derogating from the honour of a sovereign prince; the *second*, as unexampled.” In the mean time, the Scots, without deigning to wait the decision of the Pontiff, proceeded with the coronation of their infant sovereign.

On the 26th December 1252, Alexander III., being about ten years of age, appeared at York, to celebrate his nuptials with Margaret, daughter of Henry III., to whom he had been betrothed in 1242. After doing homage for his estates in England, Henry also demanded that he should do homage for the kingdom of Scotland, as a fief holding of England, “according to the usage recorded in many chronicles.” The answer of Alexander showed that his instructors had not left him unprepared on the subject. He stated, “That he had been invited to York to marry the Princess of England, not to treat of affairs of state, and that he could not take a step so important, without the knowledge and approbation of his Parliament.”³⁷ Passing over the meanness of Henry, in endeavouring to circumvent *a child of ten years old*, the futility of thus practising upon a minor, ought to have prevented such a proposal; since he must have known, that although Alexander had even then reached the years of maturity, yet, without the sanction of his Parliament, his compliance was unavailing. Indeed Henry’s attempt to entrap the innocence of his son-in-law, would almost indicate that he was very far advanced in dotage.

Henry appears either to have seen his mistake afterwards, or to have become ashamed of his attempts on Alexander. In 1259, the Pope, having appointed his own chaplain, John de Cheyam, an Englishman, to the vacant see of Glasgow, Henry thus writes to Alexander, who intended the vacancy for Nicolas Moffat, Archdeacon of Teviotdale. “Although he is my subject,” said Henry, “I would not solicit you in *his* behalf, could any benefit arise to you from your opposition to a man on whom the Pope has already bestowed ecclesiastical jurisdiction.”

In 1260, the Queen of Scotland became *enceinte*; and being desirous to lie-in at her father’s court, Alexander accompanied her, after the following

clause was inserted in their safe-conduct, "That neither the King nor his attendants should be required to treat of state affairs during this visit." Henry also made oath, that he would return the Queen and her child in safety to the Scots.

In 1263, Henry affected to use his influence with Haco, King of Norway, to desist from his hostile intentions against Scotland. Haco denied such intentions; and Alexander, who perhaps questioned the sincerity of Henry's interference, sent the Steward of Scotland to demand payment of the arrears of his daughter's dowry. Henry made a partial payment of five hundred merks, and promised the remainder in two instalments, one at Michaelmas 1263, and the other at Easter 1264. "I appoint such distant terms," said he, "because I mean to be punctual, and not to disappoint you any more." "To an English reader," says Lord Hailes, "this might seem incredible; but the original instrument exists."

In 1268, Prince Edward, son of Henry, being about to engage in a crusade, Pope Clement IV., at the instigation of the English court, ordered the Scottish clergy to pay a tenth of their revenues to the King of England, to aid the undertaking. This indirect attempt on their liberties was resisted by Alexander and his ecclesiastics, who spurned at the obnoxious assessment, though they declared their willingness to furnish their proper quota of crusaders. Adam Earl of Carrick, and David Earl of Athol, with other barons, engaged in the expedition.

On Michaelmas day 1278, Alexander, being present in the English Parliament, swore fealty to Edward, in general terms, for the lands held by him of the Crown of England. Edward accepted it, "saving the claim of homage for the kingdom of Scotland, whenever he or his heirs should think proper to make it;" an early development of the views of this ambitious monarch, which did not escape the notice of Alexander.

No further measures inimical to the independence of Scotland, appear to have been taken till 1284, when Edward applied to Pope Martin IV. for "a grant of the tenths collected in Scotland for the relief of the Holy Land." The conduct of the Pontiff, however, showed the opinion he entertained of the request. He made the grant under these conditions, all equally unpalatable or inconvenient to the royal applicant: They were, "That Edward himself should assume the cross before Christmas,—obtain the

consent of the King of Scots—and, out of the money levied, supply the Scottish crusaders.”

The following year, Scotland was deprived of the prudent and watchful guardianship of her monarch; who was killed by an accident, 16th March 1285–6. At a grand council held at Scone, 11th April 1286, a regency was appointed for the government of the kingdom. The lineage of Alexander had become extinct in his person, with the exception of an infant grandchild, daughter of Eric, King of Norway. This female, whose right to the crown had been solemnly acknowledged by the Scottish barons in 1284, was deemed by Edward a desirable match for his son; and he lost no time in despatching ambassadors to Scotland to negotiate a marriage. From the comparatively good understanding that had prevailed between the two countries during the late reign, he found the Scots no way opposed to his views. The proposal was therefore entertained; and, on the 18th July 1290, the regents, clergy, and baronage of Scotland, having met the ambassadors of England at Brigham, situated on the north bank of the Tweed, between Coldstream and Kelso, a treaty was concluded, consisting of fourteen articles; in all of which not the slightest allusion is made to any superiority over Scotland, with the exception of the following clause:—“*Saving always the right of the King of England, and of all others which, before the date of this treaty, belonged to him, or any of them, in the marches, or elsewhere, or which ought to belong to him, or any of them, in all time coming.*”

In the salvo thus artfully introduced, we have a continuation of that quibbling, sinister, and narrow-minded policy, which marked the conduct of the English Government in this disgraceful affair. After the question had been so completely set at rest, it was extremely irritating for the Scots, whenever any national calamity befel them, to be annoyed by the perpetual recurrence of such barefaced attempts upon their liberties. Though the Kings of Scotland repeatedly did homage to the Kings of England, for the lands they held in that country, it was no more than what the latter submitted to do to those of France. When the English, therefore, strove, by such insidious measures, to entrap the inexperience of the Scottish Kings, and to encroach on the independence of their crown, it engendered among those who had the honour of their country at heart, a bitterness of spirit, which, as the attempts were persevered in, settled down to a deep-rooted and inextinguishable animosity. There was no scarcity of men in both

countries, who had sufficient penetration to see, and judgment to appreciate, the advantages that might have been secured to *all*, were the whole island united under one head. But, from the ungenerous policy of the English, this desirable object could not be attained, except by a sacrifice on the part of the Scots, of all that honourable minds hold dear,—THE GLORIES OF A LONG AND UNCONQUERED LINE OF ANCESTRY, THEIR OWN INDEPENDENCE, AND THE CONSEQUENT DEGRADATION OF THEIR OFFSPRING. These were the terms which the English unjustly demanded; and such terms the Scottish nation as sternly rejected.³⁸ Events have shown the soundness of their judgment; and their posterity may learn, from the history of Ireland, the extent of gratitude to which their patriotism is entitled.

The question of homage has now been traced from its origin to the negociation of Edward with the Scots at Brigham. Had all other evidence respecting the independence of Scotland been destroyed, the existence of this treaty would alone have annihilated the pretensions of Edward: For, *if* the King of Scots had been the *liegeman* of the English monarch, his daughter, or any unmarried female succeeding to the throne of Scotland, would of necessity have been a *ward* of the English crown. Can it, therefore, for a moment be supposed, that Edward I., a prince so feelingly alive to what he considered his prerogative, and whose political sagacity and intimate acquaintance with the whole system of jurisprudence had procured for him the title of the “ENGLISH JUSTINIAN,” would have so far forgotten what was due to himself, as to submit to *negociate*, where he had a right to *command*?

The views, however, of both parties in the above treaty, were not destined to be realized. The young Queen, the object of such solicitude, and on whom the hopes of the Scottish nation were suspended, sickened on her voyage, and died at Orkney about the end of September 1290. No provision had been made for the succession to the Scottish crown, beyond the offspring of Alexander; and, as Lord Hailes judiciously remarks, “the nation looked no farther, and perhaps it durst not look farther.” Under these circumstances, the sceptre of Scotland became a bone of contention between the leaders of two powerful factions; and there being no third party in the country able to control and enforce the submission of the unsuccessful claimant, it was deemed expedient to submit their pretensions to the arbitration of the King of England. Edward, who watched every

opportunity of aggrandizing himself at the expense of his neighbours, had determined, whether solicited or not, to interfere in the disposal of the Scottish crown. Having summoned the barons of Yorkshire, Lancashire, Westmoreland, Cumberland, and Northumberland, (among whom were Bruce and Baliol, the two competitors for the Scottish throne), to meet him, with horse and foot, at Norham, on the 5th June, he desired the nobility and clergy of Scotland to assemble at the same place on the 10th May.

A conference accordingly was held, when Edward commanded Roger le Brabazon, Justiciary of England, to inform the assembly in his name, “That he had considered the difficulties in which the kingdom of Scotland was involved by the death of Alexander and his offspring, and the dangers arising from disputed succession: That his good will and affection to the whole nation, and to each individual in it, were sincere, *for in their defence he himself was interested*: That he had called the Scots to meet him at this place, with the view that justice might be done to all the competitors, and the internal tranquillity of the kingdom established: That he had undertaken a long journey to do justice, in person, to all, *as Superior and Lord Paramount of the Kingdom of Scotland*: That he meant not to encroach on the rights of any man; but, on the contrary, as Lord Paramount, to administer ample and speedy justice to all.”

That his purposes might be the more effectually accomplished, he required their hearty recognition of his title as *Lord Paramount*; and he declared his willingness to use their advice in the settlement of the nation.

The whole assembly stood motionless and silent. At length some one had the courage to utter these words:—‘No answer can be made while the throne is vacant.’ ‘By holy Edward!’ cried the King, ‘By holy Edward, whose crown it is that I wear, I will vindicate my just rights, or perish in the attempt!’”³⁹ The Scots requested a delay in order to inform those of their countrymen who were absent; and, in consequence, the proceedings were put off till the next day. A further delay was then requested; and they were allowed a term of three weeks. By that time, Edward knew that the barons he had summoned would be assembled in arms.

This power was, no doubt, intended to insure the submission of the Scots. Enemies, however, more dangerous than the English barons, were at work in their councils. Amongst the secret emissaries of Edward, William

Frazer, Bishop of St Andrew's, and one of the Regents, acted with treacherous duplicity towards his colleagues. A partisan of Baliol, he scrupled at no means, however disgraceful, provided they advanced the interest of his employer.⁴⁰ Conduct of this kind could not well be concealed; it quickly engendered animosity and distrust among those who adhered to the interest of Bruce. Weakened, therefore, by their jealousies, and disunited by their conflicting interests, the aristocracy of Scotland soon became as subservient as the crafty usurper could desire.

Edward, finding them in this manner moulded to his purpose, and wishing to take away the appearance of compulsion, appointed the Scots to meet him at Upsetlington, within the boundary of their own country. The Bishop of Bath, who was the Chancellor of England, resumed the proceedings of the adjourned meetings. He stated, that "by various evidences, it sufficiently appeared that the English Kings were Lords Paramount of Scotland, and, from the most distant ages,⁴¹ had either possessed, or claimed that right; that Edward had required the Scots to produce their evidences or arguments to the contrary, and had declared himself ready to admit them, if more cogent than his own, and upon the whole matter to pronounce righteous judgment; that as the Scots had produced nothing, the King was resolved, as Lord Paramount, to determine the question of *the succession*."⁴²

The Scots were right in refraining from the discussion of a question which they knew had long since been set at rest. Had they entered the arena, they would have found themselves but ill prepared to meet the lawyers of Edward,⁴³ who had possessed themselves of the chronicles and other writings that were kept in those Scottish monasteries, which had been under the charge of English ecclesiastics. These records were afterwards found to differ essentially from those kept in monasteries where Scottish churchmen had the superiority. In the muniments of the former, every thing favourable to Scotland, respecting the question, had either been suppressed, or rendered nugatory by interpolation; while in the archives of the latter, her ancient independence and unsullied reputation, were as clearly manifested. A reference, however, to these falsified documents, surprised and bewildered the inexperienced among the Scots.

It was part of the policy of Edward to increase the difficulties of coming to a decision, by encouraging new candidates to come forward; as their claims, though futile, alarmed the original competitors, and rendered them more obsequious to his will. At this meeting eight claimants appeared for the crown, and they were afterwards increased to ten; all of whom, including Bruce and Baliol, acknowledged Edward as Lord Paramount of Scotland, and agreed that seizine of the kingdom and its fortresses should be delivered to Edward; “because,” said they, “judgment cannot be without execution, nor execution without possession of the subject of the award.” Edward was to find security for the faithful restitution of his charge in two months from the date of his award.

In consequence of this agreement, Scotland and her fortifications were surrendered into the hands of her artful adversary on the 11th June 1291.

An universal homage was now required; and during the summer, many churchmen, barons, and even burgesses, swore fealty to the usurper.

CHAPTER III.

BIRTH, PARENTAGE, AND EARLY YEARS OF WALLACE.

Sir William Wallace was descended from a respectable family in the west of Scotland. His father, who enjoyed the honour of knighthood, was Laird of Elderslie and Auchinbothie, and married the daughter of Sir Raynald, or, according to some, Sir Hugh Crawford, sheriff of Ayr. The exact period when the ancestors of Wallace first settled in this country, is a matter of uncertainty.⁴⁴ It is, however, very probable that they were originally from Normandy; and those who support this opinion, mention one Eimerus Galleius, as the immediate progenitor of the Scottish family of this name. This person appears as a witness to the charter of the Abbey of Kelso, founded by David I. about the year 1128, and is supposed to have been the father of Richard Wallace, one of the witnesses to the charter of the Abbey of Paisley, founded in 1160, by Walter, High Steward of Scotland. From the Steward he received a grant of a considerable portion of the district of Kyle, which he named Richardton or Ricardtoun, after himself. This Ricard or Richard, who was the most powerful vassal of the Stewards in Kyle, granted to the monks of Melrose the lands of Barmon and Godeneth, with their pertinents; and this grant, as appears from the *Chart. of Melrose, No. 127., Caledonia, III. p. 488*, was confirmed by the second Walter the Steward. Richard was succeeded by his eldest son, also named Richard, who appears to have altered, or softened down the name into Walays. Respecting this last person, no particulars have been related, except that he was cotemporary with Alan the High Steward, who died about 1204. He was succeeded by his younger brother Henry Walays, who acquired some lands under the Steward in Renfrewshire, early in the 13th century; which lands descended by inheritance to Adam Walays, who is stated to have been living in the year 1259, and to have had two sons, Adam and Malcolm. Adam, being the eldest, succeeded to the family estate of Ricardtoun. Malcolm, the father of our hero, received the lands of

Elderslie, and married, as we have already stated, the daughter of the Sheriff of Ayr. Some writers assert this to have been his second marriage; and farther, that by his first he had two daughters, one of whom was married to Thomas Haliday or Halliday, who held lands under Bruce in Annandale; while others maintain that he had only two sons, Malcolm⁴⁵ and William, the former by the first marriage, and the latter by the daughter of Sir Hugh Crawford. It is, however, more than probable that these two sons were the issue of one marriage; as Wyntown, who mentions the circumstance of his having an elder brother, takes no notice of their being born of different mothers. His elder brother is, by some, supposed to have been killed along with his father, Sir Malcolm, in a skirmish with the English; but this statement seems at variance with Wyntown's couplet—

“Hys eldare Brodyre the herytage
Had, and joysyd in his dayis.”

Vol. ii. p. 91.

From which it would appear, that the “eldare brodyre” outlived the father, since he succeeded to “the herytage;” and though he may have fallen by the hands of the English, it must have been subsequent to the death of his father.

Sir William, the subject of our narrative, was born in the reign of Alexander III. The precise year of his birth is not mentioned in any record at present known to exist. It is usual, however, for our historians to commence their accounts of him in 1297, as if he had then, for the first time, burst forth upon the notice of his countrymen, though they are represented as being already prepared to place implicit confidence in his talents as a leader, without any explanation of his previous deeds to merit the honourable distinction. In the preface to *one* edition of Blind Harry, he is stated to have been about twenty-seven years of age at the time of his execution. This, however, would imply a precocity of stature and strength, and a maturity of judgment too miraculous not to be dwelt on at greater length by those early writers who have handed down his story. If he was twenty-seven in 1305, he would consequently be only nineteen in 1297. Can it be supposed that a youth of that age, without influence, and without fame, would have been able to persuade men, his superiors in birth, years

and experience, to array themselves under his banner, and submit to his control? In the work of the Minstrel we are told

“Fourty and fyve off age, Wallace was cauld,
That tym that he was to [the] Southeron sauld.”

As this, however, is at variance with what is elsewhere stated in the same work, it is probably an error of the transcriber, who may have mistaken “thirtie” for “fourty,” as we find it is said, in “Buke Fyrst,” in alluding to our hero, “Scotland was lost quhen he was bot a child.” The term “child” here made use of, is not to be considered as inferring that degree of infancy usually understood in our day, but a youth acting, or able to act, as page or squire to some feudal superior. That this is the Minstrel’s meaning, is evident from the following lines,

“Yhit he was than semly, stark and bald;
And he of age was bot aughtene yer auld,”

an age inconsistent with his being 45 at the time of his death. If we are to suppose that Henry dated the loss of Scotland from the solemn surrender of the kingdom, and all its fortifications, to Edward on the 11th June 1291, it will nearly correspond with the correction now offered; and if his words are to be taken in the strict literal sense, that he was thirty-five years of age on the day he was betrayed to the English, it will follow, that he was born on the 5th August 1270. Wyntown, who first introduces him to notice in the spring of 1297, says that he had already distinguished himself in such a manner, as to have excited the envy and animosity of the English soldiers. In accordance with the above date, Wallace would then be in his twenty-seventh year; which, considering that there was no open rupture to call forth the fiery spirits of the age till 1296, was allowing him no more than a reasonable time for spreading his fame among the English garrisons stationed in Scotland.

1291. His early years are said to have been passed under the superintendence of his uncle, a wealthy ecclesiastic at Dunipace in Stirlingshire, from whom he received the first rudiments of his education. This worthy man had been at great pains in storing his mind with the choicest apophthegms to be found in the Latin classics, particularly those where the love of liberty is most powerfully recommended; and the efforts

of the tutor were amply rewarded by the *amor patriæ* excited in the breast of the pupil. How long he remained at Dunipace is uncertain; but he appears to have been at Elderslie in 1291, when the order for an universal homage of the people of Scotland was promulgated by Edward, in his assumed character of Lord Paramount. "All who came were admitted to swear fealty. They who came and refused, were to be arrested, until performance; they who came not, but sent excuses, to have the validity of their excuses tried in the next parliament; they who neither came nor sent excuses, to be committed to close custody."⁴⁶ The family of Elderslie appear to have been among the last class of recusants. Sir Malcolm, setting all the penalties of non-conformity at defiance, resolutely refused to take an oath so subversive of the independence of his country. Aware, however, that the strength of his fortalice at Elderslie was insufficient to protect him against the consequences of his refusal, he retired with his eldest son to the fastnesses of the Lennox, while William, along with his mother, sought the protection of a powerful relation at Kilspindie in the Carse of Gowrie; and from this latter place he was sent to the seminary attached to the cathedral of Dundee, to receive what farther education the learning of the age afforded. Here he contracted a sincere and lasting friendship with his biographer, John Blair, a young man at that time of great promise, who, on finishing his studies, became a Benedictine monk, and afterwards officiated as chaplain to his heroic friend.

With this faithful companion, and other youths of similar dispositions, Wallace used to lament over the degradation to which the country was daily subjected; and, fired with indignation at the growing insolence of the English soldiers, he formed an association among his fellow-students for the purpose of defending themselves, and restraining the wanton outrages of the intruders, by chastising their aggressions whenever the parties were to be found in convenient situations. This, from the licentious habits of the soldiery, frequently occurred; and seldom were they allowed to escape, without experiencing the effects of their vengeance.

In these juvenile bickerings, too unimportant to attract the attention of those in authority, Wallace had frequent opportunities of displaying that dexterity and strength, with which Nature had so amply endowed him. In him, his companions found united all the qualifications they could desire in a leader—a head to devise, and a hand to execute, the most daring

enterprises—a fertile imagination ever teeming with stratagems—and a prudence and foresight which provided against all contingencies; so that, when once he determined on any project, however difficult, they were always confident of its being crowned with success.

It is not to be imagined that an association of young men, among whom talents and bravery were distinguishing characteristics, would not feel deeply interested in the momentous crisis to which their country was approaching. The ambition of Edward, and his designs against the independence of their native land, were too apparent to escape the notice of any who had not an interest in appearing wilfully blind. The subserviency of those who represented the aristocracy was, therefore, regarded by their countrymen with feelings of humiliation and shame. It happened unfortunately for their characters, as well as for the safety of the country, that most of the nobility held possessions on both sides of the Tweed; and their selfishness dictated a line of policy extremely dangerous to the independence of Scotland. A wish to preserve their estates in both countries inclined them to a ready obedience to whatever side was most likely to gain the preponderance. Edward, who, in addition to his conquests on the Continent, had annexed the principality of Wales to the English crown, appeared to them, in the distracted state of their country's affairs, as very likely to consolidate Britain under his powerful and energetic sway. Under these feelings, they vied with each other in their endeavours to propitiate the usurper by disgraceful compliances. The poorer gentry, however, entertained sentiments of a different description, and watched the progress of the submission respecting the succession with feverish impatience.

1291. Since the surrender of the Regents on the 11th June, the different towns and castles of Scotland had been garrisoned by English soldiers. Between the military and the inhabitants, as might have been expected, brawls were of no unfrequent occurrence—and in those which came under the notice of our hero, he seldom remained an inactive spectator. Gilbert de Umfraville⁴⁷ being removed from the command of the castles of Dundee and Forfar, one Selby, the head of a freebooting family in Cumberland, was appointed to succeed him. His son, a fiery and impetuous youth, having too rashly insulted Wallace, the latter struck him dead on the spot with his dagger; and, though surrounded by the train of his insulter, effected his escape to the house of a female dependent, who concealed him from his

pursuers. Besides young Selby, two or three others, who attempted to intercept him in his flight, were either killed or severely wounded. The case, therefore, became one of too serious a nature to be overlooked. The prudent management of his preserver enabled him to quit the town without being observed. An act of outlawry followed this slaughter; and Wallace was hunted from covert to covert by the emissaries of the constable, who, eager to revenge the death of his son, offered great rewards for his apprehension. His success in eluding his pursuers was equal to the boldness of his offence.⁴⁸

After lurking among the woods and impenetrable recesses of the country, till the heat of the pursuit had subsided, Wallace ventured to communicate with his relations at Kilspindie. The anxiety of his mother respecting his fate required to be relieved; and, in obedience to her solicitation, to remove himself further from the scene of danger, he agreed to accompany her on a pilgrimage to the shrine of St Margaret at Dumfries. The dress required for this purpose afforded a suitable disguise; and the respect paid by the English to a saint of the royal blood of their country, insured, in those days of superstition, all the facilities which their situation required.

While our hero was thus employed, his father, it would appear, had become obnoxious to the English; but in what manner, we are left entirely to conjecture. Whether they had endeavoured to apprehend him, for disobedience to the order already alluded to, or if, driven from his house and his resources, he found himself constrained to retaliate upon his oppressors the injuries they had inflicted, are circumstances respecting which all authorities are silent.

An unfortunate rencounter, however, appears to have taken place in the district of Kyle in Ayrshire, between Sir Malcolm, at the head of a few of his retainers, and a party of the English, under an officer of the name of Fenwick; in which, after a gallant resistance, the Scots were defeated and their chieftain slain. Blind Harry asserts, that the brother of Wallace also fell on this occasion; but he is evidently mistaken, as it has already been shown from Wyntown, that Sir Malcolm was succeeded in his estate by his eldest son.

The death of his father was not calculated to lessen the animosity which Wallace had hitherto entertained towards the English. Thirsting for revenge, he spurned the offers of some of his relations, who proposed to use their influence to get the act of outlawry recalled; and having placed his mother under the charge of his uncle Sir Raynald Crawford, he again betook himself to the woods.

The talents, strength, and dexterity of the young outlaw, soon attracted to his fortunes a number of reckless and intrepid spirits, inclined alike from habit and from circumstances, to prefer a life of savage and unrestrained liberty, to the uncertain and degrading protection of those, who, though wearing the mask of friendship, were daily wounding their feelings, by their encroachments on the independence of their country.

1292. As Scotland, at that time, abounded with game of every description, Wallace and his companions found no difficulty in maintaining themselves in their woodland retreats; from whence also they could issue forth to surprise the English, and supply themselves with those necessities which their situation otherwise prevented them from obtaining. However well disposed the regency and barons of Scotland might have been to submit to the claims of England, it was quite different with the nation; and the proceedings of Wallace, though not sanctioned by the shadow of government which still lingered in the country, were viewed by the poorer classes of the Scots, not only with indulgence, but with approbation. From the prevalence of this feeling, he derived many important advantages, and much useful information respecting the movements of his enemies.

At this early period of his history, his conduct is said to have drawn upon him the notice of Thomas of Ercildoune, otherwise named Thomas the Rymer. This *shrewd* observer of the “signs of the times,” so highly appreciated his talents and hardihood, as to risk his prophetic fame, then in its zenith, by pointing him out to his countrymen as the man destined to restore the ancient glory of Scotland. His matchless strength and acute wit, joined to the sagacity with which he gave effect to his stratagems, tended, no doubt, to impress the seer with this favourable opinion. Among the stories told of his early years, the following are perhaps entitled to a preference, on account of their being, as Lord Hailes observes, “characteristical.”

One day, having visited Ayr in disguise, his attention was attracted by a crowd collected near the quarters of the military. In the midst of a circle of his own countrymen, there stood an Englishman of huge dimensions, playing off his raillery against the Scots, and offering, for a groat, an opportunity of avenging any injury they might have received from the English, by permitting the best among them to exert their utmost strength in striking a blow upon his back with a pole which he held in his hand; accompanying this absurd declaration with certain ridiculous gestures and scurrilous language, while his mailed companions, with arms akimbo, stood loitering around, laughing, and enjoying the humour of their bulky buffoon. Wallace approached, and tendered treble the sum for the permission offered. This was readily agreed to by the jester, who winked to his companions as he prepared to fulfil the conditions. The wary Scot had observed the trick; and, grasping the pole above the place where it was intended to give way, he let fall a blow with such good will, that the spine yielded to its force, and the foolish witling sunk with a groan at the feet of his companions. Instantly the swords of the English were out to revenge the slaughter of their favourite. One of them, advancing towards the offender, received a blow on the head, which laid him lifeless across the body of the jester. Surrounded on all sides by the increasing numbers of his adversaries, he plied his weapon with a rapidity and a force which kept the most forward of them at bay. Over the steel bacinet of a powerful trooper, the fatal pole was shivered to pieces. Others, seeing him, as they imagined, disarmed by this accident, rushed forward, expecting to overwhelm him with their numbers; but on drawing his sword, which he had concealed under his dress, they as quickly receded from the well-known power of his arm. Having, by his trusty blade, cleared the way to one of the outlets of the town, he was there attacked by two of the boldest of the garrison, who had not before mingled in the fray. The object of one of them appeared to be, to engage him in a little sword-play, and thus give his party an opportunity of hemming him in, but Wallace, aware of the value of his time, broke through the guard of his artful opponent, with a blow which clove him to the teeth; while the other, in the act of retreating, received a thrust through an opening in his armour, which, reaching his vitals, laid him senseless by the side of his companion. Five of the English soldiers had now fallen beneath the arm of the youthful warrior; and the rest seemed so averse to come within his reach, that he had time to gain a little copse in the neighbourhood, where he had left his horse

before he entered the town, and, bounding into the saddle, the hardy trooper was soon beyond the reach of any fresh assistance they might procure. Horse and foot were, however, soon on the alert; but after a long and a fruitless pursuit, they were obliged to return,—some of those who had already witnessed his prowess no way displeased at their want of success.

The entire absence of any thing like fear, seems to have formed the most prominent feature in the character of Wallace. Although he had so narrowly escaped on the above occasion, and also aware of the ease with which he could be recognised, yet it was not long before he ventured back to the same place. The occasion was as follows:

A report had circulated about the country, that on a day named, a celebrated English prize-fighter would exhibit on the esplanade at Ayr, as a general challenger. An occurrence of this kind had powerful attractions, in an age when every man required to know something of the use of a sword. Scots, as well as English, became deeply interested as the day of exhibition drew on; and Wallace, instigated partly by curiosity, and partly by a wish to acquire information respecting the numbers and the motions of his enemies, determined to be present. Having equipped himself and fifteen of his companions with dresses which concealed their habergeons, he proceeded to the scene of action. Their horses they left in a place of safety outside the town, and then made their entry from different directions, in such numbers as would not attract the notice of their enemies.

In the midst of the crowd collected to witness the feats of the English champion, Wallace stood, with his face partially concealed in his cloak, to all appearance an unconcerned spectator, till he saw several of his countrymen, who had been baffled by the superior dexterity of their more practised antagonist, afterwards scoffed at, and otherwise insulted by the English soldiery. The feelings which this conduct excited were displayed on the fine expressive countenance of our hero, in such a manner as did not escape the notice of the victor; and the latter, flushed with his success, invited him to a trial of his skill. Wallace readily accepted the challenge; and, drawing his sword, prepared for the onset. The ease and grace with which he handled his weapon soon convinced the English that their “bukler-player” had at last engaged in a perilous enterprise. His art and agility appeared unavailing against the cool self-possession of the Scot, who, after a few passes, became the assailant; and a blow, which descended with the

rapidity of lightning, laid the arrogant gladiator dead at his feet. This unexpected interruption of their amusement irritated the English; but when they discovered, in the successful combatant, the bold and audacious outlaw with whom they had been so lately engaged, they eagerly crowded round, and endeavoured to prevent his escape. Unappalled by the numbers with whom he was environed, he dealt his blows in all directions with unerring and deadly effect, while his followers, drawing their swords, attacked those who were nearest them with a fury that spread consternation and uproar through the whole assemblage.

The English, finding themselves assailed from so many quarters, conceived that they were surrounded by a multitude of enemies. Wallace, always first in the place of danger, according to the homely, but expressive phraseology of Blind Harry, "*Gret rowme*" about him "*maid*;" and the enemy had already begun to give way, when an additional force from the castle made its appearance. The battle was now renewed with redoubled fury on both sides; and the capture of our hero being the principal object in view, he became the subject of their most inveterate hostility. The few, however, who ventured within his reach, soon paid the forfeit of their temerity. Having collected his companions in a body, he fearlessly advanced into the centre of the English, diminishing their numbers with every stroke of his broadsword, while his followers pressed with determined ferocity upon those who attempted to intercept him. From the increasing number of his opponents, he at last became apprehensive of having his retreat cut off, if the unequal contest were much longer protracted. Placing himself, therefore, in front of the battle he ordered them to make the best of their way, while he endeavoured to prevent the enemy from harassing their rear. By incredible exertions, they at last regained their post at the outside of the town; and, mounting their horses, they were soon lost to their pursuers amid the shades of Laglane woods, leaving about thirty of the English, among whom were three knights belonging to Northumberland, dead upon the streets of Ayr.

These, and similar exploits, appear to have furnished employment to Wallace, during the time that the English held possession of the country under the nominal authority of the Scottish regency. It will now, however, be necessary to revert to the proceedings on the Border.

CHAPTER IV.

ACCESSION OF BALIOL—SIEGE OF BERWICK—BATTLE OF DUNBAR.

1292. The submission respecting the succession to the crown of Scotland was now drawing near a close. There is reason to believe, that the knowledge of many of the humiliating circumstances, which had occurred during its progress, had been confined, in a great measure, to the parties engaged in it. Enough, however, had transpired to excite the jealousy of the poorer gentry, who, having no possessions out of Scotland, considered their honour as inseparably connected with its independence. When the edict, therefore, was proclaimed for a general homage to the King of England, the national degradation became apparent, and the servility of their more powerful representatives was regarded with undissembled mortification. The dangerous practice of allowing the influential barons to hold lands in England, might now be regretted; but the fatal effects were, for the present, beyond the power of remedy. Eager for the removal of the English garrisons, and desirous for the establishment of something like a regular government, the body of the Scottish nation, concealing their chagrin at the conduct of Edward, became anxious for the decision. The machinations of Frazer, and the influence of the Bishop of Durham, at last determined the English King to declare in favour of John Baliol, who received the crown with all humility, and swore fealty to the royal arbiter, as his liege-lord, at Norham, on the 20th November 1292. On the 30th of the same month, he was crowned at Scone; and, on the 26th December following, he again repeated his oath of allegiance at Newcastle.

1293. John, though he had not made a greater sacrifice of the national dignity than the other candidates were prepared to agree to, soon found, on his return to Scotland, that the station he had been so desirous to attain, was surrounded by cares and difficulties of no ordinary description. The conduct of Edward, too, in continually harassing Baliol with summonses to attend complaints instituted against him in the English courts, on very trifling

occasions, was a source of unceasing annoyance; and while the latter reflected on the indignities he had already submitted to, he was conscious of having forfeited every claim to the sympathy or respect of his people, by the sacrifice he had made of their independence. It seemed evident, indeed, that the only chance which remained of recovering their favour, was to renounce the fealty he had sworn, and to afford them an opportunity of effacing, by force of arms, the stigma that had been affixed to their national character.

That this was the feeling of the Scots, is manifest from the alacrity with which they came forward, when Baliol, stung almost to madness by the repeated insults received from his liege-lord, had determined to throw off his allegiance. Levies of Scottish troops had been ordered by Edward to be made and sent to him, in order to be employed in an expedition which he meditated against France. This, the newly crowned vassal had neither the inclination nor the ability to perform; on the contrary, he secretly negotiated an alliance with the French King.

1294. The Scots assembled in parliament at Scone; and, “under the specious pretence of diminishing the public charge, they prevailed on Baliol to dismiss all the Englishmen whom he maintained at his court.” “They then appointed a committee of twelve—four bishops, four earls, and four barons—by whose advice all national affairs were to be regulated. If we may credit the English historians, they had a watchful eye over Baliol himself, and detained him in an honourable captivity.”⁴⁹ This latter circumstance, more than any other, evinces the feelings of the people on the occasion.

It would be difficult to say how Wallace was employed at this particular period. It seems probable, that, relieved by the removal of the English from the apprehensions he might have entertained of the consequences of the act of outlawry, he became permanently resident among his relations. In a charter of *James, Lord High Steward of Scotland*, dated in 1294, confirming the donation of the predecessors of Sir Arthur de Denoon⁵⁰ to the monastery of Paisley, the witnesses are, *Robert, Bishop of Glasgow, John, the brother of the Lord High Steward, Sir Arthur de Denoon, Sir Nicolas Campbell, and Sir Reginald Crawford*, Knights; William de Shaw, Alexander de Normanville, Esquires. Though Wallace is not mentioned here, yet we have the names of five of his future companions in arms; and it may be doubted

if Sir Nicolas Campbell, whose patrimony lay at such a distance, would have made a journey to Paisley for the mere purpose of witnessing a charter in which he had no personal interest, had objects of greater moment not attracted him to the spot;—and possibly, a wish to visit Wallace at Elderslie, of whom, as has been already stated, he was a school-companion and intimate associate, may in a more satisfactory manner account for his appearance on that occasion, while the presence of Sir Reginald Crawford, the uncle of Wallace, rather increases the probability of this conjecture. The association of the names of so many parties with whom he was afterwards so closely connected, is at all events a very singular circumstance. The fame he had acquired by the exploits already narrated, and the dangers he had escaped, would no doubt have excited the curiosity and the sympathy of his friends.

1295. The treaty which Baliol negotiated with France was peculiarly offensive to Edward. After stating that the King of Scotland, “grievously affected at the undutiful behaviour of Edward to the King of France his liege-lord,” he bound himself to assist King Philip with all his power, and at his own charge, in the event of Edward invading France. Philip also agreed to aid the Scots, if attacked by England, either by making a diversion in their favour, or by sending succours. In this treaty were included the prelates, earls, barons, and other nobles of Scotland, as well as the Universities and distinguished public bodies of that kingdom, who were thereto required to affix their seals.⁵¹ Indeed it may be considered as truly a national treaty, shewing the degree of *surveillance* which the Scots exercised over the conduct of Baliol.

1296. The treaty was soon followed by a solemn renunciation of the homage exacted by Edward; and a numerous army was collected for the invasion of his northern counties. The Scots, though thus eager to come to blows, were by no means in a state of discipline that would enable them successfully to contend with the experienced veterans of England, who had been inured to martial habits in their wars with France, and possessed many advantages over troops that had never seen the face of a foreign enemy. Thirty-three years had elapsed since the battle of Largs; and the residue of those warriors who had distinguished themselves on that occasion, could not now be either very numerous or effective. The country, it is true, teemed with men in the vigour of life, panting to restore the tarnished glory of their

country; but although individually brave, and not unacquainted with their weapons, yet, unaccustomed to act in concert, they could neither fully understand their own deficiency, nor sufficiently appreciate the advantages of that discipline which gave the enemy so great a superiority. Under these circumstances, and guided more by the hasty dictates of their own passion than the commands of their leaders, the army of the Scots burst into Cumberland, on 26th March 1296. The injury done, however, was not very extensive. They assaulted Newcastle, and set fire to the town, but were eventually compelled to a dishonourable retreat.

On the 8th April they also entered Northumberland, plundered Lanercoste and Hexham, and retired in disorder from before Harbottle.

At this time, a circumstance of rather a curious nature took place. An English nobleman, Sir Robert de Ros, lord of the Castle of Werk, had become deeply enamoured of a Scottish lady, and, influenced by the violence of his passion, he deserted the standard of his country, and went over to the Scots. With the intention of gaining the affections of the object of his desire, he endeavoured to seduce his kinsman, William de Ros, from his allegiance. In this, however, he was unsuccessful; for William, after upbraiding him with his baseness, proceeded to the camp at Berwick to inform Edward of the treason, who furnished him with 1000 men, to garrison the Castle of Werk. Robert, in the mean time, had joined the Scots; and learning that the troops sent by Edward were to quarter the following night at Prestfen, on their way, he procured a body of Scots from Roxburgh, and secretly surrounded the village. To enable his followers to recognise each other, he gave them, as a password, "*Tabard and Surcoat*;"⁵² commanding, that whoever named the first of these words, if the person to whom he expressed it did not reply by giving the other, he should instantly kill him. With this understanding they entered Prestfen at midnight, and, setting fire to the houses, surprised and cut off the enemy.

Edward, who had now reached Berwick with an army equal in numbers to that of the Scots, and more formidable from its superior discipline, determined to attack the town both by sea and land. His navy was, however, found unequal to the task, and eighteen of his ships were either burnt or disabled. The exasperation⁵³ which this discomfiture occasioned in the

mind of Edward, increased, if possible, the natural ferocity of his temper, and determined him to lead in person his army to the assault.⁵⁴

The first attack of the English was repulsed. On the second, a well-concerted stratagem put them in possession of the town, which was given over to pillage, and a frightful and unsparing massacre ensued. Some English writers state, that no less than forty thousand of the inhabitants⁵⁵ were immolated, to assuage the wrath of the victor. Wyntown, however, may be considered nearer the truth, when he fixes the amount of the carnage at seven thousand five hundred. Barons and burgesses, nuns and friars, women and children,—*all* were involved in one indiscriminate and appalling butchery, which continued through the day, and only subsided when the following occurrence rekindled the spark of humanity, which had become extinct in the breast of the unprincipled usurper.

“Thus thai slayand ware sá fast
All the day, qwhill at the last
This Kyng Edward saw in that tyde
A woman slayne, and of hyr syde
A barne he saw fall out, sprewland
Be-syd that woman slayne lyand.
‘Lasses, Lasses,’ than cryid he;
‘Leve off, leve off,’ that word suld be.”

Wyntown, vol. ii. p. 83.

This catastrophe, from which Berwick never entirely recovered, took place on *Good Friday*, while the people were preparing for the celebration of that high festival—a circumstance which sufficiently proves that the Scots were taken by surprise. Edward remained at Berwick from the 30th of March till the 27th April, during which time he received the formal renunciation of the allegiance of Baliol, who also published an edict, ordering all English ecclesiastics holding benefices in Scotland to quit the country.

On the 27th April, regardless of the atrocities resulting from his guilty ambition, Edward left the shambles at Berwick, and proceeded northward on his desolating career, having previously despatched the Earl of Warren, with ten thousand chosen troops, to reduce the Castle of Dunbar. This

fortress, from its strong position, was considered as one of the keys to the kingdom, and had belonged to the Earl of March, a disappointed candidate for the crown, who had now attached himself to the banner of England. His wife, however, possessing more patriotism than her husband, delivered it over, in his absence, to be garrisoned by the King of Scotland. Aware of its importance, Baliol led the army he had collected, amounting to upwards of 40,000 men, to its defence. In the meantime, Sir Richard Siward, the governor, had agreed to deliver it up to Warren in three days, if not relieved. On the third day, the army of Scotland appeared on the heights, and took up a strong position on Downhill, above Dunbar. Warren advanced to attack them; and from having a difficult line of road to traverse, his ranks became irregular. The Scots, from their elevated station, saw the momentary confusion, and foolishly imagined that the English were on the retreat. Under this impression, they abandoned their strong and well-chosen position, and rushed down on the enemy. The English received their disorderly charge with firmness, and repulsed them with slaughter. Broken, and dismayed at their unexpected reception, a great part of the Scots betook themselves to flight. Sir Patrick Graham, however, and a few chivalrous spirits, maintained the unequal contest; and, though mostly cut to pieces, yet the heroism and self-devotion they displayed, extorted the applause, and excited the regret, of their adversaries.

Though there be no direct evidence of the fact, yet there is reason to conjecture, that both Wallace and his brother were present at the battle of Dunbar. It has already been shown, from respectable authority, that Sir Malcolm outlived his father; and, in the work of the Minstrel, we have an account, though rather obscure, of the manner in which he met his death. He is represented as surrounded by a multitude of enemies, and bravely defending himself on his knees, with all the energy of despair, after he had been hamstrung, in order to prevent his escape. Being at last borne down by a mass of spearmen, he was unmercifully put to death.⁵⁶ Though Henry does not mention when this took place, yet, from the previous comparative tranquillity which reigned in the country, the conflict of Dunbar appears most likely to have been the scene of so deadly a struggle; and the close intimacy which Wallace afterwards maintained with the family of Graham, may have originated in the circumstance of his brother and himself having

been among the few who stood by their chief, Sir Patrick,⁵⁷ on this disastrous occasion.

The banner of Sir Richard Siward (*black, with a white cross flowered at the ends*)⁵⁸ still floated on the battlements of the Castle of Dunbar. To this place many of the Scottish barons fled for refuge. The protection they received, however, was of short duration. The fortress, according to agreement, was surrendered to Warren. On this Lord Hailes remarks, “Our historians impute this also to treachery; and they accuse the Governor, Richard Siward. But this charge is manifestly unjust. Siward had agreed to surrender the castle, if it was not relieved within three days; and it was not relieved.” His Lordship is sometimes rash in bringing charges against the historians of his country. The treason of Siward did not consist in delivering the castle, according to agreement, but in *making that agreement*. There is enough in the fact of his consenting to surrender one of the strongest and most commanding fortresses in the country, in so short a time, to warrant the charge they have made against him. That the Scots nobles were ignorant of the terms, is evident from their flying to it, after the battle, as to a place of safety, which they would not have done, had they known that they were instantly to be delivered over in chains to the mercy of the enemy. Siward could have no certainty of his being succoured in three days, as the Scottish army, according to his Lordship’s account, only came in sight “on the *third* day;” and if any accident had detained it, Dunbar must have been surrendered on the day following. Besides, if Lord Hailes had referred to Vol. II. p. 274, 275, of the Chronicle of Peter Langtoft, an Englishman, and a favourite authority of his own, he would have found not only the statement of Scottish authors confirmed, but a regular detailed account of the treason. That his Lordship, in the face of such evidence, should have charged the Scottish historians with doing what was “*manifestly unjust*,” can only be imputed to that singular predilection towards white-washing the Negro, which his Lordship has displayed on so many occasions.

1296. Ten thousand Scots were slain at this memorable battle, and a vast number were made prisoners, among whom were many of the principal nobility of the kingdom, who were sent to the South in chains, and distributed among the prisons of England and Wales. Baliol, after performing a most degrading feudal penance, and imploring the clemency

of his conqueror, was sent prisoner, along with his son Edward, to the Tower of London, having previously resigned the kingdom and the people of Scotland into the hands of Edward. Thus terminated the brief and unfortunate reign of John Baliol, who had aspired to a sceptre he had neither the judgment nor the energy to wield. With a spirit subdued before the commanding genius of Edward, any efforts he made to regain the independence he had relinquished, were rather forced upon him, by the impatience of his people to the English yoke, than the result of any magnanimous resolution of his own. Though possessing qualities that might have graced the seclusion of private life, he was destitute of those talents which were required in the discharge of the duties of a sovereign.

Selected by Edward from the other competitors, more on account of the natural timidity of his character than the superior justice of his claim, it is impossible to look on the degradation that was inflicted on him, without feeling disgusted at the total want of generosity which marked the character of the English monarch. Listening to the *interested* advice of the Bishop of Durham,⁵⁹ who counselled him to set aside the claim of Bruce, because the talents and spirit of the latter might be troublesome, he arrayed Baliol in the trappings of royalty; and, while he insulted the tame unresisting puppet he had created, he fancied himself trampling with impunity on the hitherto unsullied majesty of a free people.

The destruction of Berwick, and the discomfiture at Dunbar, laid Scotland prostrate at the feet of her invader, who marched triumphantly through the kingdom, receiving the homage of the terrified chieftains, and placing garrisons in the deserted fortresses; while churchmen of all grades, Earls, Barons, Knights and Esquires, hastened to avert his displeasure, by taking the oath of allegiance, and renouncing the French alliance.

On the 6th June,⁶⁰ Edward besieged and took the Castle of Edinburgh, in which he found the regalia, consisting of the crown, sceptre, and cloth of gold. On the 14th, he was at Stirling and Linlithgow. On the 24th July, he encamped on the banks of the Spey. He was at Elgin on the 26th, where he remained two days. He was at Aberbrothick on the 5th August, and again at Stirling on the 14th, at Edinburgh on the 17th, and at Berwick on the 22d, having spent twenty-one weeks in his progress of subjugation.⁶¹ For the

final settlement of his conquest, he appointed John, Earl of Warren, Lieutenant or Guardian of the kingdom; Hugh de Cressingham, an avaricious ecclesiastic, treasurer; William Ormsby, justiciary; Henry de Percy, keeper of the county of Galloway and sheriffdom of Ayr; while Robert de Clifford had charge of the eastern districts. The ancient Great Seal of Scotland, surrendered by Baliol at Brechin, was broken in pieces, and a new seal in place of it, was presented to Walter de Agmondesham, as chancellor.

The conduct of these ministers was ill calculated to secure the conquest which the policy and talents of their master had achieved. Haughty and rapacious themselves, they imposed little restraint on the licentious soldiery, who lorded it over the wretched inhabitants with the most intolerable brutality. While property of every description was held by the frail tenure of the will of the usurpers, outrages were committed on the domestic feelings of the oppressed, which the delicacy of modern writers have withdrawn from the page of history. Neither was this galling oppression confined to the common people; the cup of misery went round; and the noblest of the land partook of its unmingled bitterness. The unlimited exactions of Cressingham, and the little controul he exercised over his underlings, soon banished commerce from the Scottish shores. Deprived, by his impolitic proceedings, of this lucrative branch of the national resources, with whetted appetite for plunder, he turned upon the wretched and already impoverished inhabitants, who looked in vain to their nobles for that protection afforded them in times past. Those chieftains who would have stepped forward in their defence, had either fallen beneath the axe of the executioner, or were languishing out the prime of their existence in the distant dungeons of the invader.

The fiendish policy that instigated the massacre of the Minstrels of Wales, lest their strains should animate their countrymen to revolt, had also suggested the idea of depriving the Scots of the monuments⁶² of their ancient glory. The nobility still remained tame spectators of this fresh outrage, and relaxed not in their supple assiduities to conciliate the favour of the tyrant. Thus abandoned by those who ought to have been her protectors, the distracted country, crushed and bleeding at every pore, lay convulsed within the *coils* of this human *Boa*. But that Providence which “ruleth in the kingdoms of men,” had foreseen her calamity, and prepared a

deliverer, with personal qualifications beyond the common lot of men, and a mind endowed with every requisite for the mighty undertaking.



CHAPTER V.

WALLACE AGAIN TAKES REFUGE IN THE WOODS.—ORGANIZES A SYSTEM OF WARFARE.—HARASSES THE ENGLISH IN THEIR CANTONMENTS.—CONFLICT OF BEG.—BIOGRAPHICAL NOTICES OF HIS EARLY COMPANIONS.—HIS DRESS AND ARMOUR.—ANECDOTE OF THE RELATIVE PERSONAL PROWESS OF WALLACE AND BRUCE.

Wallace, who had been stigmatized by the English as an outlaw and a robber, found it necessary, after the battle of Dunbar, to withdraw to his former mountainous retreat, from whence he would, no doubt, observe the gaudy pageant of the feudal power of England, as it traversed the devoted land in all the insolent security of conquest. And while the national distress deepened around, and every tale that reached him was fraught with tidings of the misery of his enslaved and degraded countrymen, the resources of the enemy, and the possibility of emancipating the beloved land of his nativity, formed the subject of his unceasing reflections. He had observed, that the reverses which the Scots had sustained in the field, arose more from a want of subordination and discipline among themselves, than from any superior valour on the part of their enemies. He was aware of, and deeply lamented, the jealousy and treachery which existed among the nobility, and their readiness to stoop in the most servile manner ⁶³ to the will of the Usurper, if they might thereby obtain even a temporary exaltation for their party; and he justly conceived, that by banding together a few resolute spirits, allied to no faction, but, like himself, attached to the general good, that more could be done toward the restoration of his country's independence, than by all the tumultuous hordes which the treacherous and disunited chieftains could bring together. Fully impressed with this conviction, his days and nights were passed in extending the number of his followers, and in organizing a system of warfare, which was soon destined to spread terror and dismay among the invaders. The *elite* of every district were instructed and disciplined in a manner peculiarly his own. With the simple, but well-known sounds of his bugle-horn, he could regulate all their operations. At the appearance of danger, he could disperse them, to seek more secure

retreats,—or rally them around him, as circumstances might require. This mode of discipline, either by himself or his most trusty associates, he secretly extended over a great part of the Lowlands of Scotland; so that either amidst the fastnesses of Carrick, the deep recesses of Cartland, or on the shores of the Lomond, the rallying note of their country's liberator was followed by the prompt appearance of well-armed warriors at their respective places of muster.

The prowess which he had displayed in his encounters with the English—his almost miraculous escapes—and the prediction given out in the name of the Seer of Ercildowne,⁶⁴ of his being destined to deliver Scotland from the tyranny of England,—all conspired to excite the hopes, and gain him the confidence, of the less wealthy classes of his countrymen.

His tactics were admirably fitted for harassing the foes he had to contend with. The fortresses in their possession were surrounded by secret enemies, ever on the watch to discover and convey to their leader any information that might enable him to way-lay their convoys, or surprise them in their strongholds. It was in vain the warders kept watch on their lofty stations: distant as the eye could reach, no enemy appeared, no foreboding sound met their ear, to warrant them in disturbing the tranquillity of the revellers within. Far in the woodlands, the sound of a horn might be heard; but it passed away unregarded, as proceeding from some lonely forester going his rounds. The drawbridge is let down to admit fuel or provisions for the garrison;—the loads are thrown in, the entrance of the gate;—the porter knocked on the head, and the burden-bearers bristle into resolute or well-armed assailants;—the wine-cup is dashed from the hands of the astonished governor, who is only made sensible of his situation by the carnage that ensues;—the castle demolished, and the spoil divided among his followers, who are now allowed to return home. Wallace, meanwhile, attended perhaps by a few select worthies, pursues his way, to call forth the avenging swords of his adherents, in some more remote part of the kingdom.

Such were the fruits of that admirable system of warfare which Wallace was engaged in explaining and enforcing at the meetings of his nonjuring countrymen, during the winter of 1296, and which it has been thought proper to allude to at this stage of the history, in order that the reader may

be able to comprehend the possibility of certain of those exploits which afterwards obtained for the heroic champion of the Scots, the applause and admiration of mankind.

The spring of 1297 had scarcely set in before the *guerrilla*-parties thus formed began to molest the invaders; and so persevering and successful were their attacks, that in a very short time, throughout the whole range of the forest of Clydesdale, Wallace and his followers held undisputed sway; and, emerging from parts least expected by the enemy, surprised and cut off their convoys. The English garrison which occupied Bothwell Castle made several attempts to drive them from their concealments in the woods, but all their efforts had ended in discomfiture and disgrace; while the prisoners left in the hands of the Scots were hung up at different parts, along the skirts of the forest, as a warning to all hostile intruders. These proceedings of the insurgents alarmed and perplexed the English, as it kept them in profound ignorance of the numbers they had to cope with. Left to their own conjectures, their heated imaginations peopled the impenetrable recesses of the woods with swarms of fierce and merciless enemies, headed by a chief against whose sword the strongest of their armour afforded but a feeble protection.

While the Scots were thus engaged, their leader received advice that a strong convoy was on its way from England for the supply of the garrison of Ayr, under the command of Fenwick, the person who headed the attack so fatal to Sir Malcolm Wallace. Roused by the hopes of avenging the death of his father, our hero determined to way-lay the party. For this purpose he selected fifty of those on whose strength and courage he could place the greatest reliance; and thus attended, he set forward to occupy a position on the road the enemy had to pass. It was night when the little band of patriots reached the spot from whence they meant to make their attack; but hearing nothing of the advance of Fenwick, he ordered his men to take shelter for the night in a neighbouring wood. The morning was pretty far advanced, when two scouts, whom Wallace had sent forward at day-break, returned with the intelligence that the enemy was at hand. Having arranged his men for the onset, his friend, John Blair, offered up prayers for their success, which were scarcely over before the English came in sight. Fenwick, on observing the small body of Scots that awaited his approach, felt perfectly assured of taking them, and the far-famed chieftain, whom he suspected to

be their leader, prisoners with him to Ayr; and congratulated himself on the satisfaction which the capture of the bold outlaw would afford to his superiors. This pleasing reverie was, however, disturbed by a rapid movement of the Scots, who, charging with their long spears, threw his advance into confusion, and, following up their advantage with the most daring intrepidity, carried disorder to the very centre of his squadron; where, undismayed by the superior numbers that surrounded them, Wallace and his brave companions fought with all the fury of exasperated lions. The repeated charges of the English were repulsed and returned with such increasing vigour and resolution as alarmed and confounded their commander. Wherever he turned his eyes, the sword of the Scottish chief seemed clearing a path toward him; helmet after helmet disappeared beneath his ponderous weapon; and the whole exertion of his mighty arm seemed directed towards the hated Fenwick. Conscious of the justice of that vengeance which inspired our hero with more than usual ferocity, the English chief would gladly have avoided a personal rencounter. His attempts to escape, however, were in vain,—the brand of the vengeful Scot reached him at last; and the blow, though broke by the intervening sword of a trooper, fell with sufficient force to strike him from the saddle. Falling on the opposite side of the horse, Wallace had not the satisfaction of giving the deathblow;—this was an honour reserved for Robert Boyd, one of his most intimate companions. Although Fenwick was thus slain, yet the conflict continued with great obstinacy. The English, under one Bowmond, who was second in command, made great efforts to retrieve the advantages they had lost. The Scots, however, maintained their ground with inflexible resolution, while the sword of their chief was rapidly increasing the gaps in the ranks of their enemies. Adam Wallace, the promising heir of Riccardtoun,⁶⁵ had the good fortune to come in contact with the leader of the English; and, after an obstinate engagement, the intrepid Bowmond fell beneath the hand of the youthful Scot. Deprived of their leaders, the English now fled in the utmost confusion, leaving one hundred of their companions on the field. The Scots pursued them only so far as to make their victory certain; and, returning to the spoil, found their labours amply rewarded. A numerous train of waggons, loaded with flour, wine, and all sorts of provisions, with warlike stores in abundance, and two hundred draught-horses, besides money and other valuables, fell into the hands of the victors, who, after dividing their booty, and appropriating part of it to the relief of the

oppressed inhabitants in the neighbourhood, departed to secure the remainder in their inaccessible retreats among the then extensive forests of Clydesdale.

The result of this affair with Fenwick was not less encouraging to the Scots, than prejudicial to the English. The valuable convoy, which the latter had been thus deprived of, was a subject of serious regret to Percy; more particularly, as it appeared irretrievable—his foraging parties having already exhausted the district under his controul, and reduced the inhabitants to the most wretched expedients, in order to maintain their miserable existence. The fields remained in a great measure uncultivated; and those among the commons who were fortunate enough to possess a cow, endeavoured to conceal her as their only resource. The poor starveling was bled as often as nature would permit; and the blood, boiled to a consistency, formed almost the sole repast of the unhappy owners. Percy, already aware of the impoverished situation of the country, had husbanded the resources of the garrison, in order to make them hold out till the arrival of the expected supplies. Under these circumstances, his disappointment may be easily conceived, when the disordered remains of Fenwick's party arrived at Ayr without a leader, to give an account of their disaster, every man being at liberty to tell his own story; and, as might be expected, all of them agreed in exaggerating the number of the Scots, and the gigantic stature and strength of their chief. Percy, even from the most favourable view of the affair, could only see the embarrassing situation in which he was placed. The uncertainty of procuring supplies by land was but too evident; and to bring them by sea was equally precarious, as the Scottish ships were still numerous on the coast, and had not acknowledged the sovereignty of Edward, but in the unsettled state of the country, continued to capture all the English vessels that came in their tract.

In this battle, which was fought at a place called Beg,⁶⁶ above Allanton, in the parish of Galston, few of any note among the Scots were slain. Of those present on the occasion, the following names have been handed down—Sir Andrew Murray, Sir William Douglas, Robert Boyd, Alexander Scrimgeor, Roger Kilpatrick, Alexander Auchinleck, Walter Newbigging, Stephen of Ireland, Hugh Dundas, John Kneland or Cleland, Ruthven, Sir David Barclay, Adam Curry, John Blair and Thomas Gray. In justice, therefore, to these brave and early confederates of our hero, we shall

appropriate the remaining part of this chapter, to such notices of them as our scanty materials may afford. The following account of the first of those worthies is taken from the Peerage and Baronage of Scotland.

Sir Andrew de Moravia, dominus de Bothwell, succeeded his brother Sir William Murray, in the Lordship of Bothwell. This Sir William was chamberlain to Alexander III., and a man of singular merit; but dying without issue in 1294, he was succeeded by his no less meritorious brother, who also filled the office of chamberlain under the short reign of Baliol. Sir Andrew married a daughter of Sir John Cumin, Lord of Badenoch, by whom he had two sons, Sir Andrew and Sir William, the former of whom was associated in the command of the Scottish army when led by Wallace to the invasion of England. He also was chamberlain to Bruce, and regent of the kingdom in the minority of David II. He married Lady Christian Bruce, sister of the immortal King Robert, by whom he had two sons, John and Robert. His brother William was the progenitor of the Murrays of Abercairnie. The present “Sir Andrew sat in parliament in 1290, and appears to have sworn fealty to Edward 1291. When Sir William Wallace raised the standard of national independence, and when the other powerful barons deserted the cause, he was the only person of consequence who adhered to Wallace.”

Sir William Douglas, designated the Hardy, succeeded his brother Hugh. He was also known by the name of *Long Leg*, and reckoned to be a very handsome and powerful man, surpassing most of his countrymen in stature. He appears to have been present in the Parliament at Brigham in 1289, as his name is appended to the letter addressed by “the community of Scotland,” to Edward I., as “*Guillame de Duglas*.” He swore fealty to Edward in the Chapel of Thurston, 5th July 1291. His first wife was Elizabeth, a near connection of the Steward of Scotland, who died shortly after her marriage. His second was Eleanor, the widow of William de Ferrier. She being a ward of the English crown, had an assignation of the manors of Stubbings and Woodham Ferriers in Essex (part of her husband’s lands), until she should have her dowry set forth; which, being soon after assigned to her, she came to Scotland, there to obtain her right to such lands as her husband had possessed in that kingdom. But being at Tranent, (the manor-house of Helen la Zusche), expecting the like assignation, Sir William de Duglas came and forcibly carried her off.⁶⁷ As the lady had

made oath before she left England, not to marry without the royal consent;—to save appearances, and to preserve her property, a complaint was made of the aggression, and Edward sent his precept to the sheriff of Northumberland, to seize all the goods and chattels of the said William de Douglas which were in his bailiwick; but shortly after, in 1291, in consequence of a fine of 10*l.* to the King, his permission was obtained. In 1296, Sir William had the command of the Castle of Berwick, which he surrendered to the English, being allowed to march out with the honours of war, after taking an oath never to bear arms against England. Such oaths, however, in that age it was reckoned more dishonourable to keep than to break. The following account of some of his exploits is from Hume of Godscroft's History of the House of Douglas:

“When he” (Sir William) “heard that William Wallace was risen up, and had taken open banner against the English, he joined with him; by which accession of forces, Wallace's army was much increased and strengthened. Yet they were not always together; but, according to the occasion, and as opportunity did offer, they did divide their companies, and went to several places, where they hoped to get best advantage of the enemy, and where there needed no great army, but some few companies at once. In these adventures, Lord William recovered from the English the castles of Desdier and Sanquhair.

“The manner of his taking the castle of Sanquhair is said to have been thus:—There was one Anderson that served the castle, and furnished them with wood and fuel, and had daily access to it upon that occasion. The Lord Douglas directs one of his trustiest and stoutest servants to deal with him, or to find some means to betray the castle to him, and to bring him within the gates only.

“Anderson, either persuaded by entreaty, or corrupted with money, gave my Lord's servant, called Thomas Dickson, his apparel and carriages, who, coming to the castle, was let in by the porter for Anderson. Dickson stabbed the porter, and gave the signal to his Lord, who lay near by with his companions, set open the gates, and received them into the court. They, being entered, killed the captain and the whole of the English garrison, and so remained masters of the place. The captain's name was Beauford, a kinsman of his own Lady Ferrars, who had oppressed the country that lay near him very insolently. One of the English that had been in the castle,

escaping, went to the other garrisons that were in other castles and towns adjacent, and told them what had befallen his fellows, and withal informed them how the castle might be recovered. Whereupon, joining their forces together, they came and besieged it. Lord Douglas, finding himself straitened, and unprovided of necessities for his defence, did secretly convey his man Dickson out at a postern, or some hidden passage, and sent him to William Wallace for aid. Wallace was then in Lennox, and, hearing of the danger Douglas was in, made all haste he could to come to his relief. The English, having notice of Wallace's approach, left the siege, and retired towards England; yet not so quickly but that Wallace, accompanied by Sir John Graham, did overtake them, and killed five hundred of their number before they could pass Dalswinton. By these, and such like means, Wallace, with his assistants, having beaten the English from most part of their strengths in Scotland, did commit the care and custody of the whole country, from Drumlanrig to Ayr, to the charge of the Lord Douglas. Now, however, there be no mention of these things in our chronology; yet, seeing the Book of Wallace (which is more particular in many things) speaks of them, and the charter of the house of Symington, descended lineally of the said Thomas Dickson, who, for this and his other like services done to the Lord, and afterward to his good son Sir James, got the twenty merk land of Hesle-side, which his posterity doth still enjoy, holding of the Lords of Douglas and Angus; and there is no doubt to be made, but he hath done much more in his assistance he gave Wallace, than is recorded or extant any where; there being no likelihood that, in these so busy times, these two valiant and brave warriors did lie idle, although the particulars lie buried in deep silence." The above account is fully confirmed by the manuscript history of the House of Douglas, written by Thomas Chambers, who adds, that "Sir William, before the battle of Falkirk, was betrayed into the hands of the English, and conveyed to Berwick, and from thence to York, where he was kept close prisoner in the castle until his death, which took place in 1302, and was buried in a little chapel (now decayed) at the south end of the bridge." The banner of Douglas was "*azure a chiffe sylvir.*"⁶⁸

Sir Robert Boyd, or Boyt.—This bold and hardy warrior was also one of those who swore fealty to Edward I., when he overran Scotland in 1296; but throwing off his disgraceful allegiance in 1297, he became ever after the inseparable companion of Wallace. His father, in consequence of the

gallantry he displayed at the battle of Largs, obtained a grant of lands in Cunningham from Alexander III., and was the near neighbour of Sir Raynald Crawford of Crosby,⁶⁹ the uncle of Wallace; the castles of the two families could communicate by signals with each other.

Kneland, or *Cleland*, *Edward Little* and *Thomas Haliday*, all near relatives of Wallace, whose names are frequently mentioned with applause by the authors who write of this period.

Stephen of Ireland.—This brave and useful soldier, is sometimes called Stephen Ireland; but this is only by modern writers. Blind Harry, and other ancient authors, invariably designate him as *of Ireland*. It is highly probable that he was one of those self-expatriated Irish noblemen, whose love of liberty induced them to seek, in foreign countries, what they could no longer hope for at home. Whatever his birth may have been, he appears to have come to Scotland at an early period, perhaps in the reign of Alexander III., and seems, from his being occasionally employed as a guide in the expeditions of Wallace, to have had such a knowledge of the country, as could only be acquired by a long residence in it. Through all the variety of fortunes which attended Sir William Wallace, and amid the desertions of some of his opulent countrymen, Stephen of Ireland adhered to him with inflexible fidelity, and also induced others of his countrymen to come over to the assistance of the Scots.

John Blair and *Thomas Gray*.—The former of these worthy ecclesiastics has already been mentioned as the schoolfellow of our hero. After quitting Dundee, he went to finish his studies at Paris, where, under the most eminent masters of the day, his progress did not belie the early promise of his genius; and he returned to Scotland a confirmed patriot, and an accomplished scholar. The latter had the pastoral charge of Liberton, yet considered it no dereliction from his duties to attend and assist in the emancipation of his country. Of his literary talents we have reason to form the highest opinion, from the circumstance of John Blair admitting him into the honour of assisting in composing the history of their far-famed friend. This work, though it now goes all under the name of Blair, was then known to have been the joint composition of these worthies. Where Thomas Gray received his education, is a matter of uncertainty; but it is highly probable that he also finished his studies along with his friend at Paris, and returned

with him to Scotland; as we hear nothing of him previous to the rencounter with Fenwick. It is not unlikely that, on this occasion, John Blair was installed in his office of chaplain; and that he got this preference from the circumstance of the other being already provided for, as they both appear, from their learning and patriotism, to have been equally deserving of the affection and confidence of their countrymen.

Alexander Scrimgeor.—This faithful patriot was the representative of an ancient and respectable family in the neighbourhood of Dundee; and as he most probably received his education along with Wallace, he would no doubt have been one of the association already alluded to. He enjoyed, in right of his ancestors, the honour of carrying the banner of Scotland; and for his faithful discharge of this duty, he was afterwards appointed by Wallace to the office of Constable⁷⁰ of Dundee; which honour being hereditary, remained in the family till after the restoration of Charles II., when the representative of the family was created Earl of Dundee; on whose death, without immediate issue, the heirs were unjustly deprived of their honours and immunities. The family, however, continues to be represented by the Scrymgeours of Birkhill, now the Wedderburns of that Ilk.—*Stat. Acc.* vol. viii. p. 239.

Walter Newbigging, otherwise Gualter de Somerville.—This gentleman was of English extraction, and the son of William de Somerville, Baron of Linton, and Margaret Newbigging, heiress of that Ilk, the daughter of Walter Newbigging, which lands he inherited in right of his mother. This accounts for his being called Walter Newbigging, or of Newbigging. His father, William de Somerville, distinguished himself at the battle of Largs, and was a constant attendant at the court of Alexander III., with whom he was in high favour, and held the office of grand falconer, a place at that time of considerable importance. Walter, the subject of our present inquiries, received from his father a *ten merk land* within the barony of Linton, which enabled him to make an early appearance at court, where his good qualities and noble deportment attracted the notice of Alexander, from whose hand he received the honour of knighthood, and distinguished himself at the tournament held shortly after in honour of the marriage of Prince Alexander with the daughter of the Earl of Flanders, at Roxburgh Castle. While in attendance at court, he formed an acquaintance with Sir David Barclay of Towie, in Aberdeenshire, whose sister Effie, or Euphemia, he afterwards

married in 1281; and at Aberdeen, the same year, he entered into a bond of manrent, or manred, as it was sometimes called, with his brother-in-law. These obligations were very common among the gentry of Scotland, and often productive of great disorder in the country. By this marriage he had a son named David, whom he devoted to the cause of his country's independence, when he himself joined the standard of Wallace. This youth we shall afterwards have occasion to notice. It may not be improper to remark, that Somerville, the author of "The Chase," was a scion from the English stock of this ancient and respectable family.

David de Barclay.—Abercromby mentions a Sir Fergus Barclay, as being one of the early adherents of Wallace; but there is reason to believe he is partly in error. Sir David Barclay, as we have already seen, was brother-in-law to Sir Walter Newbigging, with whom he had entered into a bond of manrent, by which they were mutually bound to appear in arms in support of the same cause, provided it was not against the royal prerogative. When we find both the surnames associated together on this occasion, we may reasonably suppose they are the same persons who contracted the obligation, and had thought the present a very proper opportunity for acting upon it.⁷¹

"Hugh de Dundas was the son of Serle de Dundas, who swore fealty to Edward I. in 1296 and in 1300. His son, Sir Hugh, was a man of singular merit and fortitude, and joined the brave Sir William Wallace in defence of the liberties of Scotland, and embraced every opportunity to exert his courage against the enemies of his country. He died in the reign of King Robert Bruce, and was succeeded by his son."*—Douglas's Scottish Baronage.*

* * * * *

After the foregoing brief notices of the early companions of Wallace, the curious reader may not be displeased, if, before concluding this chapter, we present some account of the dress and armour in which our hero appeared at the battle of Beg. The following description is from the Minstrel, and is given with a minuteness which induces a belief that it is a literal translation from the work of Blair, so often mentioned;—it is at least of value, not only from its containing the ideas entertained on the subject by

a man of no mean genius, upwards of three hundred years ago, but as it also agrees with the description elsewhere handed down of the kind of armour in use at the period:—

“A habergione vndyr his goune he war,
A steyllle capleyne in his bonet but mar;
His glowis of plait in claith war couerit weill,
In his doublet a closs coler of steyle;
His face he kepit, for it was euir bar,
With his twa handis, the quhilk full worthi war.”

Buke Thryd, p. 31.

The “*habergione*” was a piece of defensive armour early in use among the Scots, and even worn by some Highlanders and Isles-men so late as the 17th century. It was a sort of chain or ringed mail, extremely light and flexible, allowing the greatest freedom to the motions of the wearer, and was equally well adapted for combat on foot or on horseback. It was variously constructed according to the prevailing taste. The most approved were those brought from Asia by the crusaders, in the early part of the reign of Alexander III. They consisted of four rings joined to a fifth, and all rivetted;—they were sometimes double. Towards the end of the 13th century, this description seems to have been in general use, both in England and Scotland. They had the form of shirts, and were quite impervious to an arrow.

The “*goune*” which the Minstrel alludes to, as covering the “habergione,” we conceive to mean the surcoat, or coat of arms,—a fashion introduced into Britain in the 13th century. It is thus described by Dr Meyrick:—“The surcoat, which had been adopted by the crusaders in the 13th century, to prevent their armour from being heated by the sun’s rays, a mode still continued by the Mamelukes in Egypt, was at first of merely variegated patterns, but soon became embellished with the same armorial bearings as the shield;—hence, the expression ‘coat of arms.’ It was a long loose dress, without sleeves, open before and behind, for the convenience of riding, and girted round the waist by the *cingulum militare*, or belt. It was put on over the hauberk, and reached to the neck; and when the hood was placed on the head, it was covered by it as far as the shoulders. The front and back were emblazoned alike.”

This piece of dress appears to have been the same as the tabard. It is thus taken notice of by Thomas Hearne: "*Tabard*, a jacket, jerkin, mandilion, or sleeveless coat, worne in times past by noblemen in the warrs; but now only by heralds, and is called their coat-of-arms in service." Verstegan tells us, in his *Restitution of Decayed Intelligence*, "That *tabert* was anciently a short gown, that reached no further than the mid-leg, that it remaineth for the name of a gown in Germanie and in the Netherlands, and that in England, it is now the name only of a *herald's coat*." But what Stowe tells us, in his *Survey of London*, is more remarkable, where, talking of several fair inns in Southwark, he takes occasion to speak of the Tabard Inn as the most ancient of them, and thereupon writes thus: "Amongst the which innes, the most ancient is the Tabard, so called of the signe, which, as wee now term it, is of a jacket, or sleevelesse coate, whole before, open on both sides, with a square collar, winged at the shoulders: a stately garment, of old time commonly worne of noblemen and others, both at home and abroad in the wars; but then (to-wit, in the warres) their armes embroidered, or otherwise depict upon them, that every man by his coate of armes might bee knowne from others: But now these tabards are onely worne by the heralds, and bee called their coates-of-arms in service." Allusion is also made, by Wyntown, to the tabard of John Baliol, who, on being stript of the ensigns of royalty by his *magnanimous* conqueror, the "*pelure*" or fur, was also torn from his tabard. The passage is curious:—

"This Jhon the Balliol on purpos
He tuk, and browcht hym til Mwnros;
And in the castell of that Town,
That than wes famows in renown,
This Jhon the Ballyol dyspoylyd he
Of all hys Robys of Ryaltè.
The Pelure thai tuk off hys Tabart,
(Twme Tabart he wes callyt eftyrwart.)"

Wyntown, vol. ii. p. 88.

The "*steylle capleyne*," it is very likely, may have been taken from the "*chapelle de fer*," or "iron hat," which, the same writer says, had a rim and convex crown, and was worn over the capuchon or hood. "After being placed on the head, it was kept from turning round, when struck, by cords, with which it was fastened to the shoulders. The effigy of Sir Roger de

Trompington not only gives its form, but shows that it was sometimes held to the body by means of a chain. It was ornamented in front with a cross fleury, the transverse bar of which was pierced with ocularia, or openings for the sight.” That worn by Wallace, however, does not appear to have had this advantage, for

*“His face he kepit, for it was euir bar,
With his twa handis.”*

The limbs were usually defended at this time, by being encased in boiled leather, on which knee-plates of iron, and guards for the shin-bones, were fixed; these, with a round or triangular shield, painted with the armorial bearings of the wearer, formed the defensive armour of the period.

Wallace’s favourite weapon appears to have been a long and ponderous two-handed sword, which his prodigious strength enabled him to wield with the greatest ease.⁷² The mace and spear were also at times used by him; and for close rencounters in castles, peels, and other confined situations, he was furnished with a dagger for each hand, of a particular kind, having guards, which extended above the wrist, between which the hand passed; and grasping a transverse bar about an inch from the spring of the dagger, the weapon projected from the centre of the first, like the horn of an unicorn. This sort of dagger was often attached, by a kind of hinge, to the arm-plate, and could be folded back under the arm between the wrist and the elbow when not in use, and secured and concealed in that position by the cloth gloves, which our hero appears to have worn over his “glowis of plate.”⁷³

Having said thus much of the dress and equipment of Wallace, the following anecdote respecting his strength and personal appearance, may not be unacceptable to the reader; it is translated from Hector Boëce by the learned editor of Morrison’s edition of Blind Harry, who thus introduces it. “Though this author (Boëce) in general is not much to be credited, yet it would be hard not to believe him in an instance which happened near his own time, and in which, if he had spoken falsely, he could immediately have been detected. The anecdote in another respect is curious, as it affords an example of longevity, not unsimilar to that of the Irish Countess of Desmond, who attained a still more advanced age.

“The date is the year 1430. At that time, James I. was in Perth; and perhaps having heard *Henry the Minstrel*⁷⁴ recite some of Wallace’s exploits, found his curiosity excited to visit a noble lady of great age, who was able to inform him of many ancient matters. She lived in the castle of Kinnoul, on the opposite side of the river, and was probably a widow of one of the Lords of Erskine, a branch of whose family continued to be denominated from the barony of Kinnoul, till about the year 1440. It was Boëce’s manner to relate an event as circumstantially as if he had been one of the parties, and engaged in it; I shall therefore give the anecdote in his own manner, by translating his words:

““In consequence of her extreme old age, she had lost her sight, but all her other senses were entire; and her body was yet firm and lively; she had seen William Wallace and Robert Bruce, and frequently told particulars concerning them. The King, who entertained a love and veneration of greatness, resolved to visit the old lady, that he might hear her describe the manners and strength of the two heroes, who were admired in his time, as they now are in our’s. He therefore sent a message, acquainting her that he was to come to her next day. She received the message gratefully, and gave immediate orders to her handmaids to prepare every thing for his reception in the best manner, particularly that they should display her pieces of tapestry, some of which were uncommonly rich and beautiful. All her servants became busily employed, for their work was in some degree unusual, as she had not for a long time been accustomed to receive princely visitors. The next day, when told the King was approaching, she went down into the hall of her castle, dressed with as much elegance and finery as her old age and the fashion of the time would permit; attended by a train of matrons, many of whom were her own descendants, of which number some appeared more altered and disfigured by age than she herself was. One of her matrons having informed her that the king was entering the hall, she arose from her seat, and advanced to meet him so easily and gracefully, that he doubted of her being wholly blind. At his desire she embraced and kissed him. Her attendant assured him that she was wholly blind; but that, from long custom, she had acquired these easy movements. He took her by the hand and sat down, desiring her to sit on the same seat next to him. And then, in a long conference, he interrogated her respecting ancient matters. He was much delighted with her conversation. Among other things, he

asked her to tell him what sort of a man William Wallace was? what was his personal figure? what his courage? and with what degree of strength he was endowed? He put the same questions to her concerning Bruce. Robert, she said, was a man beautiful, and of a fine appearance. His strength was so great, that he could easily have overcome any mortal man of his time:—But in so far as he excelled other men, he was excelled by Wallace, both in stature and in bodily strength; for, in wrestling, Wallace could have overcome two such men as Robert was.

““The King made some inquiries concerning his own immediate parents, and his other ancestors; and having heard her relate many things, returned to Perth, well pleased with the visit he had made.”” (*Boeth. Hist.* i. xvii.)

CHAPTER VI.

PEEL OF GARGUNNOCK TAKEN BY THE SCOTS.—THE BRADFUTES OF LAMINGTON OPPRESSED BY THE ENGLISH.—THE ORPHAN OF LAMINGTON.—SIR RAYNALD CRAWFORD SUMMONED TO GLASGOW.—WALLACE CAPTURES THE BAGGAGE OF PERCY.—RETIRES TO LENNOX.—VARIOUS RENCOUNTERS WITH THE ENGLISH.

The Scottish insurgents, being now abundantly supplied with all the munitions of war, and animated by their success to the highest pitch of enthusiasm, became impatient to prosecute hostilities against their oppressors; and their leader, who was not of a character to allow the swords of brave men to rust in their scabbards, soon found them an opportunity to gratify their wishes.

At Gargunnoch, in the neighbourhood of Stirling, the English had erected a small fortification or *peel*, which they had plentifully furnished with provisions. Some of the Scots in that quarter, who secretly adhered to Wallace, observed the carelessness which at times prevailed in setting the watch, and that the drawbridge was occasionally left down all night, for the purpose of admitting, in the morning, the labourers who were still employed about it,—conveyed the intelligence to their chief, who resolved to make himself master of the place the following night. Accordingly, two spies were despatched to ascertain the probability of success. Towards evening a column of smoke was seen rising from a neighbouring hill: it was the signal agreed upon, if the party were to advance. Wallace instantly set his men in motion, and about midnight arrived in front of the place which was the object of attack. As they expected, the drawbridge was down, but they found the door strongly secured within. Impatient at the delay this occasioned, our hero raised a heavy piece of timber, and, rushing with it against the door, the fastenings gave way with a violence that loosened the stones, not yet properly cemented, and nearly a yard of the wall came tumbling to the ground. The porter, awakened by the noise, attempted to strike him with a ponderous mace. Wallace avoided the blow; and, before he could recover his unwieldy weapon, laid him lifeless at his feet.

Thornton, the captain of the garrison, now appeared, with the men under his command; but the Scots had got too firm footing within the fort, to be easily expelled. After a sanguinary conflict, in which the captain fell by the hand of Wallace, the garrison were put to the sword, with the exception of the women and children, who received from the victors as much courtesy as the rudeness of the age entitled them to expect. The wife and three children of Thornton, after being supplied with what necessaries they required, were allowed to depart along with the other females, and furnished with a pass from Wallace, by which they could proceed in safety to any of the towns in the possession of the English. The Scots found in the peel of Gargunnoch⁷⁵ abundance of all kinds of necessaries, with a large sum of money, which Wallace divided equally among his followers; and, after distributing what part of the stores they did not require among his oppressed countrymen in the neighbourhood, he demolished the fortification, and proceeded with his companions on their crusade against the enemies of their independence.

Though Wallace was thus actively engaged in harassing the enemies of the country, the calamities and acts of oppression with which particular families or individuals were visited, neither escaped his attention, nor failed to call forth that interference which their circumstances demanded; and, amid the many cases of private suffering which came under his notice, none appeared to affect him more deeply than the desolation which had overtaken a respectable and ancient family in the neighbourhood of Lanark. Hew de Bradfute, a zealous advocate for the liberties of Scotland, possessed the lands of Lamington, and left them at his death to his son, who had imbibed, with all the ardour of youth, that love of liberty so fondly cherished by his father. For some display of these patriotic feelings, he had incurred the displeasure of Hasilrig, or Haslioep, the English governor of Lanark, who found a pretext for attacking him in his castle, and put him, along with a number of his friends, to the sword. The house and lands of Lamington now became the right of a surviving sister. The youth and beauty of this young gentlewoman attracted the notice of the murderer of her friends; and, under the pretence of a regard for her safety, obliged her to take up her residence in Lanark. For this *protection*, considerable sums were, from time to time, levied upon her property. The cupidity of Hasilrig, not satisfied with these exactions, intended her as a match either for himself or his son; and the helpless girl had no means of averting this hateful

connection, but by pleading for delay, till her grief for her slaughtered kindred had abated. Every indulgence of this kind was accompanied by a fresh exaction on her property, till the victim of his avarice became an object of commiseration even to those who were themselves suffering under the hand of the oppressor. Henry draws a most fascinating picture of this lovely orphan; and we have no reason to doubt the assemblage of virtues and graces in which he has arrayed her person and character, particularly as he is borne out in what he says by the Prior of St Serf's, and other respectable authorities.

While attending her religious duties at a church near Lanark, Wallace first saw this interesting female. The beauty of her person, the grace and propriety of her demeanour, added to her forlorn situation, excited the tenderest sensations in the bosom of our hero. A circumstance, however, which occurred about this juncture, served to divide his attention with the fair object of his solicitude.

For the purpose of levying fresh assessments on certain districts of the country, an extraordinary council of the English authorities was appointed to meet with the Bishop of Durham, at Glasgow, which see had been now occupied by this ambitious ecclesiastic. Sir Raynald Crawford, the uncle of our hero, though long since deprived of his commission, was summoned to attend as sheriff of Ayr in right of his birth. Whether this was an indirect attempt to conciliate Wallace, or if it was merely done on the supposition that the Scots would submit to their imposts with more patience if some of their countrymen appeared as the assessors, cannot now be distinctly ascertained. The sheriff, however, prepared to obey the mandate; while his nephew, always suspicious of the intentions of the English, resolved, along with two of his followers, to watch over the safety of his relative, and observe the motions of the enemy. In those times the accommodations for travellers were far from complete. With the exception of convents, such houses of entertainment as might be found on the roads, afforded them little more than shelter from the inclemency of the weather; and travellers who came to spend the night, were expected to bring their food and other necessaries along with them, particularly those who journeyed with retinues. Under such circumstances, Sir Raynald's party were provided with a sumpter-horse to carry their provisions.

They had not proceeded far, before they came up with the servants of Percy, conducting his baggage. One of their horses having met with an accident, they stopped the sheriff's party, and insisted on having their sumpter-horse, in order to supply the place of the one that had become disabled. It was in vain to remonstrate with those who had the power, and were determined to do an act of injustice. Wallace, from a distance, saw the load rudely thrown from the back of the horse, and the animal carried off. The sheriff, in consequence, had to remain at Mearns for the night.

The convoy that protected the baggage of Percy consisted of five of his personal retainers, and had reached the vicinity of the little township of Cathcart, when they heard the noise of our hero's steed behind them, followed by his companions; but as there appeared to be only three to five, the English determined to stand on their defence. The contest, however, was soon decided; and the English, from the loopholes of the neighbouring castle of Cathcart, saw their countrymen slaughtered, and the baggage under their protection rifled or carried off, without venturing to quit their stronghold. Money and other valuables, to a considerable amount, fell into the hands of the victors, who lost no time in making their way towards Glasgow, in order to cross the Clyde at that place, and thus effect their retreat into the Lennox before Percy could be apprised of his loss.

Having effected their object, they sheltered themselves for the night in the neighbourhood of Dumbarton, and on the morrow proceeded towards the wilds of the Lomond. Here Wallace was joyfully received by Malcolm Earl of Lennox, who, with a number of his trusty tenantry, maintained, amid the fastnesses of that romantic district, a protracted, and sometimes a successful struggle, for their independence. This nobleman offered to place his followers under the command of Sir William, provided he would remain among them for the defence of the Lennox. His mind, however, was too deeply impressed with a desire for the general good of his country, to allow him to think of confining his exertions within the limits proposed. On explaining his plan of warfare to this worthy chieftain, he found no difficulty in gaining him over to his views, and inducing him to co-operate in extending the spirit of insurrection, as well as to create a more powerful diversion in favour of those who were already embarked in the cause. With this understanding, Wallace took his departure, accompanied by a number

of his companions, who had resorted to him on discovering the place of his retreat.

The mortification of Percy, on receiving the accounts of the capture of his baggage, was considerably increased by the subsequent proceedings of Wallace and his partisans. An express had just reached Glasgow, announcing the fate of the garrison of Gargunnoch, when another made his appearance, giving an account of the slaughter of a party of English in the neighbourhood of Doune. Sir Raynald Crawford, who had been put under an arrest on suspicion of being concerned in the affair at Cathcart, was now ordered before the council, and, though he had been able to establish an *alibi* with regard to the offence charged against him, yet, after being strictly interrogated as to his knowledge of his nephew's places of concealment, he was forced to take an oath against affording him shelter, or holding any correspondence with him, directly or indirectly, so long as he remained under the ban of outlawry; he was also sworn to afford the English all the information in his power, in order that means might be taken for bringing him to punishment.

While Percy and his coadjutor were thus employed at Glasgow, Wallace and his followers were concerting measures, in the depths of Methven wood, for an attack on a body of English troops which were to leave St Johnstone on the day following; in order to proceed to Kincleven Castle, headed by an old veteran knight named Butler, who had rendered himself peculiarly obnoxious to the Scots by the cruelties which he had inflicted upon them. Intelligence of this intended movement was communicated to Wallace, who, having disguised himself in the dress of a borderer, got introduced into St Johnstone under the name of William Malcolmson. The mayor, before whom he had to appear, was so well pleased with his humorous conversation, and the account which he gave of himself, that he allowed him to go in search of the employment he pretended to have come in quest of. By this means he had all the facilities he could desire for becoming acquainted with the strength and condition of the garrison. Having ascertained the intended removal of the troops alluded to, he hastened back to his retreat in the woods, where, sounding his horn, he rallied his associates around him, and found them all willing to engage in the enterprise.

Sir James Butler, who was esteemed one of the bravest old warriors among the English, had on this occasion about a hundred choice soldiers under his command. With this force he was quietly proceeding, amid the thick haze of the morning, to reinforce the garrison of Kincleven, when, from behind a rock that projected over the road, he was suddenly assailed by the Scots. The confusion occasioned by their unexpected attack, disconcerted the English commander, and before he could recover his troops from their consternation, a fresh charge threw them into complete disorder. The strength and valour of the undaunted champion of the Scots rendered the advantage which their enemies possessed, in point of numbers, of little avail. It must, however, be allowed, that the disparity in this instance was not so great as in some previous rencounters: Wallace, according to some accounts, having near sixty hardy warriors under his command, most part of whom had distinguished themselves on former occasions. Kerlé or Kerle, to whom he had presented the *mace* or staff of steel, taken from the porter at the Peel of Gargunnock, displayed on this occasion the most determined bravery; his formidable weapon being wielded with a dexterity which admirably seconded the efforts of our hero. Sixteen of the English had fallen beneath the swords of the Scots; but when Wallace came in contact with Sir James Butler, the conflict was of short duration. The old veteran was no match for the young patriot; and on seeing their chief fall beneath the arm of his adversary, the rout of the English became general. The disordered rabble fled in terror towards Kincleven, from the battlements of which their discomfiture had been observed; and those within hastened to let down the drawbridge to receive and shelter their flying countrymen. Onwards came the confused mass of friends and foes,—the shouts of the victors mingling with the cries of the vanquished, and thundering over the drawbridge, the pursued and their pursuers entered the castle together. The few soldiers that were in the place could render them but little assistance in making head against their enemies; and the whole, with the exception of two priests, and some women and children, were indiscriminately put to the sword.

Having cleared the place of the dead bodies of the English, and taken precautions against a surprise during the time they might remain, they proceeded to search the castle, in which was found a rich booty in money, besides a plentiful stock of provisions and other stores. A part of this valuable pillage they conveyed by night to Shortwood Forest, where they

prepared pits⁷⁶ and other places for its concealment, there to remain as a resource against future emergencies.

The nonjurors under Wallace were not as yet sufficiently numerous to enable him to put garrisons in those fortresses which fell into his hands. It was therefore wisely determined to demolish every place of strength that was likely to afford their enemies a footing in the country. Hardy themselves, and inured to the inclemency of the weather, they cared little for those comforts which were indispensable to their more luxurious neighbours. In summer, the forest spread its leafy canopy over their slumbers; and, in winter, their robust and sinewy frames felt little inconvenience, though exposed, in their dens and caverns, to all the rigour of the merciless elements. Such men heard with indifference, and executed with alacrity, the command which their leader gave for the destruction of Kincleven Castle. After securing that part of the iron work which might be useful in their sylvan retreats, the remaining furniture and lumber were formed into piles; and, at the dead hour of night, the conflagration rose in volumes to the sky. From the lateness of the hour, and the secluded situation of the castle, its fate remained unknown until the morning, when the smoke, which continued to ascend from the ruins, led the country people to the knowledge of the desolating vengeance which had overtaken their oppressors. The females, who had been allowed to depart before the work of destruction commenced, carried to St Johnstone the melancholy account of their disaster.

The grief and indignation which were felt among the English at St Johnstone, on hearing the doleful recital of the slaughter of their countrymen, induced Sir Gerald Heron,⁷⁷ the governor, to allow Sir John Butler, son of the forementioned Sir James, to follow the Scots with all the force of the garrison, to revenge the death of his father. In this undertaking he was joined by Sir William de Lorayne, an officer of reputation, and a great favourite with the soldiery.

Although the force under these leaders amounted to nearly a thousand men, from the admirable management of the Scottish chief, they were kept in a great measure ignorant of their own vast superiority. In the forest of Shortwood, a part of which they endeavoured to invest, their provident enemy had erected a number of rustic fortifications, in the form of squares,

communicating with each other, the walls of which were made, by affixing two rows of planks to the trees, and filling up the space between with thorns. Each of these squares had a small opening towards the enemy, and another at the opposite side, for the purpose of retreat; while the advance towards them was intersected by defences, formed in a similar manner, in order to break, and otherwise prevent the approach of too great a body of the enemy. By this means, when the Scots found themselves obliged to retire for shelter to these intrenchments, they could only be pursued in broken and straggling detachments. These defences were not fully completed when the English came in sight; and Wallace, therefore, in order to gain time, appeared at a distant and almost detached part of the wood with a few of his followers, leaving the rest under the command of Stephen of Ireland, to complete the works. On the approach of the English, an arrow from the powerful and unerring hand of our hero, brought down one of their advanced-guard. This had the effect of attracting their attention towards that part of the wood where he had stationed his little party, who also sent their arrows among the English, though not with such good effect as their chief, who continued to bring down his man as they advanced. The enemy, having observed the opening at which Wallace made his appearance to discharge his deadly shafts, sent forward one of the most expert of their Lancashire bowmen to lie in wait for him, while the rest directed their missiles at random toward those parts where they conceived his men to be stationed. It was not long before the eagerness of Wallace betrayed him to the practised hand of his watchful adversary, whose well-directed shaft, after grazing the collar of steel which he usually wore, stuck fast in the fleshy part of his neck. His keen eye, however, soon discovered his lurking foe; and, hurrying towards him, intercepted his retreat, and slew him in front of his companions, who were so struck with the boldness of the deed, that not one of them attempted to oppose his return to his associates. Although the Scots were generally thought inferior to the English in the use of the bow,⁷⁸ on the present occasion, having the covering of the wood to shelter them from the superior number and direct view of their adversaries, they managed, by shifting their ground as their enemies advanced, to keep up a kind of bush-fight till after noon; during which time fifteen of the English had been slain by the hand of Wallace, besides a considerable number by his companions. Their arrows being all expended, and having arrived at a part of the forest, where a high cliff prevented their further retreat, Sir William de Lorayne

advanced upon them with nearly three hundred men, while Sir Gerald Heron and young Butler remained without the forest, in order to prevent the escape of any of the fugitives. Wallace had just time to make a short animating address to his companions; and placing them so as to have the advantage of the cliff as a protection to their rear, they stood prepared for the onslaught. The English were astonished to find themselves opposed to so small a number of Scots as now appeared waiting their attack, and conceived they would have little else to do than to surround the party and take them prisoners. The determined valour, however, with which they received and repulsed their repeated charges, convinced them that the toils of the day were not yet over. Wallace, who was always a tower of strength to his friends in the hour of danger, displayed, on this occasion, more than his usual heroism. While the strength which nerved his resistless arm excited the greatest enthusiasm among his followers, and spread horror and dismay through the ranks of their enemies, Sir William de Lorayne still urged his men on to the conflict, and they as quickly receded, when they found themselves opposed to that champion of whose strength and exploits they had heard so many appalling accounts. The battle, however, still continued to rage with unabated fury on both sides;—the English, eager to revenge the slaughter of their countrymen, and the Scots, frantic with the wrongs they had already sustained, determined to conquer or die on the spot. At this time their dauntless chief burst like a thunderbolt amidst the thickest of the English; and, having scattered them before him, ascended a little hillock behind which they had retreated, and applying his bugle-horn to his mouth, made the woodlands resound with a bold and animating war-note. The English leader, conceiving that this was done in derision, rallied his forces, and again advanced to the attack. Wallace and his few hardy veterans were soon environed by their enraged assailants, and the battle commenced anew with all the rancour of their former animosities. Though the Scots fought with the most inflexible obstinacy, yet some of them, from the severity of their wounds, appeared unable to continue much longer the unequal contest; but at this critical juncture, Stephen of Ireland, and his party, in obedience to the signal sounded by their chief, suddenly emerged from the brush-wood, and fell upon the rear of the enemy with determined ferocity. Surprised and dismayed at so unexpected an attack, the English fled in the greatest confusion, followed by the victors, who continued the pursuit, making dreadful carnage among them, till they reached the

boundary of the forest. Here the terrified fugitives were met by Sir John Butler, at the head of five hundred men. This accession of force obliged the Scots, in their turn, to retreat to their defences—the first of which was carried by the enemy, but at the expense of a considerable number of the bravest of their warriors. The English had now the mortification to find that their opponents had only retired to a second enclosure, from which Wallace, supported by Cleland, Boyd, and a few of the most resolute of his companions, made a sortie, in which, after killing a considerable number, Wallace came in contact with the knight of Lorayne, and at one blow clove him to the chin. His terrified followers shrunk aghast from the ponderous weapon of their gigantic adversary; but urged on by Butler, to revenge the death of their leader, they again crowded round the little band of heroes. Again they were dispersed; and Butler, who had been foremost in the attack, came within reach of the sword of the Scottish champion, which descended with a force that would have cut him to the ground, had not the intervening branch of a tree saved him from the blow, and his men, rushing forward to his assistance, carried him off before it could be repeated. According to some accounts, Butler is said to have been first wounded, and that Sir William de Lorayne was slain in attempting to rescue him from his perilous situation. Whatever may have been the case, the English were so discouraged by the loss of one leader, and the disabling of the other, that they hastily fell back upon the troops left at the entrance of the forest under Sir Gerald Heron. Here a council of war was held, wherein it was proposed to make a simultaneous attack on the defences of the Scots. During the discussion, however, which ensued on the manner of carrying the proposal into effect, Wallace and his companions escaped by the opposite side of the forest, and retreated to Cargyle wood, a situation which afforded them more natural advantages in securing themselves from their numerous assailants.

The English, on the retreat of the Scots, now commenced a strict search after the booty taken from Kincleven Castle. Nothing, however, could be discovered, save the favourite steed of old Butler, which had been left behind in one of the enclosures. On this his wounded son was placed, and the whole cavalcade returned fatigued and dispirited to St Johnstone, leaving one hundred and twenty of their companions dead behind them. Of the Scots, seven were killed, and the rest more or less injured.

From an elevated situation, Wallace had observed the English as they retired to St Johnstone; and, though still smarting from the wounds he had received, returned at midnight to the scene of action with a number of his companions, and dug up the most valuable part of the concealed plunder, which they conveyed to their new retreat, along with whatever arms or other booty the light of the moon enabled them to strip from the dead bodies that lay scattered around them.

A few days after the above rencounter, Wallace is said to have returned to St Johnstone in the disguise of a priest; and a story is told of his having been betrayed by a female, with whom he had become acquainted during his former visit to that place. Repenting, however, of the information she had given his enemies, she disclosed the danger that awaited him just in time to effect his escape. His foes, enraged at the disappointment, again set off in pursuit of him, taking along with them a slough-hound⁷⁹ to assist them in discovering his retreats. A sanguinary battle was again fought, in which Wallace lost nine of his remaining followers, and the English leader about one hundred.

In this retreat of the Scots, their chief is also said to have slain one of his followers, named Fawdon, an Irishman, whom he suspected of treachery. Of this man, Blind Harry gives the following unprepossessing description:

“To Wallace thar come ane that hecht Fawdoun;
Melancoly he was of complexioun,
Hewy of statur, dour in his contenance,
Soroufull, sadde, ay dreidfull but plesance.”

The circumstances of his death, are thus narrated by the same author, who justifies the deed on the plea of necessity:

“To the next woode twa myil thai had to gang,
 Off vpwith erde; thai yeid with all thair mycht;
 Gud hope thai had for it was ner the nycht,
 Fawdoun tyryt, and said, he mycht nocht gang.
 Wallace was wa to leyff him in that thrang.
 He bade him ga, and said the strenth was ner;
 But he tharfor wald nocht fastir him ster.
 Wallace in ire on the crag cam him ta
 With his gud suerd, and strak the hed him fra.
 Dreidless to ground derfly he duschit dede,
 Fra him he lap, and left him in that stede.
 Sum demys it to ill, and othyr sum to gud;
 And I say her, into thir termys rude,
 Bettir it was he did, as thinkis me.
 Fyrst, to the hunde it mycht gret stoppyn be.
 Als Fawdoun was haldyn at [gret] suspicioun;
 For he was haldyn of brokill complexioun.
 Rycht stark he was, and had bot litill gayne,
 Thus Wallace wist: had he beyne left allayne.
 And he war fals, to enemyss he wald ga;
 Gyff he war trew, the Sothroun wald him sla.
 Mycht he do ocht bot tyne him as it was?”

On the first view of the case, there appears a degree of barbarity in the conduct of Wallace, which is quite at variance with that affection and tenderness which he had uniformly displayed towards his adherents; and we cannot help condemning the sternness of that policy which could thus deprive a follower of his life, because worn out with toil, and disabled by wounds, he could no longer keep up with his companions. But, on reflection, we find the lives of Wallace, and of the few that remained of the party, placed in jeopardy by one, who, from his reluctance to make a little farther exertion, when assured that a place of safety was at hand, gave good grounds to suspect that he had become unsound at the core. We may also remark, that being acquainted with the spot where the plunder taken from the English was concealed, Wallace had an additional reason to suspect Fawdon's motives for wishing to be left behind; and it may be urged in support of the justice of this suspicion, that his countryman Stephen, who

introduced him to the little band of patriots, remained the firm and confidential friend of Wallace through all his difficulties. This he certainly would not have done, had Wallace, on *slight* grounds, inflicted death on one who was not only his friend and countryman, but in some degree under his protection. So far, indeed, was Stephen from feeling dissatisfaction at the conduct of Wallace, that he and Kerle lingered behind, and, favoured by the shades of night, which had now set in, mingled with the enemy; and while their general, Sir Gerald Heron, was in the act of stooping to examine the body of Fawdon, whose blood had arrested the progress of the slough-hound, Kerle watched the opportunity, and gave him a mortal stab in the throat with his dagger. The cry of "Treason!" arose among the English; but, in the confusion, the two confederates slipped down unobserved among the underwood that surrounded them, and made the best of their way towards Loch Earne, the well-wooded banks of which afforded them every chance of security. In the interval, Wallace, and thirteen of his followers, all that were now left him, made good their retreat to the deserted Castle of Gask situated in the middle of a wood. This place possessed few advantages that could recommend it as a desirable retreat; but, to men in their desperate situation, the prospect of shelter from the swords of their pursuers was a considerable relief, and though it appeared in a sad state of dilapidation, a number of the apartments were entire; and the courtyard was surrounded by a wall of great thickness, which, broken as it might be in some parts, would nevertheless enable them to make a tolerable defence. With this expectation, therefore, they determined to secure themselves for the night, and trust to their good swords for a path through their enemies in the morning.

CHAPTER VII.

SINGULAR ADVENTURE OF WALLACE IN GASK CASTLE.—KILLS THE ENGLISH LEADER.—ESCAPES TO TORWOOD.—INTERVIEW WITH HIS UNCLE.

After the confusion produced by the death of the English leader had subsided, a party of forty men were despatched with the dead body to St Johnstone; and Butler, who had so far recovered from his wound as to be able to take the field under Sir Gerald, remained, with about five hundred men, to look after the fugitives. With this force he proceeded to secure all the neighbouring passes, and to take such other methods as he thought would prevent their escape.

In the meantime, Wallace and his few remaining friends had put their place of refuge in as good a state of defence as its ruinous condition would admit; and having procured a sheep from a neighbouring fold, they kindled a fire in the courtyard, and prepared for their evening repast. Wallace now wisely considered, from the fatigue his followers had undergone during the day, that however much they might stand in want of refreshment, a few hours repose would be absolutely necessary for recruiting their wearied and exhausted spirits, and rendering them fit for the arduous enterprise that awaited them in the morning. As soon, therefore, as they had allayed their hunger, he ordered them to betake themselves to rest, while he undertook to keep watch by himself.

Surrounded by his sleeping companions, with no light but what the expiring embers afforded, the mind of Wallace became overshadowed with melancholy forebodings. Though in the late conflicts he had destroyed a great number of the enemy, his own little band had been almost annihilated; and, in his present situation, he saw little probability of filling up their places with men on whom he could put the same dependence. Two of his most devoted partisans, Stephen and Kerle, had disappeared; and he had every reason to suppose they were either slain, or fallen into the hands of the enemy. The apathy with which the most powerful of the nobility

continued to witness the exertions of himself and his followers for the independence of their country, filled him with grief and indignation; while, from the loss of so many brave friends in the late encounter, he was apprehensive his few remaining companions would now consider their undertaking as desperate. These reflections, aided by the consideration that he was actually surrounded by a force against which his expectations of success could not be very sanguine, tended to excite the most gloomy apprehensions.

From this state of mind, he was suddenly aroused by the blowing of horns, ⁸⁰ mingled with frightful yells, which seemed to proceed from a rising ground in the neighbourhood. Two of his party were despatched to ascertain the cause of the uproar; but these not returning, and the alarm still increasing, other scouts were sent out, till Wallace was at last left alone, without any one to assist in the defence of the place, if it should happen to be attacked.

It was now past midnight; and the flame that still lingered about the remains of the almost extinguished faggots, continued, at intervals, to throw its pale and flickering light on the ruinous walls of the castle, when Wallace was suddenly startled by the shadow of a human figure. Though broken and indistinct at first, yet the moon, which was slowly emerging from behind a cloud, rendered it every moment more apparent. From the feet to the shoulders, which was all of it that was visible, it seemed to be of uncommon dimensions; and what more particularly rivetted the attention of the forlorn chief, a human head hung dangling from its hand, in a manner that gave it the appearance of something supernatural. While gazing with intense anxiety on this singular object, its hand was slowly raised, and the head, which it held, after striking the helmet of Wallace, fell with considerable violence among the dying embers before him. Snatching it up, he discovered, by the light of the moon, the pale and ghastly features of the “ill-fated Fawdon;” and, turning towards the place from whence it was thrown, he observed the figure of a man endeavouring to descend by a broken part of the wall. In the excitement of the moment, he hurled the head after it, and, drawing his sword, hastened from the castle in pursuit of the strange intruder.

Henry, or his authority, in narrating the above circumstance, gives way to the popular belief of his time, and describes it as the real apparition of the late faithless associate; but this evidently arises from that love for the marvellous peculiar to the age. When stripped of the poetical embellishments with which it is clothed, the story simply appears to have been this:—The English, on coming to the headless body of Fawdon, naturally conceived that the Scots had quarrelled among themselves; and some one thinking it probable, from the size, that the deceased might be Wallace, for whose head a considerable reward was offered, took care to secure the prize. The impatience of Butler for revenge made him think of a night-attack, provided they could discover the enemy; and the horns, therefore, which had been taken from those Scots who had fallen in the conflict, were made use of as a *ruse* to entrap them into the belief, that it was a party of their countrymen coming to their assistance. The soldier, who had got the head into his possession, appears to have been one of the scouts sent in search of the fugitives; and no doubt, eager to ascertain the value of his capture, had ventured forward with more confidence than his companions. Disappointment at finding the Scottish chief alive, no doubt, induced him to throw the head; and the terror which his name inspired made him likewise think it prudent to effect his retreat.

Though the horns still continued to sound, Wallace was too cautious to reply, but wandered about the forest, searching in silence for his lost companions. His efforts, however, were unavailing; and, at the dawn of the morning, he found himself on the verge of the forest. Here he was observed by Butler, who had rode out to view the posts. Dissatisfied with the answer returned to his challenge, the English leader drew his sword, and urged forward his steed. Wallace advancing from under the shade, which partly concealed him, Butler saw, with astonishment, the formidable foe he was in quest of, and prepared to fall back on his nearest position. His retreat, however, was anticipated by a blow which struck him from the saddle, and, before he could recover himself, the sword of his powerful antagonist had levelled him with the dust. Our hero had just reached the stirrup of his fallen enemy, when he observed an Englishman, armed cap-a-pee, advancing in full career towards him, with his spear in rest. By a dexterous management of his horse, he avoided the stroke; and whilst his foe, unable to recover himself, was hurrying past, he lent him a blow on the neck, which sent him headlong to the ground. The alarm was now spread among

the English, whom Wallace observed collecting from various quarters to intercept his retreat. Giving the rein to his charger, he shot like an arrow through a straggling party of horse that seemed the least formidable, but who, on recovering from their surprise, set off in full pursuit, followed by the whole of their force.

Though, from his superior knowledge of the country, Wallace was frequently enabled to distance his pursuers; yet the keenness with which they kept up the chase, obliged him several times to turn and act on the offensive. As this was always done in situations where he could not be surrounded, those that were most forward paid dearly for their temerity; whilst the suddenness and fury of his repeated attacks spread a panic to the rear of his enemy, from the idea that he had met a reinforcement of his countrymen. Before the shades of evening had set in, twenty of the English were strewn along the line of his retreat; and those who were foremost, had become very cautious in approaching within reach of his arm. A rising part of the ground had, for some time, hid him from their view; and when they again came in sight of him, he appeared leading his jaded and breathless steed up a steep and rugged pass between two craggy precipices. Though he was soon again obscured in the shades of twilight, from the exhausted state of his horse, they saw little probability of his being able to effect his escape. Having with difficulty followed in his tract, they found, on descending a precipitous defile, an extensive morass spread before them, far as the eye could penetrate, at the edge of which lay the steed of their late commander, expiring from the wounds and fatigue it had encountered; but the object of their pursuit was nowhere to be seen. Strong picquets were sent out in every direction, but all their exertions were fruitless; and they returned at midnight to their head-quarters, without obtaining the slightest trace of the fugitive.

It has been mentioned, in the early part of our history, that the juvenile years of our hero were spent with a brother of his father, a wealthy ecclesiastic at Dunipace in Stirlingshire. Though he was withdrawn from the protection of this relative at an early age, yet he had been long enough under his roof to endear himself to all the servants and dependants. One of the former, a widow, now lived with her three sons in a secluded part of the Torwood, then an extensive forest in Stirlingshire. In the cottage of this woman, Wallace had in former emergencies found a place of concealment

from his enemies; and on this occasion, about the dead hour of night, the faithful inmates were startled by the well-known signal at the window. Never did their heroic guest appear before them in greater distress; exhausted from fatigue, faint with hunger, his armour encrusted with blood, and every part of his dress drenched with water, showed the hardships and perils he had undergone.

After quitting his pursuers at the morass, he had, by a passage unknown to them, crossed over to the other side, and made the best of his way towards the Forth. A large force of the enemy, however, occupied Stirling, and he was therefore compelled to take the river at Camskenneth. After much difficulty, from the weight of his armour, he succeeded in gaining the opposite bank, and proceeded forward on his journey, satisfied that he had got considerably the start of his pursuers.

In the neighbourhood of the house where he had now taken refuge, was an oak⁸¹ of huge dimensions, in a cavity of which he had frequently concealed himself from his enemies, when the search was too close to allow of his remaining within doors. To this retreat he now repaired, after partaking of that refreshment which his situation so much required. One of the widow's sons was despatched to acquaint his uncle with his safety, and to request his assistance; while another was sent off towards the scene of his late conflicts, to obtain, if possible, some intelligence of his lost companions.

The morning was pretty far advanced, when Wallace was awakened from his sleep by the sound of voices, and, starting to his feet, found his uncle and two of the widow's sons engaged in conversation, one of whom had been watching him during his sleep. His uncle, taking him by the arm, led him apart from the others, and began to inquire into his situation, representing to him, at the same time, the difficulties he was still likely to experience if he continued to persevere in so hopeless a cause. "Your followers," added he, "are now either slain or dispersed, and all your efforts in the district you have been in, have not procured you a single friend to replace those you have lost; the plunder you have taken has either been recaptured, or left in places where it would be madness to hazard yourself in regaining it. Besides, were you even successful, to your utmost wish, in expelling the English from our country, do you believe that so powerful, so

ambitious a prince as Edward, one who is considered the most accomplished warrior of his age, would allow the laurels to be torn from his brow by the son of an obscure Scottish laird? Would not the whole force of his mighty kingdom, assisted, if necessary, by his foreign auxiliaries and vassals, be poured upon our devoted country? Would not the inhuman butcheries which were witnessed at Berwick be again renewed in all our cities? Have we not already had too much experience of his cruelty, to think of increasing our misfortunes by fresh provocations? Listen, therefore, my dear son, to what I am authorized to propose to you. You are aware, that those men, whose duty and interest it was to have defended our country, have submitted to our enemies; if you will, therefore, give over your fruitless hostility to Edward, and acknowledge him as your liege Lord you will, in place of skulking from covert to covert, have it in your power to become the most powerful vassal of his crown.”

Before his uncle had time to explain, Wallace withdrew his arm from his grasp. “My situation,” said he, “is gloomy enough, but not so desperate as you imagine. I regret nothing that has yet happened, save the loss of my gallant friends; but I know where the sound of my horn can still call forth as many resolute spirits as will enable me to revenge their fall. Those who have joined me, know that the liberty of our country is the only object I have in view; and they also know, that I have always been as ready to expose my own life as theirs in the quarrel. The liberty which an unprincipled usurper is endeavouring to deprive us of, is the birthright we have inherited from our ancestors, and which belongs to our posterity, to whom it is our duty to transmit it. If we perish in doing so, we perish in doing what is right; and that God, who made us free men, will avert the scenes you dread, if we show ourselves worthy of his gift. If, on the contrary, we basely surrender what we only hold in trust for our children, the galling yoke of slavery will be a just retribution for defrauding them of their sacred inheritance. As to the proposal, come from whom it may, you can acquaint them, that the destruction of a single enemy of my country’s independence affords me more pleasure than all the wealth which our proud oppressor has it in his power to bestow. Have you forgot, uncle,” said he, while his stern features relaxed into a smile almost sarcastic—“have you forgot

“Dico tibi verum, libertas optima rerum:

Nunquam servili, sub nexu vivito, fili—”⁸²

“have you forgot those sentiments which you was at such pains to impress on my mind in the halcyon days of my childhood,⁸³ when peace was in all our borders, and every man sat under his own vine and fig-tree, enjoying the fatherly protection of a righteous sovereign? And is there to be no effort, no sacrifice made to bring again those days to our poor distracted country?” He was proceeding, when the old man’s eyes became suffused, recollections of the past crowded upon his mind, and he threw himself on the breast of his nephew.

While Wallace was thus engaged with his venerable relative, he was agreeably surprised to see his two friends, Kerle and Stephen, advancing towards him, accompanied by a son of his kind hostess. After mutual congratulations and expressions of joy, for the unexpected meeting, had passed between them, they communicated to each other the particulars of the events that had taken place since their separation; and, after receiving the benediction of the priest, and returning thanks to the Virgin, they retired to consult about their future operations.

CHAPTER VIII.

WALLACE JOINED BY SIR JOHN GRAHAM.—PROCEEDINGS IN CLYDESDALE.—
WALLACE VISITS LANARK.—ADVENTURE WITH A PARTY OF THE ENGLISH.

It appears, that an oath similar to that which Sir Raynald Crawford had been compelled to take, against holding correspondence with, or affording assistance to Wallace, had also been forced upon his other relatives, as we find the widow alluded to in the foregoing chapter made the instrument of conveying to him the proofs of his uncle's affection.

Having, by her means, been supplied with a considerable sum of money, as well as horses for himself and his companions, they set forward, accompanied by two of her sons whom she devoted to the cause, toward those districts where they had reason to expect a more cordial co-operation, than what they had experienced in the neighbourhood of St Johnstone.

At the suggestion of his uncle, Wallace visited Dundaff Castle, on his way towards Clydesdale. This fortress, with the lands of Dundaff, Strathblane and Strathcarron, belonged to Sir David, or according to others, to Sir John Graham, an old warrior, who, in his early years, had recommended himself by his gallantry to Alexander, Lord High Steward of Scotland, by whom he is supposed to have been intrusted with an important command at the battle of Largs. His son and heir, Sir John, received, when but a stripling, the honour of knighthood at Berwick, on account of his conduct in a border feud with the Percys of Northumberland. During three days which Wallace passed at Dundaff, he and his companions experienced the most unbounded hospitality; and the old chieftain saw, with delight, those feelings of admiration and friendship with which his son and their noble guest appeared to view each other. Before the departure of the latter, Sir John, with the consent of his father, devoted himself to the cause of his country's independence, by swearing fidelity to Wallace as his chief, and would have instantly accompanied him, but it was deemed more prudent to remain with his father, till he was apprised of the number of followers

Wallace could muster in Clydesdale. Meantime, he was to hold himself in readiness to advance, with his father's vassals, as soon as he should receive intimation. After mutual expressions of friendship, Wallace proceeded on his journey, and lodged the same night at Bothwell, in the house of one Crawford, from whom he received information of the state of the country and the strength of the enemy. The following night he reached Gillbank, in the neighbourhood of Lanark, where he remained with a near relation of his own; and from thence he despatched Stephen and Kerle, one to the west, and the other to the north, to acquaint his friends of his situation, and appoint a time and place to meet him.

It seems about this time a report had been circulated among the English, that Wallace had been slain in a mutiny of his followers. This rumour, no doubt occasioned by the circumstances attending the death of Fawdon, had reached Percy, along with the accounts of the destruction of Kincleven Castle, and the slaughter of Butler and the other English officers; but though he did not give it implicit belief, there was a degree of credit attached to it, particularly by the English in the upper part of Clydesdale, that caused our hero to be less taken notice of when he appeared among them. This was particularly serviceable to him in the visits which he now made to Lanark. We have already alluded to an attachment which Wallace entertained for a young gentlewoman of that place. A degree of obscurity hangs over the history of this amour. It is supposed, by those writers who have taken notice of the subject, that the parties had been privately married shortly after the battle of Beg, during the time that he remained in the forest of Clydesdale, and that the ceremony was performed by John Blair, but whether in the church, or under the "Greenwood Tree," is no where stated. Be that as it may, his situation was too precarious to allow him to remove her from her present residence. His visits were, therefore, made with the utmost secrecy, in such disguises, and at such hours, as would best enable him to escape the notice of his enemies. Meanwhile his sword was not allowed to rust. He and his companions were continually on the watch for stragglers from the English quarters; and as they always attacked them in situations where none could escape, their mysterious disappearance excited the greatest alarm among their countrymen. Various anecdotes are still in circulation among the peasantry of the Upper Ward of Lanarkshire, regarding exploits performed by him about this time. Among others, there is a story still handed down, of the severe retaliation he inflicted on a party of

Englishmen, who, having come to the same inn at which he and his companions were refreshing themselves, had played off a barbarous attempt at waggery, by cutting the tails from the horses of the Scots. Blind Harry alludes to this circumstance; and the following address, which Wallace is represented as having made to their captain, before he cut him down, may be considered as no unfavourable specimen of the humour of the man:

“Gud freynd, abid,
Service to tak for thi craft in this tyde.
Marschell, thou art with out commaund off me;
Reward agayne, me think, I suld pay the;
Sen I off laitt, now come owt off the west
In this cuntré, a barbour off the best
To cutt and schaff, and that a wondyr gude;
Now thow sall feyll how I oyss to lat blude.”

According to some accounts, the above transactions is said to have occurred at Lochmaben, and that he was afterwards pursued by Sir Hew of Moreland, who traced the Scots to the Knock-wood by the blood that still continued to issue from their horses. Wallace being here joined by sixteen of his followers who had been lurking in the wood, an engagement commenced, in which, though greatly superior in numbers, the English were defeated, and Sir Hew, with near twenty of his men, were slain. This account is confirmed by a tradition still current in the neighbourhood; and is thus mentioned in the Statistical Account of the Parish of Kirkmichael. “There are several indistinct remains of ancient fortifications, but no tradition about any other than a small fort in the Knock-wood, called Wallace’s house, said to have been thrown up by Sir William Wallace after he had slain Sir Hew of Moreland and five of his men, at a place still named from that event, the ‘*Sax Corses*,’ i. e. the six corpses, and where there are two or three large stones which seem to have been set up in remembrance of some great transaction.” Tradition may be generally relied on when it marks the spot where any remarkable occurrence has taken place; yet the circumstances connected with it are often mis-stated. The rude defence alluded to, under the name of Wallace’s House, may have been either hastily formed during the advance of Moreland and his party—as they are said to have been seen for some time before they reached the position occupied by the Scots—or possibly it may be the remains of some strength

used in former wars. Wallace only seems to have availed himself of it to protect, for the moment, his little band from being overpowered by their numerous assailants; for we find him immediately after this victory obliged to quit Knock-wood. Those Englishmen who escaped, having fled to Lochmaben Castle, a detachment of three hundred horse were ordered to go in pursuit, under the command of one Graystock, an officer who had lately arrived from England with a strong reinforcement to fill up the deficiencies which Wallace had made in the garrisons. Ignorant in a great measure of the talents and prowess of the man he had to contend with, he upbraided his fugitive countrymen with cowardice, when they recommended caution to him in operations against so wary an adversary, and bent on chastising what he termed the insolence of the freebooter, pressed forward with the greatest expedition.

The Scots having supplied themselves with the horses of their slain enemies, were preparing to advance into Clydesdale, near the confines of which Wallace had appointed to meet his trusty associates, Kerle and Stephen, with those friends who had promised to join him, when the formidable array of Graystock came in sight, at full gallop. Wallace now ordered his men to form, and retire with deliberation, taking care to keep their horses in breath, while he remained in the rear to repress any sudden attack that might be made. As the enemy advanced, Wallace, mounted on the horse of Moreland, kept in front of them, and rode, with so much *sang froid*, occasionally looking over his shoulder, that an uninterested spectator might have supposed he was rather leading the English party on, than watching for a favourable opportunity of attacking them, while the terror of his name prevented any of them from moving from their ranks. They had thus contrived to follow the retreating Scots for some time, when Graystock ordered a movement, by which he imagined he would be able to surround Wallace and his little band. At this juncture Sir John Graham suddenly appeared with about thirty horse, followed by Sir Roger Kilpatrick of Torthorowald, a near relation of Wallace by the mother's side, who, in obedience to the message by the faithful Stephen, had taken the field with twenty of his tenantry. Wallace received these worthy confederates with three cheers, and instantly set them an example, by charging through the centre of the enemy: his friends having put themselves in array, pushed forward at their utmost speed, and soon completed the confusion he had commenced. The left wing of the enemy was thrown into disorder before

the impetuous charge of the Scots; and Sir John Graham was busily employed in pursuing and cutting down the fugitives, when Wallace came up with him, and represented the impropriety of killing the common soldiers while their leaders were escaping; pointing out to him a body of one hundred of the enemy, which Graystock was endeavouring to keep entire, and recommended, as his horse were still in good condition, to charge and disperse them. Sir John quickly arranged his little squadron, and prepared with alacrity to execute the commands he had received. Wallace, who seldom gave orders which he did not see executed, was soon in the fray. The charge of Graham had been too impetuous to be withstood. Wallace found the enemy in confusion, and Graystock engaged hand to hand with the young knight of Dundaff. The conflict for a few moments remained doubtful, but the superior strength and dexterity of Graham soon became apparent; and the fall of the English leader was the signal of flight for his followers, who sought refuge in the place whence the Scots had been lately driven.

The victors were hastily recalled from the pursuit by the horn of their chief. Having collected them around him, he complimented them on the valour they had displayed, and proposed that they should instantly attack the Castle of Lochmaben; representing to them, that as the garrison had already been put to flight, if they could reach it before the fugitives returned, the plunder they might find would amply reward the labours they had undergone. The proposal was joyfully received; and they instantly set out under the guidance of a person well acquainted with the intricacies of the country.

As their chief expected, the fortress had been left to the care of the porter and a few invalids, who were easily overpowered; and this place they found well stored with abundance of every thing their situation required. While enjoying themselves after the fatigues of the day, the remains of their discomfited enemies were observed hastening towards the castle. Orders being immediately given for their admission, on reaching the castle-yard, they were surrounded by the Scots, and, after a short conflict, indiscriminately put to the sword.

The fortress, which had thus unexpectedly fallen into their hands, was deemed so important an acquisition, that Wallace thought it advisable to leave a garrison in it. He then took his departure, accompanied by Sir John

Graham, Kerle, Stephen, and a few other worthies, for the forest of Clydesdale.



CHAPTER IX.

ATTACK ON CRAWFORD CASTLE.—RETURN TO LANARK.—CONFLICT WITH THE ENGLISH.—MURDER OF THE HEIRESS OF LAMINGTON.—HER DEATH REVENGED.—THE ENGLISH DRIVEN OUT OF LANARK.

The Castle of Lochmaben is supposed to have been the first fortress in which Wallace ventured to place a garrison; and it is probable he was enabled to do so, in consequence of a great many in the neighbourhood having joined his standard, encouraged no doubt by his late successes. This supposition is confirmed by the circumstance of his leaving behind him a few of those who had been in the engagement with Graystock.

While the insurrection was thus spreading in Scotland, Edward was prosecuting his views against France. The accounts of the proceedings of Wallace occasionally reached him, and arrested his attention in the midst of his victories; and though he felt no immediate apprehension from the attempts of the freebooter, as he was pleased to call the patriotic leader of the Scots, yet he considered him such an enemy as it was not altogether prudent to neglect.

The applications, therefore, which were made from time to time, by Percy and others intrusted with the management of Scottish affairs, were promptly attended to, and the requisite supplies forwarded to the different garrisons. Part of these supplies, as has been already hinted, had reached Lochmaben before the late rencounter; most of the other fortified places had received their quota; and the garrison of the Castle of Crawford were in daily expectation of their proportion.

This fortress, which had belonged to the maternal ancestors of Wallace,⁸⁴ attracted his attention. Having learned, from a female whom he stopped on the moor, that the garrison, which consisted of about twenty men, were carousing in an hostelry in the neighbourhood of the castle, he proposed to Sir John Graham to attempt a surprise. For this purpose, he

directed Graham to follow slowly with the others under his command, while, with a companion, he went forward himself to observe the condition of the revellers. On approaching the door, the language within had become sufficiently audible; and he soon ascertained that he and his exploits were the subject of discussion; their captain, one Martindale, in the heat of his pot-valour, declaring to his men the pleasure which the presence of Wallace would afford him. Finding himself in request, the fearless Scot stepped forward. The “Benedicities” on both sides were brief. Wallace plied his weapon with his usual effect; and, aided by his companion, the maudlin braggadocio and his fellows were soon overpowered. Meanwhile, Sir John Graham, who had reached the door during the contest, was ordered off to secure the castle;⁸⁵ which duty, from the small number of its defenders, he easily performed.

Having burnt the castle, and divided the spoil among his followers, Wallace retired to Lanark, on purpose, it is supposed, to concert measures for withdrawing from that place the object of his affections, and placing her in some retreat less exposed to the exactions of Hazelrig.

On this occasion, our hero, for the more effectually disguising himself,⁸⁶ had thrown a green mantle over his armour, which he fastened with a belt, from which depended his sword. At the entrance of the town, his dress, and particularly the uncommon length of his sword, attracted the notice of some of the soldiers belonging to the garrison; and one of them, more insolent than the others, made a snatch at it. Wallace evaded the attempt to deprive him of his weapon; when a sarcastic⁸⁷ dialogue ensued, which soon ended in blows; and the English, seeing their companion no match for the Scot, rushed forward to his assistance. Hemmed in on all sides, Wallace became roused into fury, and dealt his blows around him with fearful and destructive energy. His ponderous blade descended with rapid and crashing effect among the bucklers and head-pieces of the enemy, who had begun to retire in confusion, before his irresistible arm; when others arriving, who were unacquainted with the foe they had to contend with, rushed headlong to the fray. Experience, however, soon taught them to be more cautious in their advance; and Wallace had set them completely at bay, when young Hazelrig came on with a fresh party to their assistance. Thus re-inforced, and eager to revenge their companions, they were now

fast gathering round our hero, when a door facing him suddenly opened, and a fair hand beckoned him from the *melée*. Wallace quickly embraced the means of escape thus afforded him; and the door being instantly shut against his enemies, gave him an opportunity of saving himself by an outlet behind the house.

Old Hazelrig,⁸⁸ or, as Wyntown calls him, the Sheriff, was not in Lanark at the time of this affray; but, on hearing the account of it, and learning the number of English who had been killed, he hastened to town, and caused the fair orphan of Lamington to be brought before him. On discovering her connection with Wallace, and the assistance she had so opportunely afforded him, in a paroxysm of rage and disappointment, he ordered her for instant execution.

In the account of this affair, we have adhered to the statement of Wyntown,⁸⁹ who adds, that Wallace, from a place of concealment, had the heart-rending misfortune to be a spectator of the execution of his mistress, without having the power of attempting a rescue. This would not have been the case, if he had, as the Minstrel says, been attended by Sir John Graham, and twenty-four of his associates. Wyntown represents it as a mere personal adventure of Wallace; and states, that, *after* the melancholy catastrophe, he went in search of his friends, to assist him in revenging the atrocity. Having collected thirty of his followers, he returned with them, for that purpose, to Lanark. At the dead hour of night, the door of the sheriff's apartment was burst from its hinges, and the iron-grasp of Wallace awakened Hazelrig from his sleep. On being dragged headlong to the street, after a stern reproof for his cowardly conduct, the trembling victim instantly received the reward due to his villany. The alarm now spread, and the garrison soon engaged with Wallace and his party; but deeply incensed at the late disgusting act of barbarity, the people of Lanark rose *en masse* against their oppressors, who, unable to stand their ground, were soon overpowered, and driven with great slaughter from the town.

The inhabitants of Lanark, having thus identified themselves with the cause of Wallace, saw no alternative left them, but to join heart and hand with the avenger of their country's wrongs; and the number that now flocked to his standard enabled him to take the field openly, and bid defiance to the enemy. Indeed, so formidable was the force under his

command, that he met and defeated a considerable body of the English in a regular engagement in the neighbourhood of Biggar. It has been alleged, that, on this memorable occasion, Edward commanded in person; but such could not have been the case, as the English monarch was not in the country at the time. That a considerable battle was fought in the neighbourhood, there is reason to believe, as well from current tradition, as from the number of *tumuli* which are still to be seen. In the statistical account of Biggar, the subject is thus taken notice of:—"At the west end of the town is a tumulus, which appears never to have been opened; and there are vestiges of three camps, each of a roundish figure, at different places in the neighbourhood. There is a tradition of a battle having been fought at the east of the town, between the Scots, under Sir William Wallace, and the English, who were said to be sixty thousand strong, wherein a great slaughter was made on both sides, especially among the latter."

These accounts, however, are decidedly at variance with truth, both in regard to the amount of the English, and the person who commanded. It is more probable, that the enemy did not exceed eight, or at most ten thousand men, part of which appears to have been under the command of Roden, Lord de Whichenour. On the side of the Scots, Sir Walter Newbigging,⁹⁰ already referred to, headed a body of cavalry. His son David, a youth, at that time little more than fifteen years of age, held a command under him, and the well-tried military talents of the father were not disgraced by the efforts of the young patriot, whose conduct on this occasion was afterwards rewarded by the honour of knighthood, probably conferred by the hand of our hero himself. The family of Newbigging, as has already been noticed, came originally from England; and Sir Walter and his son, on this occasion, found themselves opposed to their near kinsman, the Lord of Whichenour.

At the head of what might now be called an army, Wallace kept the field; and the celerity of his movements confounded all the calculations of the enemy. While the main body of his forces appeared in their formidable intrenchments, occupying the attention of the English, distant garrisons were surprised, and put to the sword by foes, who seemed to spring up as it were within their walls, and of whose approach they had not the slightest intimation.

About this time, one of those iniquitous acts, so often met with in the cold-blooded and relentless policy of Edward, was perpetrated at Ayr, against the barons and gentry of the west of Scotland. This part of the country had been the nucleus, as it were, of the insurrection; and the ill-disposed and well-affected had now become equally objects of suspicion to the usurper's government. Under the pretext of holding a Justice-Aire, they were summoned to attend; and those who appeared (among whom were Sir Raynald Crawford, Sir Bryce Blair,⁹¹ and Sir Hugh Montgomerie) were treacherously seized, and hung up without even the formality of a trial.

Wallace heard of the infamous proceeding, and determined on severe retaliation. Selecting fifty of his confederates, he hastened to the spot, and being joined by a number of the retainers of the murdered gentlemen, they surrounded the buildings where the English were cantoned, and who, indulging in fancied security arising from the terror which they imagined the late severity was likely to impress upon the Scots, had, after a deep carousal, betaken themselves to rest, little dreaming of the vengeance that awaited them.

Having procured the necessary combustibles, Wallace, after disposing of his men, so as to prevent the escape of any of the English, set fire to the thatch, which being covered with pitch, the flames soon spread to every part of the buildings, and rose in one general conflagration; while the screaming wretches within vainly attempting to escape, were received on the points of the Scottish swords, and either killed, or forced back, to perish in the devouring element. It is said, that five hundred of the English suffered in this lamentable manner. The severity of the retaliation can only be palliated by the nature of the war the parties were engaged in, and the desperation to which the cruelty of the invaders had goaded on the wretched inhabitants. If tradition may be credited, Wallace did not remain till the flames were extinguished; for, when about two miles on his return, at an elevated part of the road, he is said to have made his men look back on the still blazing scene of their vengeance, remarking, at the same time, that "The barns of Ayr burn weel." The ruins of a church are still to be seen on the spot where the chief and his followers stood to take their last look, and which is named from the circumstance, "*Burn weel Kirk*."⁹²

CHAPTER X.

WALLACE JOINED BY A NUMBER OF THE BARONS.—EXPEDITION TO THE WEST HIGHLANDS—BATTLE OF BRADHER, AND DEATH OF M'FADYAN.—AFFAIR OF GLASGOW.—DEFEAT AND FLIGHT OF BISHOP BEK.

A.D. 1297. About this time Sir William Douglas took the Castles of Dresdier and Sanquhair, as already stated in the short notice we have given of his exploits. In conjunction with Wallace, this active and powerful baron, assuming the sanction of the name of Baliol, endeavoured to enforce the edict for the expulsion of the English ecclesiastics holding benefices in Scotland. This edict, issued between the time of the taking of Berwick and the Castle of Dunbar, had been rendered nugatory by the suppression of Scottish independence. It was now, however, executed with the utmost rigour, wherever the influence of the insurgents extended. In pursuance of this object, Wallace, at the head of three hundred choice cavalry, proceeded to Glasgow to dislodge Bishop Bek, who, with a garrison of one thousand men, kept possession of the town and episcopal castle, belonging to Robert Wishart, the Scottish Bishop of that place.

As the Scots drew near the spot against which their operations were directed, Wallace divided his followers into two bands. Taking the command of one himself, he committed the other to the guidance of his uncle, the Laird of Auchinleck. "*Whether,*" said our hero to his gallant kinsman, "*do you choose to bear up the Bishop's tail, or go forward and take his blessing.*" Auchinleck at once understood the intended plan of attack, and proposed assailing the rear of the English, resigning the more honourable post to the merits of his nephew, "*who,*" as he jocularly observed, "*had not yet been confirmed.*"

Having received the necessary instructions, Wallace enjoined him to be diligent; "*for,*" said he, "*the men of Northumberland are all good warriors.*" The parties separated; that under Auchinleck to make a compass round the town, so as to get in rear of the enemy; and the other, under the conduct of

Wallace, advanced up the principal street leading to the castle. Their approach, however, had been discovered; for, when near the present site of the college church, the Scots came in contact with the English, and the inhabitants had scarcely time to shelter themselves in their houses, before a dreadful conflict commenced. The powerful and warlike prelate with whom our patriots had to contend, possessed a feudal following of knights and esquires, inferior only to that of Edward himself. The narrow street, however, in which they were engaged was in favour of the Scots; and the sword of Wallace told dreadfully on the helmets and headpieces of the enemy. The manner in which he swept his antagonists before him, is still a matter of tradition among the descendants of the early inhabitants of Glasgow. Though the enemy fought with obstinacy, the gallantry of the Scots sustained them against the efforts of their numerous opponents; and in the heat of the engagement, Wallace having unhorsed Henry of Hornecester, a stout monk, who carried the banner of the Bishop,⁹³ this circumstance damped the ardour of some of the superstitious vassals of the prelate, who now fell back before a vigorous charge of the Scots. At this juncture, those under Auchinleck having reached the elevated ground in the rear of the English, and seeing the turmoil of battle that was raging below, hastily arranged themselves for the charge, and, before the enemy were fully apprised of their danger, the torrent of spears came rushing down upon them with overwhelming impetuosity. Their dismay was now complete. A hasty and disordered retreat ensued, and the by-ways leading from the High-street were so choked up by the fugitives, that a number of them were trampled to death by their companions. Bek⁹⁴ effected his escape, with about three hundred horse, and directed his flight towards England, carrying with him, it is supposed, the sacred banner of St Cuthbert and that of St John of Beverly.⁹⁵

While Wallace was thus employed in expelling the English ecclesiastics from the west of Scotland, Sir William Douglas was engaged in forwarding the same object in the south. In these proceedings they are charged by the English authors with extreme cruelty. "The unhappy priests," says Knighton, "had their hands tied behind their backs, and in this helpless state were thrown from high bridges into rivers, their dying agonies affording sport to their merciless captors." Fordun merely says, that Wallace

pretended to execute the edict of 1296, which appointed all English ecclesiastics to be expelled from Scotland. On which Lord Hailes remarks, “I hope this is not true; it has too much the appearance of a political pretext, by which defenceless individuals might be persecuted.”⁹⁶ There was little occasion for his Lordship’s sympathy. The thirteenth century was not the period when *churchmen* were the objects of *causeless* persecutions. Their expulsion appears to have been the result of their political intrigues and criminal interference with the records of the country intrusted to their charge. And from their placing these documents in the hands of Edward at Norham, he was enabled to give a colouring of justice to his attempts upon the independence of Scotland. The evidence which these falsified muniments afforded is mentioned by Langtoft,⁹⁷ as being submitted by Edward to the English barons for their advice before the business of the submission respecting the Scottish crown was entered upon. When the Scots reflected on the many thousands of their nation, of all ages, who had already been butchered at Berwick and Dunbar,—the oppressions that had followed,—the apparently interminable war entailed upon them in support of the pretended proofs of the supremacy of England; it is not to be wondered at, that they should attempt to get rid of those canker-worms who had nestled in their country, and ungratefully betrayed its sacred and most invaluable interests. The edict was early published, and at a time when it could serve no other purpose than a protest against the baseness of their conduct. When the insurrection, therefore, broke out under Wallace, it was not to be expected that individuals who had rendered themselves so deservedly obnoxious, would be treated with much lenity, if they still attempted to retain their temporalities at the expense of the people they had endeavoured to enslave.⁹⁸

Wallace, uniting his forces with those under Douglas, now made a rapid march upon Scone, expecting to surprise Ormsby, the Justiciary of Edward, who was holding his courts in that place. The attempt was all but completely successful. They came unexpectedly on the enemy, a great many of whom were either killed or taken prisoners, and a rich booty fell into the hands of the Scots. Ormsby narrowly escaped; and, impressed with terror at the late dreadful acts of retaliation, fled with precipitation to England. Encouraged by these successes, a number of the aristocracy joined the

banner of our hero, among whom were the Steward of Scotland, his brother the Knight of Bonkill, Alexander de Lindsay, Sir John Stewart of Rusky (or Menteith), Sir Richard Lundin, and Robert Wishart, Bishop of Glasgow, whom he had so lately relieved from the obnoxious interference of the Bishop of Durham. In consequence of this timely assistance, Wallace was enabled to undertake an enterprise of considerable importance.

The reader will perceive, by the annexed note,⁹⁹ that though Edward had made a triumphal march with his army from Berwick to Elgin; yet that interesting and extensive portion of Scotland, comprising the West Highlands and Islands, had never been profaned by the foot of the usurper. This may have been partly averted, by most of the chieftains coming forward and taking the oath of allegiance, and partly by the extreme difficulty of leading a numerous army through a country so intersected by arms of the sea, and rendered almost inaccessible by its rocky and mountainous barriers. In order to have some control over a people so isolated, the policy of Edward at first suggested the idea of carrying along with him those chieftains whose influence was considered the most extensive. This measure, however, he soon perceived was not so effectual as he anticipated, and he accordingly determined on sending a colony of Irish to fix themselves in some central part of the country he wished to overawe. With this view he compelled MacDougal of Lorn, whom he had carried with him to London, to exchange his patrimony for an equivalent of lands belonging to himself.

Having effected this, he gave a grant,¹⁰⁰ of no very certain limits, to a creature of his own named M'Fadyan, who, with a tumultuous horde of Anglo-Irish and renegade Scots, amounting to about fifteen thousand, landed in Lorn, and proceeded to ravage the country with fire and sword,—committing the most revolting atrocities on such of the inhabitants as refused to join them. Much obscurity hangs over the birth, connections, and character of the leader of this cloud of locusts. According to Blind Harry, his origin was low, although high in favour at the English court. He seems to have held some situation of importance in Ireland, as the Minstrel, referring to those Irish refugees who took shelter in Scotland under Wallace, says,

“Sum part off tham was in to Irland borne,
That Makfadyan had exilde furth beforne:
King Eduuardis man he was suorn of Ingland,
Off rycht law byrth, supposs he tuk on hand.”

Buke Feyrd, 180.

Having talents and ambition he allied himself to the enemies of his country, and, like other mushrooms, throve amid the rankness of that corruption with which he had surrounded himself. A wretch that had risen by oppressing and assisting to bind the necks of his free-born countrymen to the yoke of slavery, was a very fit instrument to employ in forwarding the views of Edward in the subjugation of Scotland.

He had not, however, proceeded far before the *Crann-tàir*, or fiery cross, was seen hurrying on, by hill and glen, to gather the children of the Gaël to repel their savage assailants. Duncan of Lorn, the uncle, or, according to some, the younger brother of the chief, unable to withstand the superior force of the enemy, had retreated towards Loch-Awe, to obtain the protection of Sir Niel Campbell. This brave man, along with his brother *Donnchadh dubh nan Caisteal*, (Black Duncan of the Castles), had collected a body of three hundred *Gall-oglaich* (well armed warriors) part of whom were the vassals of Malcolm MacGregor of Glenurchy.¹⁰¹ With this force he continued to embarrass the enemy, by attacking their foraging parties and cutting off their supplies. This determined MacFadyan to follow him through the fastnesses of the country, and endeavour to overwhelm him by his superior numbers. Sir Niel managed his retreat with great dexterity. After leading his unwary adversary round by the head of Bradher Pass, he hurried down that dangerous and difficult defile, and, crossing the narrow and ill constructed fabric which served for a bridge, he broke it down; and thus being secure from immediate pursuit, found himself in one of the strongest positions imaginable. His front was defended by a castle, which commanded the only approach by which he could be assailed; while his rear was protected by the Awe, a deep and rapid river, running out of a loch of the same name. The almost perpendicular barrier of rocks which lined the side of the Awe—down which, as has already been mentioned, Sir Niel and his party had to make their way, before they could place the river between them and their pursuers—was of such a nature, that a man could not get on

without the assistance of his hands, to prevent him from slipping down into the deep and eddying abyss below; and even with this assistance, at the present day, it is a passage of considerable danger, from the enormous masses of loose stones with which the sloping face of the rocks is covered, from the brink of the water to their summits, which are of great elevation. The least accidental derangement of the stones at the bottom, never fails to put those above in motion, when an immense rush takes place, attended often with serious consequences to the parties underneath. The reader may readily conceive the facility, therefore, with which, thus circumstanced, Sir Niel and his followers could, from the opposite side of the river, retard the advance of even a larger army than that of M'Fadyan. The difficulty of the pass is not perceptible till the angle of the rock is fairly turned, consequently the Irish army had no opportunity of covering their advance by discharging their missiles. They were obliged to follow each other singly; thus affording, as they came creeping along, fair marks for the arrows of the Scots, part of whom plied their deadly shafts, while others were engaged in throwing stones from their slings against the face of the rocks, and thus bringing down masses of the loose fragments upon the heads of their already embarrassed pursuers.

The castle to which Sir Niel retired, though small, possessed great natural advantages. Situated on a rocky knoll at the edge of a deep ravine, it could only be approached from the road through which M'Fadyan had to advance, and that by means of a ladder which the party within always kept on their own side. When they wished to admit any one, a rope was thrown over that he might pull the ladder towards him; he then descended to the bottom of the ravine, when, placing the ladder against the opposite rock, in this manner he ascended and reached the castle. ¹⁰²

When Sir Niel Campbell had determined on his line of retreat, he despatched Duncan of Lorn, and an old, but swift-footed Highlander, named Michael or Gillemichel, to acquaint Wallace of his perilous situation, and to crave his aid in driving the invaders from the country. Wallace, aware of the importance of preventing the establishment intended by Edward, lost no time in complying with the request of his old confederate; and Sir Richard Lundin having joined him with five hundred men, he now found himself enabled to march to the relief of the West Highlanders, at the head of two thousand soldiers.

In Duncan of Lorn and his servant, Wallace had sure and intelligent guides. At that time nothing but intricate footpaths, known only to the natives, existed in the Highlands; and as they were often formed by deer-stalkers, while tracing their game, they frequently led through places both perilous and perplexing to the stranger.

By the time the Scottish army had reached the Chapel of St Phillan, part of the foot soldiers began to flag, and get disordered in their ranks. Wallace, therefore, stopped, and thus addressed them. "Good men," said he, "this will never do. If we come up with the enemy in such broken array, we may receive serious injury ourselves, but can do them very little hurt in return. It is also necessary that we should be up with them as soon as possible; for if they hear of our approach, they may choose a plain field, where their numbers will give them advantage. To prevent this, I will go forward with those who are able, and leave the rest to follow at more leisure." Accordingly, taking with himself two hundred of the tried veterans of Ayrshire, and placing another hundred under the command of Sir John Graham, with Sir Richard Lundin at the head of his own followers, they crossed a mountain in their front, and descended into Glendouchar. Here they met a scout, whom they had previously sent forward, acting as guide to Sir Niel Campbell and his three hundred Highlanders. This wary leader, on hearing of the advance of Wallace, thought it proper to retire towards him, and leave the passage free to M'Fadyan, who, he knew, if he followed, could make choice of very few positions where his numbers would be of any advantage. Having given our hero a detail of what information he possessed respecting the state of the invaders, Gillemichel was again sent forward to watch the motions of the enemy; and the tough old mountaineer having fallen in with a scout from M'Fadyan, who had been sent to tract the route of Sir Niel, managed to despatch him with his *claidh mòr*, and returned with the intelligence to his chief.

The ground having now become impassable for cavalry, the Scots dismounted, and proceeded on foot. Their march had not been perceived by the enemy, and, from the superior knowledge they had of the country, they managed to surprise the Irish in a situation where flight was almost impracticable, and the superiority of their numbers became rather a disadvantage. The conflict continued for two hours, with unexampled fury on both sides. Multitudes of the Irish were forced over the rocks into the

gulf below. Many threw themselves into the water to escape the swords of the Scots; while various bands of Highlanders, stationed among the rocks, sent down showers of stones and arrows where the enemy appeared most obstinate in the strife. Wallace, armed with a steel mace, at the head of his veterans, now made a charge, which decided the fate of the day. Those Scots who had joined the Irish, threw away their arms, and on their knees implored mercy. M'Fadyan, with fifteen of his men, having made his way over the rocks, and attempted to conceal himself in a cave "wndyr cragmòr," Duncan of Lorn requested permission of Wallace to follow and punish him for the atrocities he had committed; and it was not long before he returned, bringing his head on a spear, which Sir Niel Campbell caused to be fixed on the top of the rock in which he had taken shelter.

After the defeat of M'Fadyan, Wallace held a meeting of the chiefs of the West Highlands, in the priory of Ardchattan; and having arranged some important matters respecting the future defence of the district, he returned to his duties in the Low Country, having received an accession to his numbers, which covered any loss he had sustained in the late engagement. The spoil which the Scots collected after the battle is said to have been very considerable; any personal share in which, our hero, as usual, refused. ¹⁰³

CHAPTER XI.

ROBERT BRUCE JOINS THE STANDARD OF WALLACE.—PERCY AND CLIFFORD SENT
TO SUPPRESS THE INSURRECTION.—NIGHT SKIRMISH IN ANNANDALE.—
DISAFFECTION OF THE SCOTTISH NOBLES.—WALLACE RETIRES TO THE NORTH.—
BATTLE OF STIRLING BRIDGE.

The success of the insurrection excited by Wallace, has been attributed by some English authors—and by Langtoft¹⁰⁴ in particular—to the foolish parsimony of Cressingham, who had disgusted the English soldiery by withholding their pay, at a time when their services might have been of the greatest advantage. In consequence of this unjust procedure, many of the yeomen and pages, finding little else than danger to be met with in the service, deserted their posts, and returned to their own country. Although the impolitic and avaricious character of the English treasurer is a matter on which the authors of both countries are agreed, the precipitation with which the garrisons of the Usurper now retreated on the approach of the Scots, shows that the severe examples which had already been made were not without their effect.

While our hero was thus following up his plan for the emancipation of his country, his standard was unexpectedly joined by the younger Robert Bruce. This powerful baron, it seems, had incurred the suspicion of the Warden of the Western Marches, who summoned him to attend at Carlisle, on pretence of business relating to the kingdom. Afraid to disobey, Bruce made his appearance, accompanied by a numerous retinue of his followers, and was there obliged to make oath on the consecrated host, and the sword of Thomas à Becket, that he would remain the faithful vassal of the King of England. In order to prove his loyalty, and do away with the mistrust attached to him, he made an inroad on the estates of Sir William Douglas, who at the time was acting with Wallace, and carried off his wife and children to one of his own fortresses in Annandale. Having thus lulled the suspicions that had been awakened, he next assembled his father's vassals,

and endeavoured to persuade them to join him in attempting the deliverance of their country. In this, however, he was disappointed: he therefore collected his own retainers, and marched to the quarters of Wallace; consoling himself with the reflection, that the Pope would easily absolve him from his extorted oath.

The insurrection in Scotland had hitherto been regarded by Edward more as the unconnected operations of banditti, than any thing like an organized scheme for regaining the national independence. Having most of the Scottish barons in his power from whom he thought he had any thing to apprehend, and conceiving that their vassals would not dare to move without the warrant of their superior,—he looked upon the affair as one which the troops he had left behind were more than sufficient to suppress. In this opinion he was confirmed both by the English and the Scotch barons whom he had along with him. The latter, either ignorant, or pretending ignorance of the talents and resources of our hero, represented their presence as being absolutely necessary before any formidable force could be brought into the field; and Langtoft¹⁰⁵ charges the English barons with deceiving their sovereign in the affair, and concealing from him the real state of the country. It is a matter of notoriety, that about this time, Edward and his nobles were not on the best of terms. Having now, as he thought, in addition to Wales, insured the subjection and obedience of Scotland, and remembering the facility with which, by the aid of 30,000 Scots lent him by Alexander III., he overawed and suppressed the Earl of Gloucester and those who took part with him; he began to assume towards the English nobility an imperious and haughty demeanour, which both alarmed their fears and excited their jealousy. The unprincipled stretches of power which he had attempted since his triumphal entry into London after his victories in Scotland, had also sown the seeds of dissatisfaction among the inferior classes, who, no longer dazzled with the splendour of his achievements over the freedom of their neighbours, began to reflect on the encroachments which their ambitious sovereign was making on their own.

When Edward, therefore, became fully apprised of the serious nature of the revolt in Scotland, he paused in the midst of preparations for an expedition to Flanders, and despatched orders to the Earl of Surrey for the suppression and punishment of the insurgents. This distinguished and powerful nobleman, the most efficient perhaps of all Edward's generals,

was at that time residing in Northumberland for the recovery of his health. Having associated with him in the command, his nephew Lord Henry Percy, and Robert de Clifford, he sent them forward with forty thousand foot and three hundred cavalry, a force which he deemed sufficient to restore the country to the allegiance of his master.¹⁰⁶

While the troops under Percy and Clifford were on their march through Annandale, their camp was attacked during the night by a body of Scots, led on by Wallace and Douglas. The darkness prevented the English from at first discovering the numbers of their assailants. Much confusion in consequence ensued; and many were either killed or driven into the adjacent morass. In this extremity, the English set fire to a number of their own tents; and, by the light thus obtained, they were enabled to form their ranks, and repulse the enemy, who were too inconsiderable in number to attempt any thing beyond a surprise. Hence, it may be inferred, that Bruce and his Annandale vassals were not engaged in the affair.

The English army lost no time in following the tract of the Scots, who retired towards those districts where the cause of national liberty had gained the greatest ascendancy. On reaching the neighbourhood of Irvine, the English commander found Wallace and the insurgent barons encamped on a well chosen position, and able, from their numbers, to have given battle, had they not been woefully enfeebled by dissension. The feuds among them ran so high, that Sir Richard Lundin, whose services had lately proved so useful, went over in disgust to the enemy, declaring that “he would no longer remain with a party at variance with itself.” His example was speedily followed by others, most of whom, as they were the cause of the dissension, could not assign the same reason for their conduct. Pride of birth, and reluctance on the part of the higher barons to submit to the only man among them who had talents¹⁰⁷ to meet the emergency, have been assigned, with great probability, as the cause of this unfortunate disagreement. The Steward of Scotland; his brother, the Knight of Bonkill; Robert Bruce; William Douglas; Alexander de Lindsay; and Wishart, Bishop of Glasgow, with their followers, were among those who submitted to the enemy. The Bishop negotiated the terms on which they were to be admitted to the peace of their “Lord Paramount:”—an acknowledgment of their errors, and hostages for their future obedience, were the basis of the

treaty; and a copy of the deed, to which their seals were appended, was sent to Wallace, in expectation of his following their example. The high-minded patriot, however, entertaining views of a more elevated nature, treated this record of their desertion of the liberties of their country with merited disdain.

At the head of his personal adherents, and a large body of the “*liberi firmarii*,” or free yeomanry of Scotland, Wallace retired indignantly towards the North. This latter class of men consisted of the tenants, and descendants of tenants, of the crown and church-lands, or those who occupied farms on the demesnes of the barons, for which they paid an equivalent rent in money or produce. They had the privilege of removing to whatever place they might think most desirable, and owed no military service except to the King for the defence of the country. Among them the independence of Scotland always found its most faithful and stubborn supporters. These “*liberi firmarii*,” for so they are called in the chartularies, and chamberlains’ accounts, were considered so useful from their superior industry, and agricultural knowledge, that during the minority of the Maid of Norway, a sum of money appears to have been distributed among them as an inducement to remain on the crown lands of Libertoun and Lawrence-town, which they were preparing to leave in consequence of a mortality among their cattle. They formed a striking contrast to the *cottars* or *villeyns*, who were entirely subject, both in body and means, to the will of the landholder, and were sold or transferred along with the estate; and could be claimed or ¹⁰⁸brought back to it, if they removed, in the same manner as strayed cattle.

These formed the bulk of the degraded horde who followed the banners of the recreant barons, and whose servility, ignorance and ferocity, often made them dangerous to the liberties of the country; while the former class, along with the freemen of the boroughs, supplied the materials from which Wallace recruited the ranks of his patriotic battalions.

Aware, from former experience, of the difficulty of bringing Wallace to action if he were not so inclined, Percy and Clifford appear to have withdrawn their forces, satisfied with having detached the aristocracy from his standard; none remaining with our hero save the gallant Sir Andrew Murray, Sir John Graham, and a few of his own personal friends.

But the system which Wallace had organised for the emancipation of his country, was not liable to any material derangement, in consequence of the defection of a few timid and interested barons. It is true, the desertion of such men as Sir William Douglas must have occasioned him considerable regret, being thereby prevented from meeting the enemy openly in the field, with such an equality of force as would have insured success. This feeling, however, did not retard his exertions, but rather stimulated him to fresh undertakings; for we find that he shortly afterwards surprised and garrisoned the Castle of Dunotter. Tyber,¹⁰⁹ or Tibber, on the banks of the Nith, he also took and destroyed. Forfar, Brechin and Montrose, were either taken, or deserted by their garrisons on his approach. Aberdeen, which the enemy set on fire, and then retreated to their ships, afterwards fell into his hands. He then led his troops against the Castle of Dundee, and had already made considerable progress in the siege of that strong-hold, when he was apprised of the advance of an English army under the Earl of Warren, and Cressingham the treasurer.

Edward, dissatisfied with the imperfect measures which had been taken for the suppression of the Scottish revolt, and irritated by the accounts which were daily received of the operations of the insurgents, had despatched peremptory orders for Warren to proceed in person to the North. He also directed his writs to the Bishop and Sheriff of Aberdeenshire, commanding them to adopt strong and effectual means for extinguishing the flame of rebellion within the boundaries of their jurisdiction. They were likewise required to furnish whatever supplies might be wanted by William de Warren¹¹⁰ for the defence of the Castle of Urquhart, a strong and extensive fortress on the banks of Loch Ness, of which he was governor. Warren was also ordered to be at his post, and fully prepared to meet any attempt of the enemy.

On learning the movements of the English, Wallace collected those of the burgesses of Dundee who were able to bear arms, and, placing them under the command of their townsman, Sir Alexander Scrymgeour, enjoined them, at the peril of “lyf and lyme,”¹¹¹ to continue the siege. He then retired, with his followers, who were now considerably increased, to watch the motions of the advancing army.

In cases of invasion, a favourite plan adopted by the Scots for the defence of their country, was to convey their cattle and other valuables to the more inaccessible districts north of the Forth. By this measure, they not only secured their own supplies, but, by depriving their enemies of the means of subsistence, compelled them to an early retreat as the only resource against the miseries of starvation. On the present occasion the usual precaution was not omitted. ¹¹²

The success which had attended our hero, since the affair of Irvine, and the formidable character of the well-disciplined force which now adhered to his banner, occasioned a wavering among a number of those barons who had so shamefully submitted to the usurper. Their situation, it must be allowed, had become one of great difficulty. The character of Wallace was stern and decisive. The punishment he inflicted on such offenders, they had reason to know was seldom mitigated by any consideration for the high rank of the parties; ¹¹³ and the English had repeatedly shown, that they were unable to protect the *serviles* from the vengeance of their indignant countrymen. It was therefore with no slight alarm that the party heard of the house of the Bishop of Glasgow being attacked, and pillaged, and his family carried off they knew not whither. The selection which Wallace had made of Wishart, as an example to the others, had no doubt been suggested partly by the ingratitude of that churchman, in deserting the cause, after having been, by means of the patriots, so lately restored to his diocese; and partly from his being so instrumental in the disgraceful negotiation with the enemy. The sacredness attached to his character, as a priest, would speedily disappear before the heinous offence of assisting to detach, in the hour of need, the swords of a Douglas, a Lundin, and a Bruce, from the service of their country. Meanwhile the hostages for their fidelity had been carelessly exacted; and when soon after called for by Warren, (whose remiss conduct had so far incurred the displeasure of Edward, that he sent Brian Fitz Alan to supersede him as lieutenant), he found them more inclined for a new arrangement, than willing to fulfil the terms of the former. They wished, in particular, to introduce some stipulations respecting the liberty of Scotland, a proposal no doubt made for the purpose of allaying in some degree the indignation of their patriotic countrymen. The continued obstinacy, and increasing power of Wallace, was made a pretext for their non-compliance; and they could now with apparent justice decline the final ratification of a

deed of treason against the independence of their country, when protection from the consequences was so extremely uncertain.

In this dilemma the Steward and the Earl of Lennox sought permission of Warren to open a communication with the leader of the Scots, under pretext of bringing him over to the interests of Edward. In consequence of this arrangement, these chiefs ventured to visit the Scottish army, which, by this time, had reached the neighbourhood of Stirling, and taken up a strong position near the bridge, where it appeared determined to wait the approach of the English. The retiring population had left little behind them that could be useful to the enemy; all their cattle and provisions being now secured in the rear of the protecting columns of their countrymen. This rendered the position of Wallace still more valuable, prepared, as he was, in the event of a defeat, to fall back to certain supplies, while his opponents would be still farther removed from their resources.

But if feuds had rendered the Scots inert and submissive to the enemy at Irvine, the councils of the English were now, in their turn, distracted from the same cause. The mind of Warren appeared more occupied in brooding over his late disgrace, than in attending to the details of the campaign; while Cressingham, ¹¹⁴ a haughty, ambitious, and imperious churchman, assumed additional importance on learning that his colleague had incurred the royal displeasure. Conflicting measures, supported by querulous and acrimonious language, engendered a dangerous spirit of animosity between them. Cressingham, on the plea of economy, ordered the disbanding of a body of eight thousand foot and three hundred cavalry, commanded by Lord Henry Percy, a force which Warren wished to retain as a reserve; and during the altercations which this occasioned, the communications of the Steward and the Earl of Lennox with the Scottish camp were injudiciously allowed to continue.

On the arrival, however, of the English in front of the position occupied by the Scots, those noblemen returned. With well feigned displeasure they announced their inability to make any pacific impression on Wallace and his followers; and then took their leave, for the alleged purpose of bringing up a number of their mounted vassals to join the English, who were to defile along the bridge in the morning.

Five thousand foot and a body of Welsh archers had passed the bridge before Warren had left his bed.¹¹⁵ Whether this sluggishness on the part of the English general arose from indisposition or chagrin, is not explicitly stated. The troops, however, on finding that they were not supported by the rest of the army, returned to their station. Warren, who arose about an hour after,—feeling, perhaps, reluctant to attack the Scots in their present position, and not deeming it prudent to calculate on the recurrence of the same mistake which had given him so easy a victory at Dunbar,—despatched two friars to make a last attempt at pacification.

The answer returned was evidently intended to exasperate the English, and bring them on headlong to the fray. After a bold declaration of independence, a taunting allusion was made to the conquerors of England. “We came not here,” said the intrepid assertor of Scotland’s rights, “to negotiate, but to fight; and were even your masters to come and attack us, we are ready to meet them at our swords’ point, and show them that our country is free.” Enraged at this stern and provoking defiance, the English became clamorous to be led on.

A council of war being called, it was proposed by Cressingham that the army should instantly cross the river and attack the Scots. In this he was opposed by Sir Richard Lundin, who pointed out the many difficulties they would have to encounter in attempting to defile along a bridge, so narrow, in presence of so wary an enemy; and offered to guide them to a ford not far distant, where they could pass with less hazard. Cressingham,—either displeased at being contradicted,—or not placing full reliance on the fidelity of Lundin, who had but recently joined the English, told Warren,—who appeared to hesitate, that, as treasurer of the King of England, he (Cressingham) could not be answerable for squandering the money of his master in protracted warfare with a handful of enemies, who,—in order to be defeated, had only to be attacked, and would always be formidable,—provided they were never brought to an engagement. Stung by the reproach conveyed in these remarks, Warren gave orders for the troops to move onwards.

Sir Marmaduke Twenge, a knight belonging to the North-Riding of Yorkshire, of much experience and distinguished personal prowess, assisted Cressingham in leading the van. When nearly one half of the English had

cleared the bridge without opposition, an attempt was made to dislodge the Scots from the ground they had chosen; and for that purpose, Sir Marmaduke rather impatiently charged up-hill with a body of heavy-armed cavalry. The consequence was, however, fatal to the assailants, as the enemy, from their vantage-ground, drove them headlong before them with their long spears. In the mean time, the communication between the bridge and the van of the English army was cut off by a masterly movement of a division of the Scots, who afterwards kept up such an incessant discharge of arrows, darts,¹¹⁶ “gavelocks,” and other missiles, as completely interrupted the progress of the enemy. Wallace contemplated, for a moment, the success of his plan, and instantly rushed down to the attack with an impetuosity which the scarcely formed battalions of the English were ill prepared to withstand. Giving way to the shock, they fell into irretrievable confusion, while the repeated charges of the compact bodies of the Scottish spearmen were fast covering the ground with the splendid wreck of the chivalry of England. The scene now became animating beyond measure; and many of those who had defended the bridge forsook their companions to join in the desperate *mêlée*. The passage being thus left comparatively open, the royal standard of England, displaying “*Three gold leopards courant, set on red*,” was advanced to the cry of—“For God and St George!” attended by a strong body of knights, who, with their triangular shields, defending themselves from the missiles which still showered thick upon the bridge, rushed forward to aid their fellow-combatants. The banner of Warren next appeared, *chequered with gold and azure*, and followed by his numerous vassals. The day, however, was too far gone to be retrieved, even by this powerful assistance. Finding no room to form, they only increased the confusion, and swelled the slaughter made by the Scottish spearmen, before whose steady and overwhelming charges thousands were either borne down or driven into the river.

While Warren, with inexpressible anxiety, beheld from the opposite bank the destruction of the flower of his army, the Steward of Scotland and the Earl of Lennox were seen approaching with a strong body of horse; but, as might be expected, instead of joining the English, they assisted their countrymen in pursuing and killing those who were attempting to save themselves. Sir Marmaduke Twenge gallantly cut his way to the bridge, and escaped.¹¹⁷

The panic now became general, and the face of the country was soon covered with a confused mass of terrified fugitives, hurrying on to avoid the swords of their conquerors, and increasing, as they fled, the disorder of their retreat, by throwing away their arms and their standards, in order to facilitate their flight.

Wallace having crossed the ford alluded to by Lundin, the pursuit was followed up with the most destructive perseverance. The day of retribution had arrived;—the butcheries of Berwick, the carnage of Dunbar, with a long list of national indignities and personal sufferings had now to be atoned for. Conscious of the provocation which had roused to frenzy the vengeance of an infuriated people, Warren turned with dismay from the scene of havoc, leaving twenty thousand of his soldiers to manure the fields of those they had so lately oppressed. Cressingham, the most detested of all the tools of Edward, was among the number of the slain;—and when Wallace came up, a party were employed in flaying the body. According to the MS. Chronicle of Lanercost, he is said to have ordered only as much of the skin to be taken off as would make a sword-belt; and his men, perhaps, imitating his example, might have appropriated the rest. This, says a respectable author,¹¹⁸ is no doubt the origin of the tale told by Abercromby and some other historians, of the Scots having used it as girths to their horses. An order of this kind, given in the heat of the pursuit, was perhaps never thought of afterwards; at least, we have no account of Wallace ever wearing such an appendage. The circumstance, however, shows the deep-rooted detestation with which the individual was regarded.

Warren, who fled rapidly to Berwick, was most probably, like another English general of more modern times, the first herald of his own discomfiture. The consternation which his disaster occasioned among his countrymen in Scotland was so great, that few or none would venture to wait the approach of the enemy; but, abandoning their strongholds, they hurried southward with the greatest precipitation, justly conceiving that the terms they were likely to obtain from one who followed up his victories with so much energy, were hardly worth staying for. The loss on the part of the Scots was comparatively small; none of note having fallen, save the brave Sir Andrew Murray of Bothwell.¹¹⁹

In this manner was Scotland once more restored to that liberty of which she had been so unjustly deprived. Nor was the benefit conferred on the country less, than the glory which redounded to her gallant liberator. The brilliant and decisive victory at Stirling Bridge was gained on the 11th September 1297, exactly twelve months and eleven days from the return of Edward to Berwick, after what he conceived to be the final subjugation of the kingdom.

The state of Scotland in the early part of 1297, was such as might well have extinguished the ardour of any mind possessed of less energy than that of Wallace. He saw his country humbled and debased at the feet of a tyrant, whose talents and power forbade every hope of emancipation, while the boldest of her nobles dared not express a wish to be free. His own indignant feelings blazed forth, and, with his kindling enthusiasm, he breathed into his torpid and enslaved countrymen, the breath as it were of a new existence. The regenerating influence of his heroic example, was quickly caught by those whose bosoms still beat responsive to the call of honour; and in the short space we have mentioned, those banners which had lately waved over hecatombs of butchered Scots, and had been paraded through the land with all the triumphant arrogance of conquest, were now trampled under foot, and the colossal power by which they were sustained, overthrown before the virtuous indignation of a people determined to be free. When we contemplate the might and the resources of Edward, who, in addition to those of his own kingdom, had Ireland, Wales, and his Continental possessions to depend upon; it is impossible not to feel impressed with admiration at the greatness of that mind, which, with the fractions of a divided and dispirited people, could form the idea of braving a force so overwhelming: But when we find those plans which he had conceived in the deep recesses of his woodland retreats, not only perseveringly carried on against a tide of adverse circumstances—in defiance of the aristocracy of his own country, and the opposition of secret and avowed enemies—it may with truth be said, that, however highly he may have been extolled, a tythe of his greatness has not yet been appreciated. Much has been said of romance being mixed up with the accounts given of him; but it would be difficult for any of those who delight in *nibbling* at great names, to point out any tradition respecting Wallace, sufficiently romantic to outstrip the simple facts that stand recorded of him in the authentic annals of British history.

Deserted by the barons at a time when he conceived he had united in the sacred cause all that was noble, and all that was high minded in the land, it required no common intrepidity to bear up against their heartless and unseemly defection; and to recruit his ranks after so serious a diminution, required talents of the highest order, and exertions beyond the reach of ordinary men. This, however, he not only accomplished, but also recovered a number of fortresses,—drove the enemy from the North, and, with a numerous and gallant army, sat down in a well-chosen position, to await the advance of the legions of England,—all within two months of the disgraceful negotiation at Irvine.

After a victory achieved in the face of difficulties so formidable; with what feelings must the hero of Stirling Bridge and the Scottish aristocracy have regarded each other! The mighty force of him whom they had acknowledged as their Lord Paramount, was now broken and dispersed before the superior valour and steadiness of one whom they had so rashly abandoned. In the rich harvest of laurels which had been acquired, they had excluded themselves from all participation; and, though conscious that they could not lay claim to a single leaf, they were sensible that the heroism of their late companions would soon be emblazoned through every country in Europe; while they had the mortification to reflect, that the tale of their own pusillanimous submission, would be held up as a counterpart to the gallantry of those friends whom they had so shamefully forsaken in the road to immortality.

APPENDIX.



A.

WALLACE'S TREE.—TORWOOD.

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The following memoranda respecting this celebrated tree, will doubtless be acceptable to the reader: [120](#)

“In Dunipace parish is the famous Torwood, in the middle of which there are the remains of Wallace's Tree, an oak, which, according to a measurement when entire, was said to be about 12 feet diameter. To this wood Wallace is said to have fled, and secreted himself in the body of that tree, then hollow, after his defeat in the north.”—*Stat. Acc.* iii. 336.

“This oak is still dignified by the name of *Wallace's Tree*. It stands in the middle of a swampy moss, having a causeway round its ruins; and its destruction has been much precipitated, by the veneration in which the Scottish hero has been long held; numerous pieces have been carried off, to be converted into various memorials of the Champion of Scotland.”—*Kerr's Hist. of Bruce*, i. 127.

“Wallace's Oak, as it has been called for ages, still remains in the Torwood near Stirling. The old tradition of the country bears, that Sir William Wallace, after a lost battle, secreted himself in this tree, and escaped the pursuit of his enemies. By this account, it behoved then, that is, about 500 years ago, to have been a large tree. Whatever may be its age, it certainly has in its ruins the appearance of greater antiquity than what I have observed in any tree in Scotland.

“At a very remote period it has separated in the middle, and the one half of it has mouldered entirely away. The other half remains, and is in one place about twenty feet high. But what the tree was above this height, is unknown. All the original part of the tree is putrid. Yet one may perceive

that the whole of it, from the head to the very bark, has been red wood, and is so hard even in its putrid state as to admit of a polish.

“In this ancient Torwood, it stands in a manner alone. For there are no trees, nor any ruin of a tree, to be seen that is nearly coeval. Compared to it, even the oldest of them is of a very modern date. The memory of its having saved Wallace, has probably been the means of its preservation, when all the rest of the wood at different times has been destroyed. It has been immemorially held in veneration, and is still viewed in that light.

“There is a peculiar sort of renovation of an old tree that sometimes occurs, and has taken place in this. A young bark has shot upwards from the root in several places, which has formed fresh branches towards the top of the old trunk. This young bark has spread, and still spreads, like a callus, over several parts of the old tree that are dead; and particularly over a very large arm, which has had no bark on it in the remembrance of the oldest person alive.

“The tree stands in carse land, in a deep wet clay-soil. The road that passes by it in the wood is laid crossways with thick branches of trees, to prevent carriages from sinking to the axles in wet weather.”—*Essays on Natural History, by John Walker, D.D.* (1771.)

The ground on which this tree stood was elevated above the surrounding level, which appears at one time to have been a sort of swamp. Causeways of a rude construction led up to the oak on different directions; and as the first formation of these causeways is beyond the memory of the oldest inhabitants living, it proves that the sheltering place of the Defender of Scotland must have been an object of deep interest to his countrymen at a very early period. Although this ancient memorial of Wallace measured, in the recollection of people still living, 42 feet in circumference, not a vestige of it is now to be discovered. The veneration with which it was regarded, secured it from all human interference; and it was left to the winds of heaven, and the hand of time, till it reached that state of decay which indicated an approaching crisis. Its extinction was then hastened by an anxiety on the part of visitors to possess some portion of it, as a relict of one with whose name it had been so long associated; and so far was this feeling carried, that, after the trunk had disappeared, the ground was dug up to the extent of twelve feet round it, in order to get at any fragment of the root that

might chance to remain. This grand search took place after the time was fixed for the visit of George IV. to Scotland; and Mr Craig, an artist residing at Helensburgh, of considerable taste in his profession, used a part of it which had then been found, in the formation of a snuff-box, ingeniously composed, besides, of various small pieces of wood, including portions of “the Elderslie Oak,” “Queen Mary’s Yew,” the “Bush abune Traquair,” and other celebrated inmates of the forest, which have been consecrated by the historical and poetical Muse of Scotland. This elegant little national gem was with much propriety presented to, and graciously accepted by, his Majesty, during his residence in Scotland. Thus, after a lapse of ages, the root of that oak which had preserved the houseless patriot when outlawed by the enemies of his country, has, by a strange vicissitude, been transplanted to the personal possession of the legitimate descendant of that race of kings for whose right he so nobly contended, and whose beloved representative now wields a sceptre over a countless accumulation of subjects, and a dominion from which the sun may be said never to withdraw his light.

The wood-cut which we are now about to introduce, shows the state of the tree in 1789, at which time it measured twenty-four feet in height. It is taken from a drawing with which the publishers have been politely favoured by the family of the late Mr A. Kincaid, a gentleman of literary attainments, to whom the public are indebted for a History of Edinburgh, and some other meritorious publications; and who visited the Torwood, and made the following sketch in the year above mentioned. Although exhibiting the same general appearance as the drawing made by Mr Nasmyth eighteen years earlier, which forms the vignette to this volume, it will be observed that it was gradually hastening to decay; and, as partially filling up a *hiatus* in the history of the “august vegetable,” we have much pleasure in presenting it to our readers.



In the preceding year, at the depth of a foot from the surface, and about 30 feet west of Wallace's tree, the head of an ancient Scottish spear was found, which was presented to the Society of Antiquaries of Scotland, by Mr Alexander Kincaid. By the kindness of that learned body, we are also enabled to give the following wood-cut of this antique and once-powerful weapon. It measures 8 inches in length, and, if not of higher antiquity, was probably one of those used in the fatal conflict which took place in the Torwood between James III. and his rebellious nobles in 1488.



Length 8
inches.



B.

THE CRAWFURDS.

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Crawfurd, is a corruption of two Celtic words *Crodh-Phort*, pronounced *Cro-forst*, signifying *a sheltering place for cattle*, a designation expressive of the general appearance of the parish of Crawford-John. As every thing relating to so illustrious a character as Wallace is important, the following pedigree, showing his maternal descent, will doubtless be acceptable to many.

According to that accurate genealogist *George Crawfurd*, author of the *Scottish Peerage*, and the *History of Renfrewshire*, and of the *House of Stewart*, published more than 100 years ago, the Craufurds are derived from Thorlongus, an Anglo-Danish chief, who, being expelled from Northumberland by William the Conqueror, found an asylum in Scotland, and, in particular, had a grant of land in the Merse from Edgar, King of Scots, whose reign is included betwixt the year 1097 and the 8th January 1106–7.

This appears from *Crawfurd's* MS. "History of the Craufurds," in the Advocates' Library, and is corroborated by *Anderson* in his *Diplomata*, compiled at the desire of the Scots Parliament, who has this notice of Thor-Longus:—"Hic vir nobilis et Anglus genere fuisse, videtur ac forte idem qui *Thor* in Libro vulgo dicto *Doomsday-Book*, sæpius memoratus amplissimis suis prædiis in borealibus Angliæ partibus sitis a Gulliello Conquisitore erat exûtus."

At what particular time his expulsion took place, does not precisely appear; but it seems probable that it must have been betwixt the years 1069 and 1074, when, from the unsubmissive spirit of the Northumbrians, they brought down on their own heads the most direful wrath of the conqueror,

who was so provoked with them, for joining their original countrymen the Danes, who had at that time invaded England, (and whom, for all his prowess, he was fain to buy off), that “he swore by the splendour of God he would not leave a soul alive;” and so soon as he found it in his power (the foreigners being now gone) to be avenged of them, he ravaged their country in so merciless a manner, that for 60 miles together he did not leave a single house standing.—See *Rapin*, vol. i. p. 172.

All this took place betwixt the years as above stated; and as they were quite subdued by the last of these dates (1074), and as there appeared to have been no more exterminating spoliation of this part of the country afterwards during William’s reign, it seems to be a fair conclusion, that this Anglo-Danish chief had found it necessary to fly, and make his escape to Scotland during the interim mentioned. The era of the *Doomsday-Book* itself (1079), in which Thor is mentioned to have been, before that time, deprived of his possessions, should be a concluding evidence of the fact. That he obtained lands in Scotland during the reign of King Edgar, appears distinctly from the following writs, copied from the MS. History of Crawford, and which also are to be found in the archives of the cathedral of Durham.

CHARTA THORLONGI.

Omnibus sanctæ matris Ecclesiæ filiis Thorlongus in Domino, salutem: Sciatis quod Edgarus Dominus meus Rex Scottorum, dedit mihi Ednaham desertam, quam ego, suo auxilio et mea propria pecunia inhabitavi, et ecclesiam in honorem Sancti Cuthberti fabricavi, quam ecclesiam cum una carrucata terræ, Deo et Sancto Cuthberto et monachis ejus in perpetuum possidendum dedi; hanc igitur donationem feci pro anima domini mei Regis Edgari, et pro animabus patris et matris illius, et pro redemptione Lefwini patris mei dilectissimi, et pro meimet ipsius tam corporis quam animæ salute, et si quis hanc meam donationem sancto predicto et monachis sibi servientibus aliqua vi vel ingenio auferre presumserit, auferat ab eo Deus omnipotens vitam Regni celestis, et cum diabolo et angelis ejus pœnas sustinet eternas. Amen.



EJUSDEM.

Domino suo charissimo David Comiti Thor, omnibusque suis, salutem: Scias domine mi, quod Edgarus Rex frater vester dedit mihi Ednaham desertam, quam ego suo auxilio et mea pecunia inhabitavi, et ecclesiam a fundamentis fabricavi quam frater vester Rex in honorem Sancti Cuthberti fecit, dedicavit, et una carrucata terræ eam dotavit. Hanc eandem ecclesiam pro anima ejusdem domini mei Regis Edgari et patris et matris vestri et pro salute vostra et Regis Alexandri et Mathildis Reginæ, sancto predicto et monachis ejus dedi, unde vos precor sicut dominum meum charissimum, ut pro animabus parentum vestrorum et pro salute vivorum hanc donationem Sancto Cuthberto, et monachis sibi in perpetuam servituris concedatis.

This historian deduces the Crawfurds from the above Thorlongus, in the following order of succession:—

I. Thorlongus, who has charters as above in the reign of King Edgar (*inter* 1097 *et* 1107), and whose seal in the first is quite entire, had two sons; 1. Swane; 2. William, whose name appears in a charter by William de Vetereponte, in the archives of Durham.

II. Swane, son of Thorlongus, whose name appears in several charters of the same age, as in one by king Edgar to the monastery of Coldingham, of the lands of Swinton; also in one of the reign of David I., as possessing the Fishery at Fiswick, near Berwick, and others in these archives.

III. Galfredus, son of Swane, also mentioned in these archives. He is stated by Crawford to have had two sons; 1. Hugh, the next in this line; 2. Reginaldus, of whom afterwards.

IV. Hugh, the eldest son of Galfredus, from whom came the Crawfords of Crawford proper, as under.

V. Galfredus de Crawford, who is a witness to a charter of Roger, Bishop of St Andrew's, to the monastery of Kelso, in 1179, and died about 1202.

VI. Reginald de Crawford, probably his son, is witness to a charter of Richard le Bard to the same monastery, together with William, John and Adam, his sons, in 1228. Of the first and third no other memorial exists. The second,

VII. Sir John Crawford, his successor, is designated, *Dominus de eodem miles*, in several donations. He died without male issue in 1248, leaving two daughters, of whom the eldest was married to Archibald de Douglas, ancestor of all the Douglasses whose descent can be traced; and the youngest was married to David de Lindsay of Wauchopedale, ancestor of all the Lindsays in Scotland.

The last three are extracted from *Wood's Peerage*, under the title *Crawford*; and the authorities are stated on the margin. That these ladies, the daughters of Sir John Crawford, were descended from Hugh, No. IV., is distinctly mentioned by *Crawford*, in the MS. History of the Crawfurds, as above. To return now to the second son of Galfredus, No. III.

Crawford further states, that Galfredus, No. III., as above, besides Hugh, had another son,

IV. Reginald, with whom another portion of the barony of Craufurd remained, and that from him descended his son,

V. John; and hence the distinction of this part of the barony into Crawford-John. This John, he adds, is the first on record that used the surname of Craufurd from his lands; and he is mentioned as a witness to a charter by Arnold, Abbot of Kelso, in 1140. In the account of Craufurd of Auchnames, in Renfrewshire, p. 365, it is stated, that Sir Gregan Craufurd, ancestor of the Dalmagregan branch of Crafurds, was a younger brother of Sir John Craufurd of Crawford-John; of course, he must also have been a son of Reginald, No. IV. This point may afterwards be more clearly verified. Suffice it here to say, that this branch diverged into several, as those of Toringzean, Drongan, Camlarg, Balquhanny, Liffnoris, &c. all

either now extinct, or whose history is very little known. They were distinguished by the stag's head in their armorial bearings, in allusion to their common ancestor Sir Gregan's having rescued David I. from the attack of a stag which had unhorsed him. This exploit is said to have taken place near Edinburgh, in 1127, which date corresponds not unfitly with the era of his supposed brother, Sir John Craufurd of Crawford-John, who appears as a witness, as above-mentioned, in 1140.

VI. Dominus Galfredus de Craufurd, is the next stated by Craufurd the historian, in the succession in this line. He lived in the reign of Malcolm IV. (*inter* 1153 et 1165), and in that of his successor William; and is a frequent witness to the donations of that prince to the abbacy of Arbroath, particularly in 1179.

VII. Hugh de Craufurd appears to be the next in succession, though it is more from probable conjecture than from precise evidence, that he is reported to be the son of the preceding. But that this Hugh was father of

VIII. Sir Reginald de Craufurd, sheriff of Ayrshire, Craufurd has no hesitation in affirming. This Sir Reginald, about the beginning of the 13th century, married the heiress of Loudoun, and from him all the Crawford's of that family, and their numerous cadets, are descended. It would appear that he had four sons; 1. Hugh; 2. William; 3. John, from whom is descended the Crawfordland family; and, 4. Adam.

IX. Hugh carried on the line of Loudoun. He had two sons; 1. Hugh; 2. Reginald, who was the first of Kerse.

X. Hugh, the eldest son, was of Loudoun. He had a son, said to be ancestor of the Baidland Craufurds, and a daughter, Margaret, who was married to Sir Malcolm Wallace. She was the mother of the Guardian of Scotland, Sir William Wallace, from whom the Bailies of Lamington are maternally descended.—*Robertson's "Ayrshire Families."*

C.

THE BURNING OF THE BARNS OF AYR.

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As this is one of those portions of our history on which Lord Hailes has thought proper to be sceptical, the following remarks of the learned Dr Jamieson^{[121](#)} on the subject maybe satisfactory to the reader. With respect to the date, it may, with great propriety, be fixed about midsummer 1297.

“The story of the destruction of these buildings, and of the immediate reason of it, is supported by the universal tradition of the country to this day; and local tradition is often entitled to more regard than is given to it by the fastidiousness of the learned. Whatever allowances it may be necessary to make for subsequent exaggeration, it is not easily conceivable, that an event should be connected with a particular spot, during a succession of ages, without some foundation.

“Sir D. Dalrymple deems this story ‘inconsistent with probability.’ He objects to it, because it is said, ‘that Wallace, accompanied by Sir John Graham, Sir John Menteth, and Alexander Scrymgeour, constable of Dundee, went into the west of Scotland, to chastise the men of Galloway, who had espoused the part of the Comyns, and of the English;’ and that, ‘*on the 28th August 1298*, they set fire to some granaries in the neighbourhood of Ayr, and burned the English cantoned in them.’—Annals, I. 255, N. Here he refers to the relations of Arnold Blair and to Major, and produces three objections to the narrative. One of these is, that ‘Comyn, the younger of Badenoch, was the only man of the name of Comyn who had any interest in Galloway; and he was at that time of Wallace’s party. The other two are; that ‘Sir John Graham could have no share in the enterprise, for he was killed at Falkirk, 22d July 1298;’ and that ‘it is not probable that Wallace would have undertaken such an enterprise immediately after the

discomfiture at Falkirk.’ Although it had been said by mistake, that Graham and Comyn were present, this could not invalidate the whole relation, for we often find that leading facts are faithfully narrated in a history, when there are considerable mistakes as to the persons said to have been engaged.

“But although our annalist refers both to Major and Blair, it is the latter only who mentions either the design of the visit paid to the west of Scotland, or the persons who are said to have been associates in it. The whole of Sir David’s reasoning rests on the correctness of a date, and of one given *only* in the meagre remains ascribed to Arnold Blair. If his date be accurate, the transaction at Ayr, whatever it was, must have taken place thirty-seven days afterwards. Had the learned writer exercised his usual acumen here—had he not been resolved to throw discredit on this part of the history of Wallace—it would have been most natural for him to have supposed, that this event was post-dated by Blair. It seems, indeed, to have been long before the battle of Falkirk. Blind Harry narrates the former in his Seventh, the latter in his Eleventh Book. Sir David himself, after pushing the argument from the date given by Blair as far as possible, virtually gives it up, and makes the acknowledgment which he ought to have made before. ‘I believe,’ he says, ‘that this story *took its rise* from the pillaging of the English quarters, about the time of the treaty of Irvine, in 1297, which, as being an incident of little consequence, I omitted in the course of this history.’ Here he refers to Hemingford, T. I. p. 123.

“Hemingford says, that ‘many of the Scots and men of Galloway had, in a hostile manner, made prey of their stores, having slain more than five hundred men, with women and children.’ Whether he means to say that this took place at Ayr, or at Irvine, seems doubtful. But here, I think, we have the nucleus of the story. The *barns*, according to the diction of Blind Harry, seem to have been merely ‘the English quarters,’ erected by order of Edward for the accommodation of his troops. Although denominated *barns* by the Minstrel, and *horreas* by Arnold Blair, both writers seem to have used these terms with great latitude, as equivalent to what are now called *barracks*. It is rather surprising, that our learned annalist should view the loss of upwards of five hundred men, besides women and children, with that of their property, ‘as an incident of little consequence,’ in a great national struggle.

“Major gives nearly the same account as Blair. Speaking of Wallace, he says, ‘Anglorum insignes viros apud *horrea* Aerie residentes de nocte incendit, et qui a voraci flamma euaserunt ejus mucrone occubuerunt.’—Fol. lxx.

“There is also far more unquestionable evidence as to the cause of this severe retaliation, than is generally supposed. Lord Hailes has still quoted Barbour as an historian of undoubted veracity. Speaking of Crystal of Seton, he says—

“It wes gret sorow sekyrly,
That so worthy persoune as he
Suld on sic maner hangyt be.
Thusgate endyt his worthynes.
And off Crauford als Schyr Ranald wes,
And Schyr Bryce als the Blar,
Hangyt in till a berne in Ar.”

The Bruce, III. 260 v. &c.

“This tallies very well with the account given by the Minstrel.

*“Four thousand haill that nycht was in till Ayr.
In gret berynyss, biggyt with out the toun,
The justice lay, with mony bald barroun.”*

Wallace, vii. 334.

“The testimony of the *Complaynt of Scotland*, a well-known national work, written A. D. 1548, concurs. Speaking of the king of England, the writer says:

“Ony of you that consentis til his fals conques of your cuntre, ye sal be recompenssit as your forbears var at the blac perliament at *the bernis of Ayre*, quhen kyng Eduard maid ane conuocatione of al the nobillis of Scotland at the toun of Ayre, vndir culour of faitht and concord, quha comperit at his instance, nocht heffand suspitione of his tresonabil consait. Than thai beand in his subiectione vndir culour of familiarite, he gart hang, cruelly and dishonestly, to the nummer of sexten scoir of the maist nobillis of the cuntre, tua and tua, ouer ane balk, the quhilk sextene scoir var cause that the Inglismen conquest sa far vithtin your cuntre.”—*Compl. Scotl.* p. 144.

“The author refers to this as a fact universally acknowledged among his countrymen, although, it must be recollected, no edition of the Life of Wallace was printed for more than twenty years after this work was written. He introduces it again, as a proof of treachery and cruelty, which still continued to excite national feeling.

“Doubtles thai that ar participant of the cruel inuasion of Inglismen contrar thar natyue cuntraye, ther craggis sal be put in ane mair strait yoik nor the Samnetes did to the Romans, as Kyng Eduard did til Scottis men at the blac parliament at *the bernis of Ayr*, quhen he gart put the craggis of sexten scoir in faldomis of cordis, tua and tua, ouer ane balk, of the maist principal of them,” &c.—*Ibid.* p. 159, 160.

D.

MEMOIR OF BISHOP ANTHONY BEK.

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For the following biographical notice of this ecclesiastical warrior, who, in ambition, power, and talents for political intrigue, may justly be considered as the Cardinal Wolsey of his day, we are indebted to a work of Nicholas Harris Nicolas, Esq., a name sufficient to recommend it to all who have any taste for antiquarian research.

“Of the period of Bek’s birth we have no precise information. He was a younger son of Walter Bek, Baron of Eresby; and in the 54th Henry III. 1270, was signed with the cross on going to the Holy Land with Prince Edward,^{[122](#)} who nominated him one of the executors of his will, which was dated at Acre in June 1272.^{[123](#)} In 3rd Edward I. 1275, being then a clerk, he was appointed Constable of the Tower of London;^{[124](#)} and was constituted Archdeacon of Durham as early as 1273.^{[125](#)} He was present in the Parliament at Westminster at the feast of St Michael, 6th Edward I. 1278, when the King of Scotland did homage to Edward;^{[126](#)} and on the 9th July 1283, was elected Bishop of Durham. The ceremony of his consecration was performed by the Archbishop of York, in the presence of the King, on the 9th of January following; but at his enthronization at Durham on Christmas eve, a dispute arose between the official of the Archbishop of York and the Prior of Durham, as to the right of performing the office, which the bishop-elect terminated, by receiving the mitre from the hands of his brother, Thomas Bek, Bishop of St David’s. On the festival of St John the Evangelist, he presented the church with two pieces of rich embroidery, wrought with the history of the Nativity.

“It is impossible to state even the principal occasions on which Bishop Bek was conspicuous; it being perhaps sufficient to observe, that scarcely a single event of any importance took place during the reign of Edward the First, whether of war or diplomacy, but in which he was concerned. Several facts might be mentioned which tend to prove the influence that he at one time possessed over the mind of his sovereign. According to Fordun, it was by his advice that Edward supported the claim of Baliol instead of that of Bruce,¹²⁷ in the competition for the crown of Scotland; and he was frequently a mediator, not only between the King and his barons, but between his Majesty and his children. The Prelate’s ambition was equal to his resources; and both were evinced by the splendour of his equipage, and the number of his followers. If his biographer,¹²⁸ from whom Mr Surtees has derived a great part of his statements, may be believed, the retinue with which he attended the King in his wars amounted to twenty-six standard-bearers of his household;¹²⁹ one hundred and forty knights, and five hundred horse; and one thousand foot marched under the consecrated banner of St Cuthbert, which was borne by Henry de Horncestre, a monk of Durham. The Bishop’s wealth and power soon, however, excited the suspicion of the King; and the process of ‘quo warranto’ was applied, with the view of reducing them. His temporalities were seized, but he recovered them after an appeal to Parliament; and his palatine rights were confirmed in the most ample manner by the Justices Itinerant in 1293. From the proceedings in Parliament in the 21st Edward I., it seems, that on the Wednesday before the feast of St James the Apostle, in the 20th Edward I., namely, on the 23d July 1292, at Derlyngton, and afterwards at Alverton, and other places, the Archbishop of York had formerly excommunicated the Bishop of Durham, he being then engaged in the King’s service in the North; for which offence the Archbishop was imprisoned, but pardoned on paying a fine of 4000 merks.¹³⁰ Bek’s frequent quarrels with the Prior of Durham, whom he had of his own authority deprived and ejected, soon afforded a pretext for the royal interference; and a formidable attack was afterwards made upon his possessions. About the same time he espoused the popular cause by joining the Earl Marshal and the Earl of Hereford against the crown; and when charged by the King with deserting his interests, he boldly replied, ‘That the Earls laboured for the advantage and

honour of the sovereign and his realm, and therefore he stood with them, and not with the King, against them.’ In the meanwhile he obeyed a second citation to Rome, for having deprived the Prior, where he appeared with his usual magnificence, and triumphed over his adversaries, by obtaining from the Pontiff a confirmation of his visitorial superiority over the convent. By quitting the realm without license, he exposed himself to the enmity of the crown; and his vassals availed themselves of his absence to urge their complaints. The Palatinate was seized into the King’s hands; and, in July 1301, the temporalities of the see were committed to the custody of Robert de Clifford. In the parliament in the following year, having effected a reconciliation with his vassals, and submitted to the King, the bishop obtained a restitution of his temporalities. But Bek’s intractable spirit soon involved him in fresh disputes with the Prior; and being accused of having infringed on the dignity of the crown, by some instruments which he had obtained from Rome, his temporalities were, in December 1305, once more seized; and the King seems to have used every exertion, not only to humiliate the haughty prelate, but to divest his see of some part of its extensive territories. From this time until Edward’s demise, he continued under the royal displeasure; but no sooner was Edward the Second on the throne, than he added to his power and titles, by procuring the dignity of King of the Isle of Man, together with ample restitution of what had been arrested from him by the late monarch.

“It is here, however, necessary to refer to the notice of the Bishop in the poem.” (See Siege of Carlaverock). Mr Surtees has evidently adopted the translation given of it in the ‘Antiquarian Repertory,’ where the words ‘unsplaitz’ are rendered ‘a wound,’ as he says, ‘the Bishop of Durham is described in the roll of Carlaverock, as being absent from the siege on account of a wound; whereas the passage is presumed to have meant, that the Bishop was detained in England in consequence of a treaty on some other public transaction. It appears that he then sent the King one hundred and sixty men-at-arms; and at the battle of Falkirk, he is stated to have led the second division of the English army with thirty-nine banners.’¹³¹ In the 35th Edward I., being sent to Rome with other Bishops and the Earl of Lincoln, to present some vessels of gold to the Pope from the King, his Holiness conferred on him the title of Patriarch of Jerusalem.¹³² Thus, Mr Surtees remarks, on receiving the sovereignty of the Isle of Man, ‘his

haughty spirit was gratified by the accumulated dignities of Bishop, Count Palatine, Patriarch and King.' The last political transaction of his life was his union with the Earl of Lancaster, against Piers de Gaveston, in 1310; and, on the 3d of March following, 1310–11, he expired at his manor of Eltham in Kent.

The character of Anthony Bek is given with more elegance than truth in the Poem. 'The mirror of Christianity' is an emphatic allusion to his piety and virtue; and his wisdom, eloquence, temperance, justice and chastity, are as forcibly pointed out, as the total absence of pride, covetousness and envy, for which he is said to have been distinguished. But this is rather a brilliant painting, than a true portrait; for, if all the other qualities which are there ascribed to him be conceded, it is impossible to consider that humility formed any part of his merits. His latest biographer, Mr Surtees, has however described him with so much discrimination and elegance, that his words are transferred to these pages, because they form the most appropriate conclusion of this sketch, and powerfully tend to redeem its many imperfections.

“The Palatine power reached its highest elevation under the splendid pontificate of Anthony Bek. Surrounded by his officers of state, or marching at the head of his troops, in peace or in war, he appeared as the military chief of a powerful and independent franchise. The court of Durham exhibited all the appendages of royalty; nobles addressed the Palatine sovereign kneeling; and, instead of menial servants, knights waited in his presence-chamber and at his table, bare-headed and standing. Impatient of control, whilst he asserted an oppressive superiority over the convent, and trampled on the rights of his vassals, he jealously guarded his own Palatine franchise, and resisted the encroachments of the crown when they trenched on the privileges of the aristocracy.¹³³ When his pride or his patriotism had provoked the displeasure of his sovereign, he met the storm with firmness; and had the fortune or the address to emerge from disgrace and difficulty, with added rank and influence. His high birth gave him a natural claim to power; and he possessed every popular and splendid quality which could command obedience, or excite admiration. His courage and constancy were shown in the service of his sovereign. His liberality knew no bounds; and he regarded no expense, however enormous, when placed in

competition with any object of pleasure or magnificence.¹³⁴ Yet, in the midst of apparent profusion, he was too prudent ever to feel the embarrassment of want. Surrounded by habitual luxury, his personal temperance was as strict as it was singular; and his chastity was exemplary, in an age of general corruption.¹³⁵ Not less an enemy to sloth¹³⁶ than to intemperance, his leisure was devoted either to splendid progresses¹³⁷ from one manor to another, or to the sports of the field; and his activity and temperance preserved his faculties of mind and body vigorous, under the approach of age and infirmity.

“In the munificence of his public works he rivalled the greatest of his predecessors. Within the bishopric of Durham he founded the colleges of Chester and Lanchester, erected towers at Gainford and Coniscliff, and added to the buildings of Alnwick and Barnard Castles. He gave Evenwood manor to the convent, and appropriated the vicarage of Morpeth to the chapel which he had founded at Auckland.¹³⁸ In his native county of Lincoln, he endowed Alvingham priory, and built a castle at Somerton.¹³⁹ In Kent he erected the beautiful manor-house of Eltham whose ruins still speak the taste and magnificence of its founder. Notwithstanding the vast expenses incurred in these and other works, in his contests with the crown and with his vassals, in his foreign journeys, and in the continued and excessive charges of his household, he died wealthier than any of his predecessors, leaving immense treasures in the riches of the age; gallant horses, costly robes, rich furniture, plate and jewels.’¹⁴⁰

“Anthony Bek was the first prelate of Durham who was buried within the walls of the cathedral. His predecessors had been restrained from sepulture within the sacred edifice by a reverential awe for the body of the holy confessor;¹⁴¹ and on this occasion, from some motive of superstition, the corpse was not allowed to enter the doors, although a passage was broken through the wall¹⁴² for its reception, near the place of interment. The tomb was placed in the east transept, between the altars of St Adrian and St Michael, close to the holy shrine. A brass, long since destroyed, surrounded the ledge of the marble, and bore the following inscription:

“Presul magnanimus Antonius hic jacet imus
Jerusalem strenuus Patriarcha fuit, quod opimus
Annis vicenis regnabit sex et j plenis
Mille trecentenis Christo moritur quoque denis.”

“The Bishop’s heirs were found, by the inquisition held after his decease, to be his nephew, Robert de Willoughby, son of Alice his eldest sister; and his nephew John de Harcourt, son of his second sister Margaret.”

E.

EXPEDITION TO THE WEST HIGHLANDS.

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In this account of the expedition to Loch-Awe, the statements, as the reader will perceive, are all taken from the pages of the Minstrel. The writer was induced to do so, not from the circumstance of Henry being the only ancient author who has recorded the transaction, but from the evidence of its truth, which may be found in the traditions of the country where the conflict took place. These have already been alluded to in the Introduction. It may not, however, be improper to state, that "*Uagh Mhac Phadan*," or M'Fadyan's cave, can still be pointed out by old Highlanders, who add, on the authority of tradition, that the determination with which the Irish leader defended himself was such, that his pursuers had to throw down bundles of burning furze into the cave before he surrendered. The rock on which his head was afterwards set up, still goes by the name of *Beinnean Mhac Phadan*, the *Peak or Pinnacle of MacFadyan*. In short, the localities of the country are so correctly described, particularly the scene of the battle, which appears to have been on the comparatively open space between *Crag-an-àradh* and the rock of *Bradhair* or *Brandir*, as it is called, for the convenience of the English reader, that few who have had an opportunity of contrasting the scenery with the account of the Minstrel, can resist the impression of its being either the work, or translated from the work, of an eyewitness. This, taken in connection with the evidence afforded by the coins of Edward I., which from time to time have been found about the ruins of Ardchattan priory, and which have also been previously adverted to in the "Introduction," ought to be pretty conclusive as to the occurrence narrated.

This subject has already engaged the attention of a literary gentleman¹⁴³ of talent and intelligence, who has handled the matter with no

small degree of acumen. The following extracts may therefore be interesting to those readers who have not had opportunities for personal investigation.

“Blind Harrie has very particularly related the circumstances of MacPhadian’s proceedings; and his account so exactly coincides with the tradition and topography of the district where the facts are said to have been performed, that there can be little or no doubt of the truth of his narration.

“Loch-Awe, upon the banks of which the scene of action took place, is thirty-four miles in length. The north side is bounded by wide muirs and inconsiderable hills, which occupy an extent of country from twelve to twenty miles in breadth, and the whole of this space is enclosed as by a circumvallation. Upon the north it is barred by Loch-Eitive, on the south by Loch-Awe, and on the east by the deep and dreadful pass of Brandir, through which an arm of the latter lake opens at about four miles from its eastern extremity, and discharges the river Awe into the former. The pass is about three miles in length; its east side is bounded by the almost inaccessible steeps which form the base of the vast and rugged mountain of Cruächan. The craigs rise in some places almost perpendicularly from the water; and, for their chief extent, show no space nor level at their feet, but a rough and narrow edge of stony beach. Upon the whole of these cliffs grew a thick and interwoven wood of all kinds of trees, both timber, dwarf, and coppice; no track existed through the wilderness, but a winding path which sometimes crept along the precipitous height, and sometimes descended in a straight pass along the margin of the water. Near the extremity of the defile, a narrow level opened between the water and the craig; but a great part of this, as well as the preceding steeps, was formerly enveloped in a thicket, which showed little facility to the feet of any but the martins and the wild cats. Along the west side of the pass, lies a wall of sheer and barren craigs: from behind they rise in rough, uneven, and heathy declivities, out of the wide muir before mentioned, between Loch-Eitive and Loch-Awe; but in front they terminate abruptly in the most frightful precipices, which form the whole side of the pass, and descend at one fall into the water which fills its trough. At the north end of this barrier, and at the termination of the pass, lies that part of the cliff which is called Craiganuni: at its foot the arm of the lake gradually contracts its water to a very narrow space, and at length terminates at two rocks (called the rocks of Brandir), which form a straight

channel, something resembling the lock of a canal. From this outlet there is a continual descent toward Loch-Eitive, and from hence the river Awe pours out its current in a furious stream, foaming over a bed broken with holes, and cumbered with masses of granite and whinstone.

“If ever there was a bridge near Craiganuni in ancient times, it must have been at the rocks of Brandir. From the days of Wallace to those of General Wade, there were never passages of this kind; but in places of great necessity, too narrow for a boat, and too wide for a leap, even then they were but an unsafe footway, formed of the trunk of trees, placed transversely from rock to rock, unstripped of their bark, and destitute of either plank or rail. For such a structure there is no place in the neighbourhood of Craiganuni, but at the rocks above-mentioned. In the lake, and on the river, the water is far too wide; but, at the strait, the space is not greater than might be crossed by a tall mountain pine, and the rocks on either side are formed by nature like a pier. That this point was always a place of passage, is rendered probable by its facility, and the use of recent times. It is not long since it was the common gate of the country on either side the river and the pass. The mode of crossing is yet in the memory of people living, and was performed by a little currach moored on either side the water, and a stout coble fixed across the stream from bank to bank, by which the passengers drew themselves across, in the manner still practised in places of the same nature. It is no argument against the existence of a bridge in former times, that the above method only existed in ours, rather than a passage of that kind which might seem the more improved expedient. The contradiction is sufficiently accounted for, by the decay of timber in the neighbourhood. Of old, both oaks and firs of an immense size abounded within a very inconsiderable distance; but it is now many years since the destruction of the forests of Glen-Eitive and Glen-Urcha has deprived the country of all the trees of a sufficient size to cross the strait of Brandir; and it is probable, that the currach was not introduced till the want of timber had disabled the inhabitants of the country from maintaining a bridge. It only further remains to be noticed, that at some distance below the rock of Brandir there was formerly a ford, which was used for cattle in the memory of people yet living. From the narrowness of the passage, the force of the stream, and the broken bed of the river, it was, however, a dangerous pass, and could only be attempted with safety at leisure, and by experience.

“Such is the topography of the country in which, tradition says, that Sir Niel Campbell made his retreat and refuge. It now remains to show, what correspondence there is between its features, and the relation given by Blind Harrie. The words of the Minstrel are as follows:

“Ye knyght Cambell maid gud defens for yi
Till *Craigunyn* with thre hunder he zeid,
Yat strenth he held for all his ¹⁴⁴ cruel deed,
Syne brak ye *bryg* quhar yai mycht not out pass
Bot through a *furd* quhar narow passage was
Abandounly Cambell agayne yaim baid
Fast upon *Avis* yat was bathe deep and braid,
Makfadzan was apon ye toyir syd,
And yar on force behuffyt hym for to byd,
For at ye furd *he durst nocht* entir out,
For gud Cambell mycht *set hym yan in dout*,
Mak Fadzane socht, and a small passage fond
Had he lasar he mycht pass off yat land
Betwix a roch and ye gret wattir syd
Bot four in frount na ma mycht gang or ryd.”

Book vii. Chap. iv. (Edin. Edit. 1758.)

The correspondence between the above description and the account which I have before given of the topography of the Pass of Brandir, must be evident to every examiner. But the identity of that place and the one mentioned in the poem, is confirmed to a degree of certainty; first, by the fact, that such a correspondence can be found in no other part of the neighbouring districts; and, secondly, by the mention which is made in the description of the poem, of names which *now* exist in the appellation of the place to which it is supposed to apply. ‘Avis’ is well known to have been the ancient name of Loch Awe, ¹⁴⁵ and is often met with in old poems which make mention of that lake; and Cragunyn is clearly but a mis-spelling of ‘Craiganuni,’ the name of the rocks at the extremity of the Pass of Brandir. The error is merely owing to the ignorance of the transcribers of the poem, who did not understand Gaëlic orthography. Except by persons very competently masters of the language of the country, there is scarcely a name in the Highlands more correctly written at the present day.

“It is easy to show the solitude of the correspondence between Blind Harry’s description of the position of Sir Niel, and the topography of the Pass of Brandir. In the eighth line of the passage above quoted, it is said, that when the Campbell had gained the craig to which he retreated, he ‘baid’ (abode) fast upon Loch-Avis. From whence it is plain, that this post was immediately above the shore of Loch-Awe. In the brief notices of MacPhadian’s situation at the same period, it is equally evident, that he was entangled in a narrow and dangerous pass, bounded on one side by rocks, and on the other side by the lake. It is expressly said that he was on the opposite side from the Campbells. The water was then between them, and yet their positions were communicable by a bridge and a ford. In the whole sixty-eight miles, which form the circuit of Loch-Awe, there is not a spot where these circumstances could have existed except in the Pass of Brandir. On no part of the shore is there a pass of the nature and difficulty implied in Blind Harry’s notices of MacPhadian’s embarrassment except there. Neither is there any part of the lake which could be interposed between two bodies of men, and yet rendered evadable by a bridge, except the arm which terminates in the river Awe. In all other places the water is from one to three miles wide, and does not contract into any stream or inlet which could prolong its barrier sufficiently to prevent it from being turned, and yet admit of its being evaded by a passage of the nature above mentioned. But in the Pass of Brandir all these particulars are identically to be traced. The narrowing of the lake to an inconsiderable channel, and its prolongation into the river Awe, by which the former might be interposed as a barrier, and yet evaded by an immediate crossing; the bridge mentioned by Blind Harry as having existed at the foot of Craignyn, and the probability that one formerly did exist in the corresponding spot of Craiganuni; the ford described as having been the only remaining communication in the separating water, its dangerous character, and the actual being of a pass of the same nature, and the same relative position in the water of Awe, all give the strongest evidence of the truth of the Minstrel’s relation, and the application of the scene which he has described. Having then established so much from the circumstances of the poem and the nature of the country, we may draw a clear deduction of the proceedings and motives of Sir Neil Campbell previous to his entering Craiganuni.

“Allowing that this spot was the place to which that chief retreated from MacPhadian, it follows as a necessary consequence, from the situation

of the latter at the breaking of the bridge, that he must have made his pursuit round the east end of Loch-Awe; and it will very clearly appear, that he could not have chosen this direction, had he not been enticed into it by a similar route in the flight of the Campbell. The proof that MacPhadian did take the direction which I have advanced, is sufficiently decisive. We are expressly told, that when Sir Neil had gained Craiganuni, he was stopped in his pursuit on the opposite, or *east* side of the water beneath. Now, as he possessed no vessels on Loch-Awe, he could not have gained this side of the arm of the water which runs under Craiganuni, had he not come to it by encircling the east end of the whole lake, which is only four miles distant. The conviction of this fact leads decisively to discover the march of Sir Neil. It is perfectly evident that he must have entered the heights from the same side as that on which it is apparent MacPhadian endeavoured to follow him; for, had he proceeded to Craiganuni by the west end of the lake, or crossed the water any where west of the Pass of Brandir, his enemy could have had no motive in taking the eastern route. In the first instance, he would have marched in an opposite direction to those whom he was pursuing; and in the second, he would have taken a road, which, allowing it might have been the shortest, would have placed between him and his enemy an impassable barrier, and have entangled him in a strait and dangerous labyrinth, where his numbers would have become useless, his attacks impracticable, and his retreat dangerous. Among such difficulties, it is not to be supposed that MacPhadian would voluntarily and unnecessarily have hazarded his success and his safety; he could only, therefore, have been enticed into them, by the allurements of pursuing upon the footsteps of his enemies. The proceedings of Sir Neil are thus reduced to a degree of certainty, and leave no alternative from the circumstances which I have pointed out.

“He observed, that entered from the east, and having his enemy on that side, Craiganuni was the most inaccessible and advantageous hold in all Argyleshire; but that entered and attacked from the opposite direction, all the securities of the place were converted into dangers. Placed then on this quarter, it was only by a stratagem that he could win the desired advantage; and in prosecution of its attainment, he adopted the only plan which could have been unforeseen by his enemy, and carried into execution with a certainty of success. At the approach of MacPhadian into Nether Loch-Awe, he fled before him along the south side, and towards the east end of the

lake. Drawn after him by the consciousness of superiority, and the facility of the pursuit, the Irish Captain followed him with no thought but the eagerness of capture.

“The advantage, however, of Sir Neil in point of time, was sufficient to prevent him from falling into his hands in the open district from Inch-Connel to Glen-Urcha; and suddenly turning the head of the lake, and circling towards the west, he dived down the Pass of Brandir, crossed the water, broke down the bridge, ascended the height, and threw between him and his pursuers, the craigs, the rivers, and the lakes. It was then that the plan of the chief was seen in all its superiority.

“Had he passed round the west end of the lake, or crossed it westward of the Pass of Brandir, he would have entered that wide and open country which I have before described,—a country every where untenable, and so surrounded by natural barriers, that it would have been almost impossible for him to have evacuated it under the closeness of his pursuit. Craiganuni, which had been before him, would have been not only totally unserviceable to him, from the direction in which he entered; but its barriers, lying wholly in his rear, would have made it the most dangerous situation. Had he been beset in the moors, the multitude of his enemies had devoured him; had he been overtaken at the craig, his flight would have been cut off by the gulf below; and those who had fled from the sword would have been driven over the precipices, and plunged into the water. Had he escaped these alternatives of ruin, every hardship would have been presented to his retreat. The country round the pass was wild and barren, even to horror and desolation; and had he succeeded in gaining it with security, he must have pursued his flight, hopeless of reinforcement and straitened for subsistence. By the tactic upon which he acted, he not only avoided all the evils, but converted the whole of their disadvantages to the inconvenience of his enemy. The instant he had occupied Craiganuni, and broken down the bridge over the mouth of the river, he was inaccessible on every side, and possessed in his rear a tract of nearly three hundred square miles, wholly open to his operations, but secured from his enemies by the same barriers which rendered himself unapproachable. In front, the depth of the water, and the precipices of the pass, were an insurmountable barrier; on the north, Loch-Eitive continued the line of circumvallation from the sea to Beann Starabh; and on the south it was extended by Loch-Awe from Lorn to Glen-

Urcha. Sir Niel was thus encompassed by a formidable barrier of seventy-three miles in circumference; and from the obstacles of this cordon, and the security of the wide space in his rear, he could at pleasure have evacuated his position under cover of the night, and have retreated, in unmolested security, to Loch-Fine, from whence he might have proceeded in his galleys to the coast of Airshire, and here joined himself with the successful associates of the late victorious Wallace.

“I have said nothing of the ford through the Awe, by which there was an approach to the position of Sir Niel, nor of the capability of MacPhadian, to have passed Loch-Eitive by means of his fleet; of the first, the enemy feared to avail himself from the danger of the passage, and the want of discipline among his troops; and from the second, he could have reaped little avail, since, in the consumption of time necessary to have brought round these vessels from the sea, Sir Niel might have abandoned his position, and in one night have made good his retreat beyond Loch-Awe.

“Thus baffled and out-manœuvred, MacPhadian not only failed in his object of offence, but found himself drawn into an intricate and desolate labyrinth, where his multitude encumbered themselves; the want of subsistence prevented him from remaining to blockade Sir Niel, and his ignorance of the clues of the place made it difficult to extricate himself by a retreat. In this exigence he was desirous of returning to Nether Loch-Awe, where there was abundance of cattle and game for the support of his men. At length he discovered a passage between the rocks and the water; the way was only wide enough for four persons to pass abreast; yet as they were not in danger of pursuit, they retired in safety, and effected their march to the south side of the lake.^{[146](#)}

“Here we must leave Mac-Phadian, and return to Duncan of Lorn. In his youth the latter had been a school-companion of Wallace at Dundee; and he now determined to resort to him, and make use of their old acquaintance to prevail on the champion of Scotland to come to the assistance of Sir Niel Campbell. As soon, therefore, as Mac-Phadian had evacuated the Pass, Duncan descended from Craiganuni, and pursued his way for the Low country, attended only by a single follower, named Gillemichel. This faithful clansman was an aged man, but even in his age was still famous for an uncommon speed of foot,^{[147](#)} and on their return performed good service

for his master. When Duncan arrived in the Low country he found the Wallace at Dundaff, with Sir John the Græme. The patriot chieftain had just returned from the overthrow of the English in the Barns of Air and the city of Glasgow; and besides the friends and forces who had come to him upon those occasions, he had been joined by Malcolm, Earl of Lennox, and Richard of Lundi, who brought with them a considerable number of their followers. No sooner had Wallace heard the tidings of Duncan MacDougall, than he resolved to go to the aid of Sir Niel Campbell; and, assembling his force, he instantly set out upon his march. He directed his course by Stirling, either to gather increase of followers, or apprehensive of leaving behind him an English garrison on the threshold of the Highlands. The castle, however, was not a place to be taken in a day; and bent upon the destruction of Mac-Phadian, Wallace would not delay his march to pursue the siege in person, but, leaving the Earl of Lennox to carry on that service, he determined to push forward his expedition into Argyleshire. Having assembled his forces at the bridge of Stirling, and found them to amount to two thousand men, ‘worthi and wycht,’ he hastened forward on his way. Duncan of Lorn acted as his guide; and while they pursued their march, he sent forward his man Gillemichel to discover intelligence of the enemy. Blind Harrie proceeds to relate, that as the army proceeded, it became fatigued with its march, that a great part of the men and horses were incapable to continue their way with that speed which the urgency of the expedition required. Upon this Wallace determined to divide the weary from the strong, and to hasten forward with the latter only, and surprise the enemy before they could have the opportunity of choosing a position, where their superiority of numbers could be displayed to its advantage. For this purpose he divided his host into two bodies; the first, consisting of seven hundred men, he chose to haste forward with himself; and the second, which contained but five hundred, and which was spent with fatigue, he left in the rear to follow as well as they might. Before they continued their march Wallace again separated the first division into three companies; the first, consisting of one hundred men, his own chosen West country veterans, he led in person as the advance guard; the second, of the same numbers, he committed to Sir John the Græme; and the last, to the amount of five hundred, he gave to Richard of Lundi, with whom he joined Wallace of Richardtown, his cousin. After this disposition, the two grand divisions separated: that under the leading of Wallace hastened forward on its march,

and, crossing the mountain in their front, lost sight of their feeble comrades. In Glen-Dochart they were met by Gillemichel the scout; with him came Sir Niel Campbell, who had escaped from Craiganuni, and at the head of his three hundred clansmen had hastened to join the approaching aid of Wallace.

“In this part of Blind Harrie’s poem there is an error, which throws some confusion upon the traces of the march of Wallace. It appears, however, to have been the fault of the transcriber or reciter, and I think may be satisfactorily explained. The mistake consists in the contradiction of the name of the place where the host of Wallace began to fail with fatigue, and of that in which it is said, that he afterwards met Sir Niel Campbell. The words of the poem are thus:—

“Be our party was passit *Straithfulan*,
Ye small fute folk began to irk ilk ane.”

Book vii. l. 763.

To which it is subsequently said,

“In *Glendowchar* yair spy met yaim agayne,
With lord Cambell,” &c.

Ib. l. 785.

“Straith-Phillan opens from the west end of Glen-Dochart towards the north-west; and consequently, as Wallace came from the south-east, it must have been the second of the two places in the succession of his march, and could not, as it stands in the poem, have been the first. I shall presently show, that there is every evidence from the narrative of the Minstrel, and the evidence of tradition, that Wallace did not pass through Straith-Phillan in any part of his march. The mention of the name, in this place, must therefore have been an error altogether, arising either from the carelessness of the transcriber, or from the confusion of two appellations, something similar in import. I am inclined to lean to the latter opinion. At the northern extremity of Straithearn, between the Glen and Loch-Earn, the mountains form a little amphitheatre, in the middle of which there is a small conical hill, once sacred to St Phillan, and still called by his name. Near its summit was a holy spring, distinguished also by the name of the apostle, and at its foot was a small cell of religious, formed originally by his disciples. It

appears to me highly probable, that Wallace entered the Highlands by Straitheast; that it was at St Phyllan's Hill that his men became fatigued; and that it was this place which the reciter or transcriber of Blind Harrie's poem confounded with Straith-Phyllan. This supposition is much supported by the correspondence between the circumstances mentioned by the Minstrel, respecting the march of Wallace, and the route between Straith-Earn and Glen-Dochart. A few miles north of St Phyllan's Hill, the old and short track of the country emerges from the level side of Loch-Earn, and, passing over the transverse mountains at its extremity, enters into Glen-Dochart, at the foot of Bean Mòr, and near the eastern extremity of the lake.

"This was the common Pass used of old by the Highlanders, before the construction of the roads. It is a wild and pathless track, but is still used by shepherds, and is shorter than the modern 'Rad mòr an rìgh'¹⁴⁸ by some miles. The mention which Blind Harrie makes of the march of Wallace, after the separation from his weary men, agrees very much with this path, and its direction:—

"Yus Wallace ost began to tak ye hycht,
Our a montayne sone passit off yar sycht.
In Glendowchar yair spy met yaim agayne
With lord Cambell, yan was our folk rycht fayne."

Book vii. l. 783.

"The correspondence is made still more near by the hint which is given of the spot where the men of Wallace met Sir Niel Campbell. It appears to have happened immediately upon their entering Glen-Dochart; and, after having described the meeting of the two parties, when the Minstrel tells us, that they resumed their march, he says—

"By Louthdochyr full sodynlye yaim drew."

Ib. l. 792.

"From this it would appear, that Wallace entered the glen near the extremity of the lake, and this is the exact point where the mountain path enters from Loch-Earn.

"From this period of the poem to the conclusion of the episode of MacPhadian, the relation of the Minstrel is clear and consistent; and, by the

aid of the tradition of the country, the route pursued by Wallace may be well identified with the localities of its existent topography. The oral account, handed down in Argyleshire, states, that at the coming of Wallace, MacPhadian and his host were posted in the northern extremity of the Pass of Brandir; and that they were there attacked and overthrown by Sir William and the Campbells. It will be found, that this account is much confirmed by the correspondence between the nature of the country from Glen-Dochart to Loch-Awe, and the particulars of the route described by Blind Harrie, as having been pursued by Wallace from the latter place to the hold where he encountered MacPhadian: it is still farther avouched by the exact conformity between the description of the scene of battle in the poem, and that marked as its site by the tradition. Immediately after passing Loch-Dochart, and consequently leaving that glen, the Minstrel describes the host of Wallace as entering a moss of such an extent and difficulty, that it prevented the farther march of the horses, and obliged the men to dismount and pursue their way on foot.

“Yan Wallace ost upon yair fute yai lycht,
Yair hors yai left yocht yai war neuir so wycht:
For moss and crag yai mycht na langer dre
Yan Wallace said quha gangs best let se.”

Book vii. l. 803.

“A short distance beyond the west end of Glen-Dochart, there is a high and wide tract of moss and moor, called ‘The Churan Beag,’ which occupies the most considerable extent of the space between Glen-Dochart and Glen-Urcha, the entrance to Loch-Awe. It is difficult to conceive a more desolate spot, nor one which could more correspond with the moss noticed by Blind Harrie. Its whole extent is a vast waste of swamps, gullies, and broken peat-bags; and its outlets and entrances are by rugged and steep declivities, embarrassed with fragments of rocks, and torn into vast chasms by the torrents which rise on the moss above. Through this miserable region lies the shortest path from Glen-Dochart to Glen-Urcha; and though impassable for horses, yet, in the olden time, when these were little used by the Highlanders, it was the most common thoroughfare between the above-mentioned places, and is still used, on account of its brevity, by the shepherds of the country, and foot-travellers who require expedition. It is several miles shorter than the way by Straith-Phillan and Glen-Lochie; for

this reason, and also for its utter solitude, it is highly probable that it should have been the route chosen by Wallace in preference to the other. In addition to the proofs offered in its favour, by the correspondence of its features with those of the road mentioned by Blind Harrie, there is the negative confirmation, that no place of the same nature occurs within the neighbourhood of Glen-Dochart, in any direction by which it is probable that the march of Wallace could have been destined. For this reason, it is, as I have before hinted, impossible that he could have passed through Straith-Phillan; for in the whole way from Glen-Dochart to Glen-Urcha by that road, there is neither moss nor muir, but plain straith and narrow glen. From all these circumstances, it seems very conclusive, that it was through the moss of 'the Churan Beag' that Wallace took his march, after his junction with Sir Niel Campbell in Glen-Dochart. But to return to the relation of the Minstrel.

“Previous to the entrance of Wallace upon the muir, he mentions that Gillemichel had been again sent forward to reconnoitre the route. He had not been long entered the moss, when he met a scout of MacPhadian, doubtless sent to discover the approach of Wallace. At the appearance of Gillemichel, the foeman fled; but his speed was not sufficient to enable him to outstrip the fleet foot of his pursuer, and he was overtaken and slain. Delivered from this danger of a discovery, the host of Wallace effected their march through the Churan in perfect secrecy, and reached the hold of MacPhadian before their approach was even known. It may, perhaps, be remarked, that the paucity of the Minstrel, in his relation of this part of the march of Wallace, is inconsistent with the description of the country through which tradition supposes it to have been made; since the poem makes no mention of the progress of the expedition through the intermediate space of ten miles, which lies between the Churan and the pass of Brandir, but, from declaring Wallace's delivery from the moss, immediately proceeds to communicate his entrance to the hold, without taking any notice of his arrival on the shore of Loch-Awe. But it is to be observed, that, through the whole march of Wallace, it describes those situations only, the circumstances of which affect the incidents of the story. The space from the Churan being destitute of any feature dangerous or advantageous, and the grand interest of the episode being the hold of MacPhadian, the Minstrel appears to have been absorbed in that object, and to have passed without regard the intervening way. This is palpably the fact,

by the certain evidence, that, wherever the post of MacPhadian was situated, there was between its entrance and the moss passed by Wallace, a space of water which has not been mentioned by the Minstrel.

* * * * *

“Then Wallace said quha gangs best let se,
Throuhout ye moss deliverly yai zeid,
Syne tuk ye hauld quharof yai had maist dreid,
Endlong ye schoir ay four in front yai past,” &c.

Book vii. l. 806.

“From this notice of the shore, it is here evident that Wallace arrived on the banks of some water immediately previous to entering the position of his enemy, and that Blind Harrie has neglected to mention the circumstance. His omission of the mention of Loch-Awe in his description of the march of Wallace, is therefore no objection that the latter was not made in the route affirmed by tradition.

“From the arrival of Wallace in the hold of MacPhadian, the account of Blind Harrie corresponds entirely with the accounts of the oral record, and the nature of the pass of Brandir. The place in which the old people of the country point out the site of the battle, is that narrow stripe of open space which lies near the northern extremity of the pass, between the foot of Cruächan and the narrowing of the lake to the rock of Brandir. The Minstrel coincides with this account.

“Endlong ye schoir ay four in front yai past,
Quhill yai within assemblyt at ye last.”

Ib. l. 810.

“From this narrowness of the column, and the number of Wallace’s men, the whole host could not have entered within the pass, till the head had arrived as far as the space before mentioned. The description of the straitened situation of the position also agrees with the pass of Brandir:

“Her is na gait to fle zone pepil can,
Bot rockis heich and wattir depe and wan.”

Book vii. l. 814.

“As soon as the men of Wallace arrived at the post of their enemies, they fell upon them with the utmost fury. Their scout having been slain, as before mentioned, MacPhadian’s followers were completely surprised and taken at disarray. Undismayed, however, by this ill fortune, they snatched up their arms, and rushed to defend the pass with the boldest resolution. At the first onset, the Scots bore back their enemies over five acres of ground; and Wallace, with his iron mace, made a fearful havoc among the enemy. Encouraged, however, by MacPhadian, the Irish came to the rescue; the battle thickened with more stubborn fury; and for two hours was maintained, with such obstinate eagerness on both sides, that neither party had any apparent advantage; and, says the Minstrel, the fiercest found ‘eneuch’ of fighting. At length the cause, and the valour of Wallace, prevailed. The Irish gave way and fled; and the Scots of their party threw down their arms, and, kneeling for mercy, Wallace commanded them to be spared for their birth sake, but urged forward the pursuit upon the Irish. Pent in by the rocks and the water, the latter had but little hope in flight. Many were overtaken and slain as they endeavoured to climb the craigs; and two thousand were driven into the lake and drowned. MacPhadian, with fifteen men, fled to a cave, and hoped to have concealed himself till the pursuit was over; but Duncan of Lorn having discovered his retreat, pursued and slew him with his companions; and having cut off the head of the leader, brought it to Wallace, and set it upon a stone high in one of the craigs, as a trophy of the victory.”

•• Before the writer met with the work whence the preceding extract is made, he entertained the belief that he was the first who had studied the topography and tradition of this romantic district, with a view of illustrating the labours of the Minstrel, and hence bringing into notice a portion of our history hitherto overlooked by all, save that ill-requited author. Under this impression, he was arranging the materials he had collected, when he became aware of his being anticipated by a more able hand. On comparing his notes with the details of Mr Allan, the similarity of their views appeared too striking to be supposed accidental; and unwilling to incur the charge of appropriating to himself the merits of another, he has suppressed his own observations, in deference to the ingenious author of the “Bridal of Caölchairn.”

F.

MEMOIRS OF JOHN, EARL OF WARREN—LORD HENRY DE PERCY—AND LORD ROBERT DE CLIFFORD.

I. WARREN.

[Page 220.](#)

It is presumed the writer will not be far wrong, if he anticipates a little curiosity on the part of the reader, respecting the personal history of so conspicuous a character as the conqueror of Dunbar; and as our English neighbours consider it a matter of difficulty, for a Scotsman to be impartial when the conduct of an enemy of his country happens to be the subject of his investigation, we shall, without either denying or admitting the truth of this allegation, endeavour to escape from the charge, by giving the following biographical notice in the elegant language of one of their own countrymen: [149](#)

“John Earl of Warren and Surrey was the son of William Earl of Warren and Surrey, by his second wife, Maud, widow of Hugh Bigot, Earl of Norfolk, and sister and coheiress of Anselm Marshal, Earl of Pembroke. In 1240, being then five years of age, he succeeded his father in his dignities. In 1247 he married Alice, daughter of Hugh le Brun, Count of March, and uterine sister of King Henry the Third; and in the following year, though he could not have been above thirteen years of age, he is said to have attended the Parliament which met at London in the octaves of the Purification. During the reign of Henry the Third, he is stated to have filled those stations which, from his high rank, naturally devolved upon him, and at the battle of Lewes he served in the van of the royal army with Prince Edward; but, together with the Earl of Pembroke, disgracefully deserted him at the commencement of the action, and fled first to Pevensey Castle, and from

thence to France. Their flight is thus quaintly alluded to by Peter de Langtoft:¹⁵⁰

**“The Erle of Warenne, I wote, he scaped over the se,
And Sir Hugh Bigote als with the Erle fled he.**

“In May following he returned, and claimed the restitution of his possessions, which, notwithstanding his treachery to the Prince, the rebellious Barons had declared to have been forfeited. The refusal of his demand induced him once more to change sides, and he confederated with the Earl of Gloucester for the restoration of the King’s power, and was present with the royal forces at the battle of Evesham. Thus his interest, rather than his honour, seems to have been his sole rule of action; and unfortunately, such conduct was then far too general to entail upon those who adopted it either punishment or reproach. In 1268 he had a dispute with Henry Earl of Lincoln; and about the same time became involved in a serious affray with Alan Lord Zouche, relative to some lands. This affair was attended with great violence; for, finding that he must submit to the judgment of a court of law, he abused his adversary and his son in the strongest terms, and then assaulted them in such an outrageous manner in Westminster-Hall, that he nearly killed the baron, and severely wounded his son. Neither his power nor influence could save the Earl from the vengeance of the laws he had so flagrantly violated; and, though he retired to his Castle at Ryegate, he was closely pursued by Prince Edward with a strong force, and, finding that opposition would be useless, he met the Prince on foot, and implored the royal clemency with great humility. For his offence he was fined ten thousand marks; but this sum was afterwards reduced to eight thousand four hundred, and he was permitted to pay it by annual instalments of two hundred marks each.

“Immediately after the solemnization of the funeral of Henry the Third at Westminster, the Earl of Warren and the Earl of Gloucester proceeded to the high altar, and swore fealty to his son and successor, King Edward the First. In the 3d Edward I. he received that monarch at his castle of Ryegate in so honourable a manner, upon his return from Gascony, that Edward was induced to remit him one thousand marks of the sum which he had been fined for the affair with Lord le Zouche.

“The next circumstance recorded of the Earl, is one in which that proud and sturdy spirit for which he was celebrated, was displayed in a manner so consonant to the feelings of the present day, that this nobleman has always been a favourite character in English biography; and the pencil was on one occasion employed to perpetuate his independent conduct. After the enactment of the statute of *quo warranto*, the Earl of Warren was, under its provisions, questioned by what title he held his lands; to which inquiry, first unsheathing an old sword, he is said to have replied, ‘Behold, my Lords, here is my warranty. My ancestors coming into this land with William the Bastard, did obtain their lands by the sword; and with the sword I am resolved to defend them against whomsoever that shall endeavour to dispossess me. For that King did not himself conquer the land and subdue it, but our progenitors were sharers and assistants therein.’

“In the 23d Edward I., the Castle of Bamburgh was intrusted to his custody; and, in the 24th Edward I., he commanded the forces sent to reduce Dunbar Castle, which, after a siege of three days, surrendered to him; and having met the Scotch army which came to its relief, he defeated them on Friday the 27th April, and pursued them several miles from the field of battle, when the enemy sustained a loss of 10,000 men. Soon after this event, the Earl was appointed Regent of Scotland; and in the following year was constituted general of all the English forces north of the Trent. But his previous good fortune now deserted him; and his army sustained a signal overthrow at the battle of Stirling, in September 1297.

“His misfortune did not, however, lessen him in Edward’s esteem, for he was immediately afterwards reappointed to the command of the English forces; and, in the 28th Edward I., was made Governor of Hope Castle, in the county of Derby. In that year, also, he commanded the second squadron at the siege of Carlaverock, at which time he must have been about sixty-five years of age.

“In the 29th Edward I., the Earl was appointed, jointly with the Earl of Warwick and others, to treat with the agents of the King of France, relative to a peace between England and Scotland; and in the same year he was a party to the letter from the barons to Pope Boniface VIII., in which he is only styled “Comes Warenne,” though on his seal he is also properly called Earl of Surrey.¹⁵¹ On the 5th calends of October, 32 Edward I., i. e. 27th

September 1304, being then, according to Peter de Langtoft, ¹⁵² employed in Scotland, he died.

“The moneth of September yolden was Strivelyn,
Edward may remembre the travaille and the pyn.
With many grete encumbre of in hard stoure,
At Brustwick opon Humbre there he mad sojoure.
Sir Jon of Warenne that ilk tyme gan deie,
His body was redy then in grave for to leie,
After the enterment the King tok his way,
To the south,” &c.

“But according to the registry of the Priory of Lewes, the Earl died that day at Kennington, having, says Dugdale, been Earl of Surrey no less than fifty-four years; though, as he succeeded his father in 1240, it is evident he must have borne that title sixty-four years. He was buried in the midst of the pavement, in the quire of the Abbey of Lewes, before the high altar, and the following epitaph was engraved upon his tomb.

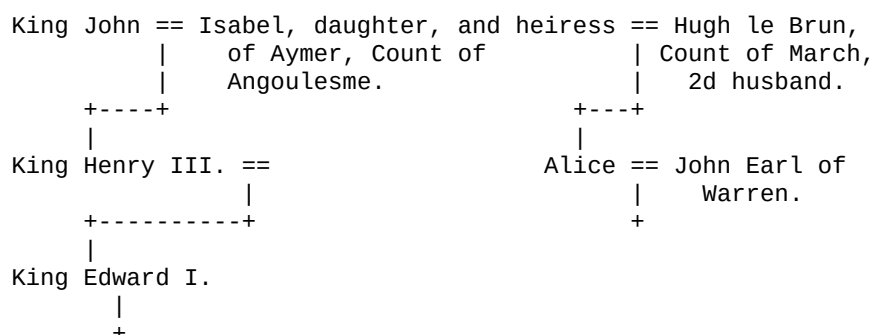
**“Vous qe passez on bouche close.
Priez pur cely ke cy repose:
En vie come vous estis jadis fu,
Et vous tiel serretz come je su.**

**Sire Johan Count de Gareyn gyst ycy.
Dieu de sa alme eit mercy:
Ky pur sa alme priera,
Trois mill jours de pardon avera.”**

“Of the subject of this article, but little that is favourable to his memory can be said; though his faults, or more properly his vices, were those of the age in which he lived. His treachery at the battle of Lewes has, to apply the beautiful expression of a distinguished statesman of the present day, ‘left indelible stains upon his character, which all the laurels of’ Dunbar ‘cannot cover, nor its blood wash away;’ whilst his subsequent conduct was invariably marked by a turbulent and intractable spirit. Not only was he frequently embroiled in disputes both with his compeers and his sovereign, but, with almost unparalleled hardihood, he dared, in a court of justice, to use personal violence towards a baron of the realm. That he should acquire

renown in the field, and consequently become possessed of the King's esteem, is perfectly consistent with that impetuous temper for which he is celebrated. Bravery is, however, but one redeeming trait in a picture, where all besides is dark and repulsive; and even the bold answer relative to his right to his lands, when properly considered, affords no room for praise; for the same resolute opposition to such an inquiry would, there is no doubt, be as readily evinced to defend any part of his property, if it had been acquired by the most flagrant injustice on his part, instead of on that of his ancestors.

“A proof of the estimation in which the Earl was held by Edward the First, is afforded, in Dugdale's opinion, by the fact, that the King issued precepts, directed to the Bishops of Canterbury and London, and to several Abbots, commanding them to cause masses to be said for his soul; but this testimony of the royal consideration might have arisen from the near connection between the Earl and his Majesty, as is shown by the annexed table:—



“By the said Alice le Brun, who died on the 9th February 1291, the Earl of Warren had issue, William, who died in his father's lifetime, leaving his wife *enceinte* with John, his son and heir, who succeeded his grandfather in his honours. Alianor, who married, first, Henry Lord Percy, by whom she had Henry Lord Percy, spoken of in the poem, (*i.e.* Caerlaverock Castle), as the Earl's ‘nevou;’ and, secondly, the son of a Scotch Baron; and Isabel, wife of John Baliol, King of Scotland.”¹⁵³

II. PERCY

“If the biographer of an ancient warrior,” says Mr Nicolas, “is in any degree influenced by that enthusiasm which deeds of chivalrous courage are calculated to excite, it is only by more than ordinary restraint upon his feelings that he is enabled to relate them in the sober and chastened language suitable to historical truth; and, perhaps, in no instance is that caution so necessary as when any member of the house of Percy is the subject of his pen. In the age to which Henry de Percy belonged, as well as in a few succeeding centuries, that name was synonymous with almost uncontrollable power, impetuous valour, and all those stern military virtues which characterized the time; and the difficulty of successfully detailing the career of an individual is considerably increased, when, as in the case of this Baron, the merits of his descendants have been sung, not only by rude contemporary bards, but have been immortalized by the greatest dramatic genius that ever existed.

“Henry de Percy was the third son of Henry Lord Percy, by Eleanor, daughter of John Earl of Warren and Earl of Surrey, and succeeded to the barony upon the death of his brother John de Percy, who died under age soon after the year 1272, at which time he appears to have been very young. The first circumstance recorded of him is, that, in the 15th Edward I., being then in ward, on the King’s expedition into Wales, he was acquitted of 120*l.* required from him for scutage. In the 22d Edward I. 1294, he made proof of his age, obtained livery of his lands, and was summoned to attend the King into Gascony; and in March 1296, having accompanied Edward in his invasion of Scotland, he received the honour of knighthood before Berwick. He was present at the battle of Dunbar, and was soon afterwards appointed Governor of Galloway and Aire in Scotland; and in 1297, being with Lord Robert Clifford, commander for the King of England in the eastern parts of Scotland, they were appointed to receive Margery, daughter of Robert Brus Earl of Carreck, as an hostage for his fidelity to Edward. About the same time he was sent by the Earl Warren, then General of all the English army beyond the Trent, with the forces at Carlisle into Scotland; and having entered Annandale with 300 men-at-arms, and 40,000 foot, about the 10th August he proceeded to Aire, where he endeavoured to persuade the inhabitants of Galloway to submit. Finding that a party of Scots were on their route to oppose him, he marched towards them; but from the inferiority of their numbers, they surrendered upon condition of being pardoned.

“In the 26th Edward I., Lord Percy was again in the wars of Scotland, in which year he obtained a grant of the lands forfeited by Ingelrom de Umfreville; and in the following year he was present at the siege of Carlaverock—a fact unnoticed by either of the writers just mentioned—when he must have been about forty-two years of age. The poet alludes to his determined hostility against the Scots, which feeling appears to have been inherited by his descendants, and describes him as the ‘nevou’ of the Earl Warren, which, like the word ‘nepos,’ seems to have been used for grandson as well as nephew, he being the son of Eleanor, the daughter of that nobleman. In February, 28th Edward I., 1301, he was a party to the letter from the Barons to Pope Boniface, wherein he is styled ‘Lord of Topcliffe;’ and in the 34th Edward I., was again sent into Scotland, to oppose Robert Bruce, against whom he valiantly defended Kenteir. In the 35th Edward I., he was a party to the treaty of peace with Scotland.

“On the accession of Edward the Second, he was, in common with the other peers of the realm, summoned to attend that monarch’s coronation; and in the 3d Edward II., he purchased the celebrated castle of Alnwick, which is now possessed by his representative the Duke of Northumberland. In the 5th Edward II., he succeeded John de Segrave, as Constable of Nottingham Castle, and Justice of the Forests beyond the Trent, and about the same period was constituted Governor of Scarborough and Bamburgh Castles. From a writ tested on the 14th September, 1309, it appears that he was then Constable of the Castle of York, and in that and the preceding years he was again in the wars of Scotland.

“Lord Percy distinguished himself by his enmity to Piers de Gaveston, and it is perhaps just to consider that his hostility arose from patriotic motives; but there is a suspicion attached to his behaviour towards the unhappy favourite, which the biassed historian of the house of Percy has rather increased than lessened, by his laboured attempt to remove. It appears that Gaveston was besieged in Scarborough Castle by the Earl of Pembroke; that he surrendered upon condition that his life and person should be secured; and that both the Earl and Percy solemnly pledged themselves to that effect. Through a false reliance, however, on the Earl’s honour, by Percy, as Collins relates it, the promise was speedily broken, and Gaveston perished on the scaffold at Warwick Castle. This is a version of the tale, which so partial a biographer as that writer uniformly shows

himself, would naturally give; but although the impossibility of ascertaining the real merits of the case render it unjust to pass a positive censure upon Percy's conduct, it is at least equally unfair to conclude that the whole shame of the transaction belongs to his colleague, and that his only error arose from a misplaced confidence. Certain, however, it is, that the King considered him guilty of Gaveston's death, for he issued special precepts, tested on the 30th and 31st July, 1312, for his apprehension, and for the seizure of all his lands, tenements, and chattels. Towards the end of that year, however, Percy was included in the treaty between the King and the barons; and on making his submission his offence was pardoned, and his lands restored to him. The acquittance of the King to Thomas Earl of Lancaster, Guy Earl of Warwick, Robert de Clifford, and this Baron, of the jewels and horses that belonged to Gaveston, dated on the 6th February, 1313, 6. Edw. II., by which he acknowledges to have received from them the articles therein mentioned, by the hands of Humphrey Earl of Hereford, is still preserved. The document is highly curious; and with the hope of relieving the dullness of this memoir, the following interesting extracts from it are introduced:

‘Un anel d’or, od un saphir, le quel seint Dunstan forga de ses mayns.

Une boiste d’argent en d’orrez pur porter eynz un anel entour le col de un homme.

Une grant rubi hors d’or, que fust trove sur sire Piers de Gavaston quant il fust pris; le pris de mille livres.

Trois granz rubis en aneaux, une amiraude, un diamand de grant pris, en une boiste d’argent enamille, que fust trove sur le dit Pierres quant il fust pris.

Deux seaux un grant e un petit; e un petit seal une clief pendaunte, un esterling plie, et un calcedoyne; les queux furent trovez en la burse quant il fuit pris.

En un cofre, lie de feer, une mirour d’argent enamille; un pigne; un priket, que fust donné au Roi par la Countesse de Bar à Gant.

Un coronal d’or od diverse perie, pris de cent mars.

Un chapelet d'argent garnis de diverse perie, pris de doze soutz.

En un autre cofre, un grant pot d'argent od trois peiz pur chauffer eawe, que poise sis livres quinze soutz dis deners.

Trois plates d'argent por especierie, e poisent quatre livres.

Deux plates d'argent pur fruit, des armes de roy d'Engleterre, que poisent sessant dis oit souz quatre deners.

Une burse de drap d'or ove deux pierres de Jerlm' dedenz.

Un mors d'argent od quatre botons d'orrez, od deux lions pur chaq'e de cuir.

Un veil seal entaille, e un pere de Calcedoine. Trois furchescs d'argent pur mangier poires.

Une ceinture de fil de argent blank.

Une chapelet de Paris, pris de sis souz oit deners.

En un sak un bacenet burny od surcils.

En autre saak une peire de treppes des armes de dit Pieres.

Deux cotes de velvet pur plates coverir.

Une Nouche pur palefrei, des armes du Roy.

Quatre chemises et trois brais de Gascoigne orfresez.

Une veille banere des armes le dit Piers.

Quarant un destres et coucers e un palefrei.

Noef Somers. Duze chivaus charetters.

Deux charettes od tut le herneis.'¹⁵⁴

“Great part of Gaveston’s plate was marked with an eagle, and several articles of jewellery were in that form, his arms being, *Vert, six eagles displayed, Or.*

“The little that remains to be said of this Baron, may be related in a very few words. In 1313 he received letters of safe conduct from the King, for all his dominions; in June in the following year he was present at the

fatal battle of Bannockburn, and was regularly summoned to parliament from the 6th February, 27th Edward I. 1299, to the 29th July, 8th Edward II. 1314. He died in 1315, and was buried in the Abbey of Fountains in Yorkshire; and by Eleanor his wife, daughter of John Earl of Arundel, who survived him, he left issue. Henry his eldest son, then aged sixteen years; and William, who was made a Knight of the Bath, 20th Edward II. and died in 1355.”

Siege of Carlaverock.

III. CLIFFORD.

“Robert de Clifford was the eldest son of Roger de Clifford, who was accidentally slain between Snowden and Anglesey in 1280. He was born about Easter, April, 1274, and in the 14th Edward I., 1286, he succeeded his grandfather in his baronial honours, being then twelve years of age. In the 13th Edward I., he was found to be one of the heirs of Ralph de Gaugy, and paid 100*l.* for his relief; after which, the next circumstance which has been found recorded of him is, that he was summoned to attend the King, with horse and arms, on his expedition beyond the sea on the 4th May, 25th Edward I. 1297; and on the 26th September following, he was ordered to be at Carlisle, similarly equipped, to serve against the Scots, at the ensuing Feast of Pentecost; but Dugdale asserts, that he was present at the battle of Dunbar, in 24th Edward I.; that in the 25th Edward I., he was sent with a hundred men-at-arms and twenty-thousand foot from Carlisle to plunder in Scotland; and that, after much slaughter, he returned with considerable booty on Christmas eve. In that year he was also appointed Justice of all the King’s forests beyond the Trent; in 26th Edward I., he was made governor of Nottingham Castle; and on the 27th Edward I., being constituted the King’s Lieutenant and Captain-General in the counties of Cumberland, Westmoreland and Lancaster, and throughout Annandale and the Marches of Scotland, he was joined in commission with the Bishop of Durham and others, to consider of the means of garrisoning the castles in that kingdom, and for guarding the marches. Clifford was again summoned to the Scottish wars on the 7th May, 27th Edward I., 1299, and received his first writ to parliament on the 29th December in the same year.

“As Clifford did not attain his majority till 1295, he consequently could not have been above twenty-five when he was thus honoured with his sovereign’s confidence,—a fact which speaks forcibly in his praise. It was at this period of his life that he was noticed in the poem;¹⁵⁵ and as his conduct at Carlaverock is wholly passed over by his former biographer, it claims especial regard in this memoir. After stating that he served in the third squadron, which was led by the King in person, and extolling Clifford’s valour, descent and prudence, the writer adds, that if he were a young maiden, he would bestow on him his heart and person, in consideration of his renown. During the siege, we are told that he particularly distinguished himself, and was rewarded by being appointed Governor of the Castle when it surrendered; in consequence of which, his banner was placed on its battlements. Clifford was a party to the letter from the Barons to Pope Boniface, in the 29th Edward I., February 1301, in which he is described as “Castellanus de Appelby;” and, in the 34th Edward I., in recompense for his numerous services, he obtained a grant of the borough of Hartlepole, and of all the lands of Robert de Brus. In the same year, he was sent with Aymer de Valence against the said Robert, who had then assumed the title of King of Scotland; about which time the lands of Christopher de Seyton were granted to him. Clifford attended the deathbed of the King in 1307, and received the dying monarch’s injunctions to prevent the return of Gaveston into the realm. In the 1st Edward II., he was again made Governor of Nottingham Castle, and constituted Earl Marshal of England; and, on the 31st January 1308, he joined several other Lords in an engagement to support the title and honour of the young King with their lives and fortunes. In the 2d Edward II. he was constituted Warden of the Marches of Scotland, and soon afterwards Governor of that kingdom; and on the 17th March 1309–10, was one of the Peers selected to regulate the royal household. Several valuable grants of lands were bestowed upon him in the 3d and 4th Edward II., in consideration of his merits; and he was again summoned to serve in Scotland, in the 4th Edward II. In the 6th Edward II. he was joined in commission with the Earl of Hereford and others, to continue a treaty begun at Margate with the Count of Eureux and the Bishop of Poitou, upon some important affairs. On the 6th February 1313, he received an acquittance from the King, for the jewels, horses, &c. belonging to Piers de Gaveston; and he firmly adhered to Thomas Earl of

Lancaster, against the unfortunate favourite, for his agency in whose death he afterwards procured the royal pardon.

“Lord Clifford was regularly summoned to parliament from the 29th December, 28th Edward I. 1299, to the 26th November, 7th Edward II. 1313; and he terminated his career in a manner strictly consistent with his life, for he fell in the battle of Bannockburn, on the 25th June 1314, at the early age of forty years. His body was sent to King Edward at Berwick, and is supposed to have been buried at Shapp Abbey, in Westmoreland.

“Clifford married Maud, daughter, and eventually coheir of Thomas de Clare, steward of Waltham-Forest, son of Thomas, younger son of Richard de Clare, Earl of Gloucester and Hertford, by whom, who survived him, and remarried Robert, Baron Welles, he had issue Roger, his successor in the barony, then aged fifteen years, but who died, s. p. in 1337; Robert, brother and heir of Roger, and, according to some pedigrees, two other sons, John and Andrew; and a daughter, Idonea, the wife of Henry Lord Clifford.

“From Robert de Clifford, the second son of the subject of this article, descended the baronial line of Clifford, which, in the reign of Henry the Eighth, was elevated to the earldom of Cumberland. The barony of Clifford is now possessed by Edward Southwell, the present Lord de Clifford, the abeyance having been terminated in favour of his Lordship’s father in 1776.”^{[156](#)}

G.

HUGH DE CRESSINGHAM.

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Respecting this avaricious and time-serving minion, few particulars are known. The historians of his country appear to have left his memory in a state between obloquy and oblivion, and the odium he drew upon himself, during his short administration in Scotland, remains unrelieved by the relation of any redeeming circumstances on the part of those who may be supposed intimately acquainted with his character. Sir Walter Scott, in his *Border Antiquities*, mentions, that he was Rector of Ruddely, Chief Justiciary of York Assizes, and Prebendary of many churches.

But his numerous ecclesiastical duties were totally neglected, for the more congenial pursuits afforded by the cabinet and the camp; and it is stated, that though in the possession of so many lucrative benefices, he never assumed the garb peculiar to his sacred profession. In his character of Treasurer, he incurred a degree of detestation, which does not appear to have been attached to any of the other officers appointed by Edward to the management of affairs in Scotland. Among his own countrymen, his speculation occasioned disgust, and in many instances desertion; while his short-sighted rapacity chafed the impatient and angry feelings of a people smarting under the infliction of a yoke to which they had been hitherto unaccustomed, and greatly contributed in raising that spirit of insurrection in which his aggressions met with the vengeance they had provoked.

END OF VOLUME FIRST.

PRINTED BY J. HUTCHISON,
FOR THE HEIRS OF D. WILLISON.

FOOTNOTES

¹ Glasgow, 1825.

² Hemingford says, that there were *fifty thousand slain*, many drowned, and *three hundred thousand foot* taken prisoners, besides a thousand horsemen.

³ Hist. Lib. iv. c. 15.

⁴ Appendix to Blair's Relationes in the Library of the College of Glasgow.

⁵ Scottish Historical Library, p. 68. quarto ed.

⁶ In England, Thomas à Becket conceded to Henry II., that, in the event of a bondsman becoming a clerk, he should not receive orders without the consent of his lord; and further, if a man of holy church held any lay-fee, he must do the King's service thereto attached, except in cases connected with the execution of criminals. See *Hearne's Glossary* to *Langtoft's Chronicle*, vol. ii. p. 530.

⁷ Macpherson's *Annals of Commerce*, vol. i. p. 324.

⁸ Fordun, vol. ii. lib. x. cap. 42.

⁹ Fordun, vol. ii. lib. x. cap. 42.—If we compare the following provisions of an act put forth by Edward I., with the above-mentioned enactment, some idea may be formed

respecting the views entertained by the two British monarchs, on the subject of foreign commercial intercourse. “It is ordained, that no fishmonger shall have any partnership with a stranger who brings fish from sea to the city; but let them seek for fish in their *own* ships, and permit foreigners to bring it and sell, when they come in their own ships. Because, by such partnerships, they who are of the city, and have known the state of the city, and the defect of victuals, will hold the fish at a dearer rate than foreigners, who shall not have known it; and also, that they who are of the city, when they cannot sell, as they will lay it up in cellars, and sell it *dearer than the strangers would do, if they came without partnership, and knew not where they might be harboured.*”—Lambert’s Historical Survey of London, vol. i. p. 156, 157.

¹⁰ Fœdera, vol. i. p. 467.

¹¹ Torfæi Orcades, lib. i. cap. 4.

¹² Chron. of Lanercoste. See Macpherson’s Annals of Commerce, vol. i. p. 446. In 1282, the customs of England were farmed by Bonricini, Guidicon & Co. of Lucca, and the sum realized, from Easter 1281 till Easter 1282, netted 8411*l.* 19*s.* 11½*d.* The money, it may be observed at this time, was the same in both countries. *Madox, History of the Exchequer*, c. 23. fo. 1.

¹³ The use of coal as fuel was very early known in Scotland. By a charter, dated in April 1291, William de Obervill granted liberty to the monks of Dunfermline, to dig coal for their own use in his lands of Pittencrieff, but upon no account to sell any, (Chart. in Statist. Account of Scotland, vol. xiii. p. 469.) By this restriction, it would seem that the proprietor not only set a value on the sale of coal, but also that the monks of those days were in the habit of improving

their resources, by trafficking in temporal as well as in spiritual matters.

¹⁴ Ayloff's Calendar, p. 88. Some idea may be formed of the injury which the trade of Scotland sustained by the long protracted and impoverishing warfare she had to maintain in support of her independence, from the circumstance of James I. being obliged, in 1430, to commission two citizens of London to send him the following articles for his own use: viz. 20 tuns of wine, 12 bows, 4 dozen yards of cloth of different colours, and 12 yards of scarlet, 20 yards of red worsted, 8 dozen pewter vessels, 1200 wooden bowls (or caps), packed in 4 barrels, 3 dozen coverels, a bason and font, 2 summer saddles, 1 hackney saddle, 1 woman's saddle, with furniture, 2 portmanteaus, 4 yards of motley, 5 yards of murray, 5 yards of black cloth of Lyn, 12 yards kersey, 12 skins of red leather, and some trifling articles. These goods, shipped on board a vessel belonging to London, were secured by a royal order from being molested by English cruizers, but they were to pay the customary duties. *Fædera*, vol. x. p. 470.

¹⁵ Rymer's Coll. MS. vol. ii. p. 287.

¹⁶ This traffic was frequently interrupted by war; in time of peace, it was carried on to a considerable extent. The first notice that we have of its revival after the wars of Wallace and Bruce, occurs in a letter of safe-conduct granted 12th January 1359, to Andrew Murray and Alan Erskine, two Scottish drovers, with three horsemen and their servants for travelling through England, or the King's foreign dominions, for a year, with horses, oxen, cows, and other goods and merchandise.—*Fædera*, vol. vi. p. 114.

¹⁷ The greyhounds, "*leporarii*," of Scotland were considered so superior, that the Duke of Berry, in France, thought it worth while to send his valet, and three other men, to

procure some of them, and to obtain letters of safe-conduct from the King of England, to enable them to travel through his dominions on that business.—Fœdera, vol. vii. page 831.

¹⁸ By the chamberlain's accounts, it appears that the 178 hogsheads cost 439*l.* 16*s.* 8*d.* Sterling, while the 67 hogsheads and 1 pipe cost 373*l.* 16*s.* 8*d.* Could this difference arise from the latter being of superior quality, or from the market being overstocked, in consequence of the expected demand? No doubt there were speculators in those days, as well as at present.

¹⁹ Wyntown, vol. i. p. 286.

²⁰ Some fine specimens of these battle-axes may be seen in the museum at Inverness.

²¹ By the chamberlain's accounts it appears, that in the reign of Alexander III., the King's *Balistarius*, or keeper of the cross-bows for the Castle of Ayr, was allowed yearly two merks and a half.

²² P. 668.

²³ Annals of Commerce, vol. i. p. 397 & 398.

²⁴ Philosophical Transactions, vol. xxi. p. 230.

²⁵ Macpherson's Annals of Commerce, vol. i. p. 440.

²⁶ The following proverb is still floating on the breath of tradition among the Highlanders—“*Már thubhairt clag Scáin, an rud nach buin duit na buin da;*” “As the bell of Scoon rang, what belongs not to you meddle not with.”

²⁷ The name and labours of this priest have created a little perplexity among the learned. He appears to have made a

sort of census of the kingdom, in which the names of the Bishops, Abbots, Priors, Parsons, Vicars, Abbesses, Earls, Barons, Knights, Freeholders, and Communities of cities and burghs, were registered. This roll, in which their rentals were stated, is known in Scottish history by the name of “Bagamont’s Roll,” and was always referred to in disputes respecting church property. For the purpose of a like assessment, Bagamont appears to have made a similar census in England. A copy of the Scotch roll, carried off most likely by Edward, along with the other documents, from Scone, was found in the Tower of London, and given to the world, by the more modern historians of England, as the “Homage Roll of Scotland,” under the cognomen of “Ragman’s Roll.” The disgrace which this document seems to infer, is pathetically bewailed by Abercromby. If he had turned to the learned Bishop of Carlisle’s Scottish Historical Library, p. 53, his grief might have been a little assuaged by the following passage:—“One of the most ancient repertories of the primitive state and rights of the Scottish church, is the old Book of the Taxation of Ecclesiastical Benefices, whereof Sir John Skene has given us the following account. ^A ‘The Pape, in the time of King ^B James the Third, sent in this realm ane cardinal and legate, called Bagimont: quha did make ane taxation of all the rentals of the benefices, that the samin might be knawin to the Pape: to the effect, that, when any person came to Rome seikin Bulles, or right to ony benefice fra him, he might conform to the said rental as he pleased, sell the samin for sa meikle silver or gold as he thocht maist profitable.’ This is by no means exact, nor answerable to what we commonly have from that learned writer; for that very law of ^C James the Third, to which he refers, cites this taxation by the name of the ‘Provinciallis Buik, or the auld taxation of Bagimont;’ and shews, that in this King’s time, endeavours were used to raise the values of the livings above what they were rated at, to the advantage of the Court of Rome, and

against ‘the common gude of the realme.’ This act was confirmed by his son and successor James the Fourth, who made ^D the crime capital in laymen, ordaining that all such should ‘tine their life and gudes.’ We are, therefore, still in the dark as to the true author of this ancient valuation; being certainly misinformed of the time wherein he lived, and (perhaps) knowing as little of his proper name. If I may be allowed to offer my conjecture, I should guess that this ecclesiastical survey is about the same age with that which was made (of the lands in England) by our Edward the First; and possibly the names of ^E Rageman and Bagimont were heretofore one and the same. What this or the other means, or how both have been corrupted, let the nicer etymologists inquire.”

^A De Verb. Sign. in voce Bagimont.

^B It should be Alex.

^C Vide Spotswood, lib. 2. p. 46. (3) Parl. 6. Ja. 3. Act 43.

^D Parl. 4. St. 39.

^E Vide D. Hen. Spelman. Gloss. in voce Rageman, and Repository of Records, p. 26. Had this candid and generally correct writer referred to Fordun, Book X. chap, xvii., he might have satisfied himself as to the date, origin, and nature of this roll, as well as the name and character of its author. The alteration of Bagimont to Rageman, is evidently an English corruption, which the writers of that country ought to be best able to explain. Ragman’s Roll, as a roll of vassalage to Edward, is unknown to *ancient* English and Scottish historians.

²⁹ Hailes, 155, 156.

³⁰ Vol. ii. p. 443 & 444.

³¹ Vol. ii. p. 187. 3d edition.

³² Chron. Melrose, p. 179.

³³ Hoveden, fol. 420.

³⁴ Fœdera, vol. i. p. 155.

³⁵ Icelandic Chronicle.

³⁶ Hailes, 188, 189.

³⁷ This reply of Alexander has been noticed, by various historians, as an uncommon instance of the precocity of the Royal intellect. Lord Hailes speaks of it as displaying “prudence and resolution superior to his years.” Without detracting from the merits of Alexander, it might with more propriety be considered as merely the well-conned lesson given him by the watchful guardians of the independence of his crown, whom experience had taught to be prepared for the attempt.

³⁸ The following quotation is from the work of a learned Englishman.

“There is” (inter Poemata, M.S. D. R. Maithland, p. S. Pepys, Armig.) “a manuscript account of *Robert* the Third’s contest with our *Henry* the Fourth, upon the subject of Homage; in the conclusion whereof (after the word *Finis*) is this inscription—The *Ring* (for *Reign*) of the Roy *Robert*, made be *Dean* David Steill. In this the King of *England* summons *Robert* to do fealty at *London*.

*Eftir the richt of Brutus King,
Quhilck had all Ingland in governing, &c.*

In return to which, 'tis affirm'd that

*Scotland evir yit hes bene free,
Sin Scots of Ægypt tuick the see.*

It's likewise observ'd, that *England* itself (having been four times conquer'd by the *Romans*, *Saxons*, *Danes*, and *Normans*) has little ground for such a challenge; and ought to remember how frequently she has miscarry'd in her adventures of that kind. In conclusion, *Robert* proposes the deciding this controversie by sixty against sixty (of the Royal blood of both kingdoms), forty against forty, or twenty against twenty: Or, if *Henry* approves it, that the two Kings themselves may end it in a single combat. In which last offer, are these remarkable lines.

*"I proffer me to prief on the
At we and Scotland yit are free,
And of the Paip nothing we hauld,
But of the Kirk our Faith of auld."*

See *Nicholson's Scottish Historical Library*, p. 154, 155, 8vo. ed. and 43 of 4to.

³⁹ Hailes, p. 243, 244.

⁴⁰ Baliol, who, on the death of the Scottish Queen, assumed the title of "*Hæres regni Scotiæ*," had engaged the powerful interest of the Bishop of Durham, by a grant of all the manors possessed by Alexander III. in Cumberland;—or, in the event of Edward refusing to sanction the grant, fifty manors in Scotland, in lieu of them. Had any of the other competitors been preferred, this grant must have fallen to the ground.—*Original Charter in possession of Mr Astle, and published in his Account of the Seals of the Kings of Scotland*, p. 22. It is more than probable that the influence

and services of the Bishop of St Andrew's had been secured by prospects perhaps equally advantageous.

⁴¹ In support of this claim, Dr Lingard has, with great industry, collected the evidence afforded by the ancient chronicles of England from Brutus downward. These fabrications of the cloisters, however, are contradicted by events, respecting the truth of which the historians of both countries are agreed. It is rather singular, that when John became the *liegeman* of the See of Rome, and, with the consent of his barons, surrendered THE "KINGDOMS OF ENGLAND AND IRELAND TO BE HELD OF THE POPE IN FEE, FOR A THOUSAND MERKS," that he should have *tricked* his Holiness out of THE KINGDOM OF SCOTLAND. Surely the example of Ananias was lost on the English monarch, when he thus trifled with the church, and kept back a *third* of *his* kingdoms. Dr Lingard does not inform his readers how the watchful guardian of "the Patrimony of St Peter" came to wink at so gross an imposition.

After all that the learned Doctor has advanced on the subject, it is pretty plain, that the homage of England over Scotland is something like that which was extorted by St Dunstan from a certain potentate who shall be nameless. Though the saint compelled him to cry *peccavi*, in a manner that made a great noise in the world at the time, yet when he became relieved from the scrape, and had got his nose in order, his *saintship* found his *vassal* as troublesome and evil disposed as ever.

⁴² Hailes, p. 245, 246.

⁴³ Langtoft, vol. ii. p. 248.

⁴⁴ A family of the name of Waleis also existed in England, some of whom appear to have attained the highest civic honours in the city of London. We are informed by Stowe, that, in 1299, when part of the palace of Westminster, and

the public buildings of the adjoining monastery, were destroyed by fire, a Parliament was held by Edward in the house of Henry Waleis, Mayor of London, at Stehenheth, “when crokards, pollards, and rosaries, coyned in foreign parts beyond seas, and uttered for sterlings, were cried down.” Henry Waleis was also Mayor in 1300; and a person of the same name is mentioned as having contributed largely to the building of “St Martyn’s Church, in the vintry of London;” he is also said to have filled the office of Mayor, during which time he built a prison, called the Tun, in Cornhill, for night-walkers. In 1296, when Edward granted the citizens of London the right of electing their chief magistrate, one William Waleis was called by the public voice to the civic chair.

⁴⁵ Fordun says the name of the elder son was *Andrew*, and thus speaks of him—“Cujus frater senior miles Andreas nomine, et militiæ cingulo succinctus.”

⁴⁶ Hailes, p. 253.

⁴⁷ This Gilbert de Umfraville, according to Dugdale, was descended from Robert de Umfraville, Knight of Tours, otherwise called Robert with the Beard, who was a kinsman of William the Conqueror. Having obtained a grant of the Scottish as well as the English inheritance of Ingram de Baliol, Umfraville became Earl of Angus, and was constituted governor of the castles of Dundee and Forfar. Justly considering that he held these fortresses in charge from the Scottish Regency, he could not surrender them to England, unless Edward and the Scottish Regency joined in an obligation to indemnify him. His demand was complied with; on which Lord Hailes remarks, that “he was the only *Scotsman* who acted with integrity and spirit on this trial of national integrity and spirit.” But, unfortunately for even this solitary instance of integrity, Gilbert de Umfraville was an *Englishman*, and, as his conduct showed, a prudent,

cautious, circumspect man of the world, who wished to preserve his possessions in both countries, by standing fair with both governments. His request could not be objected to by either of the parties. The expenses he laid out in maintaining the castle were afterwards allowed him, in consequence of a precept sent by Edward to the Bishops of St Andrews and Glasgow, and the other guardians of the kingdom. In 22 Edward I. (according to Dugdale) he was summoned to Portsmouth, with horse and arms, to attend Edward on his expedition to France; and in 23 Edward I. he was summoned to Parliament, but not by the title of Earl of Angus, till 25 Edward I., at which time, says the above authority, “our lawyers of England were somewhat startled, and refused, in their briefs and instruments, to acknowledge him Earl, by reason that Angus was not within the kingdom of England, until he had openly produced the King’s warrant.”

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Lord Hailes, in remarking on this anecdote, as told by Buchanan, says, “I suspect, however, that this is nothing more than an abridgement of Blind Harry in classical Latin. It may be remarked, by the way, that this is one of the most specious tales in the book, for it is characteristical.” The value of his Lordship’s “Historical Doubts” are now beginning to be appreciated. There are many tales equally specious, and equally characteristical, to be found in the book, which his natural acuteness would have found no difficulty in discovering, had he laid down the quill of the lawyer, when he took up the pen of the historian. Mr Tytler gives the story, and quotes Wyntown as one of his authorities. This is a mistake; Wyntown is silent on the subject; and I suspect the truth of it must rest on the evidence of the Minstrel, and traditions still current in the country, among which are the following:—“Edward I. thought Dundee of sufficient consequence to be occupied by an English garrison; and the illustrious Wallace (with his companions, John Blair, probably of the Balthayock family,

and Sir Niel Campbell of Lochaw) is said by tradition to have received his education at Dundee school, and, in this situation, to have begun his exploits with the death of the son of the English Governor.”—*Stat. Account*, vol. viii. p. 212, 213.

“There is a very respectable man in Longforgan (in Perthshire), of the name of Smith, a weaver, and the farmer of a few acres of land, who has in his possession a stone which is called *Wallace’s Stone*. It is what was formerly called in this country a *bear-stone*, hollow like a large mortar, and was made use of to unhusk the bear or barley, as a preparative for the pot, with a large wooden mell, long before barley-mills were known. Its station was on one side of the door, and covered with a flat stone for a seat when not otherwise employed. Upon this stone Wallace sat on his way from Dundee, when he fled after killing the governor’s son, and was fed with bread and milk by the goodwife of the house, from whom the man who now lives there, and is the proprietor of the stone, is lineally descended; and here, his forbears (ancestors) have lived ever since, in nearly the same station and circumstances, for about five hundred years.”—*Stat. Account*, xix. 561, 562.

⁴⁹ Hailes, p. 284.

⁵⁰ Douglas’ Baronage, p. 456.

⁵¹ Quod tam Prælati quam Comites, Barones et alii nobiles, *necnon universitates communitatesque notabiles dicti regni Scotiæ*, suas nobis super hoc patentes literas suis munitas sigillis quam citius fieri poterit destinabunt.—*Fædera*, T. ii. p. 696.

⁵² Dugdale.

⁵³ Wyntown thus quaintly describes the feelings of Edward, on being told of the loss of his fleet:—

“Quhen the Kyng Edward of Ingland
Had herd of this deidfull Tythand,
All breme he belyd in-to berth,
And wrythyd all in wedand werth,
Alsá kobbyd in his crope
As he had ettin are Attyrcope.”
Wyntown, vol. ii. p. 81.

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Before the attack, Antony Bek, Bishop of Durham, joined the English army, with 140 knights, 500 horse, and 1000 foot, accompanied by the consecrated banners of St Cuthbert and St John of Beverley; the former carried by Henry de Horncester, a stout monk of Durham, and the latter by Gilbert de Grymmesby (so called by the English), a Scottish Vicar of Beverley College, born in the district of Kyle in Ayrshire,—who had spent a great part of his life in the service of Edward in France, where he had acted as a pursuivant. The banner of St Cuthbert accompanied the King only on extraordinary occasions. The following description of it may not be unacceptable.

“This banner was fastened to a staff, five yards in length. All the pipes were of silver, to be sliven (*slipt*) on along the banner-staff; and on the uppermost pipe, on the height of it, was a little silver cross, and a goodly banner-cloth pertaining to it, and in the midst of the banner-cloth was a white velvet, half a yard square every way, and a cross of crimson velvet over it, and within the said white velvet was the holy relique, wherewith St Cuthbert covered the chalice when he said mass, and the residue of the banner-cloth was of crimson velvet, embroidered all over with gold and green silk most sumptuously. It was not carried out but on his anniversary, and some other principal festivals in procession. It was the clerk’s office to wait on it in his surplice, with a fair red-painted staff, having a fork or cleft at the upper end, which cleft was lined with soft silk, having a down under the silk to prevent it hurting or bruising the

pipes of the banner, which were of silver, to take it down and raise it up again, by reason of the weightiness thereof. There were always four men to wait on it, besides the clerk, and divers who carried it. This last wore a strong girdle of white leather, to which the banner was fastened by two pieces of the same, having at each end of them a socket of horn to put the end of the banner-staff into.”—*Hist. and Antiq. of Durham Abbey*, p. 118, 120.

By the Wardrobe Accounts, it appears that the monk who carried the banner of St Cuthbert into Scotland, was paid 1s. per day,—while he who carried that of St John was allowed 8½d., and *one penny* per day to bring it back.

[55](#) Knighton says there were 17,000 killed, and that rivulets of blood flowed through the city for two days. Langtoft informs us, that Edward was the first to enter the breach, which he did on his favourite horse, named “Bayard.” He has omitted to say, if “Bayard” was *a pale horse*. This distinguishing trait seems only a-wanting, to render the description given of this “*most pious and clement* prince,” no unapt representation of the Grand Destroyer and last enemy of mankind.

The only man of consequence who fell on the side of the English, was Sir Richard de Cornwall. He was killed by a quarrell, shot by a Flemish merchant from the “Red Hall.” This place was a fortified factory or store, occupied by a company of Flemings trading in Berwick, and held by them of the crown of Scotland, on condition of defending it against the English to the last extremity. Their knightly devoirs they bravely performed. The fortress held out the whole day against all the force the English could bring against it. At night it was set on fire, and the faithful little band of trading warriors perished in the flames.

[56](#) Henry, Buke Fyrst, p. 10, 11.

- ⁵⁷ Some accounts say that Sir Patrick Graham was the elder brother of the gallant Sir John.
- ⁵⁸ Walter of Exeter.
- ⁵⁹ Wyntown.
- ⁶⁰ Stowe.
- ⁶¹ Vide Appendix to Tytler's History of Scotland, vol. i.
- ⁶² The object of the greatest national importance, and of the most venerable antiquity, which he carried off on this occasion, was the *Lia-faile*, called also *Clach na cineamhuinn* (fatal stone), on which the Kings of Scotland, from the earliest ages of their monarchy, had been crowned. At the ceremony of their inauguration, a *seanachaidh*, or heraldic bard, clothed in a robe of sky-blue, stood before the *lia-faile*, and recited to the King, as he sat on it, the genealogy of the Kings of Scotland, from the foundation of their dynasty. The last performance of this ancient Celtic custom, was at the coronation of Alexander III. The person who officiated on that occasion, is said to have had on a scarlet robe. This, however, was not the colour used by the Celts, for that office. The person of the heraldic bard was sacred above all others, and he wore sky-blue as emblematic of peace. The early history of the *Lia-faile* is involved in the obscurity of fable, and no small degree of sacredness has been attached to it from the connection it is supposed to have with the destinies of the Scots. The following Druidical Oracle, is considered as first giving currency to this belief.

Cioniodh scuit saor an fine,
Man ba breag an Faisdine.
Mar a bh' fhuighid an lia-fail,
Dlighid flaitheas do ghabhail.

Which Hector Boethius has thus rendered into Latin:

Ne fallat fatum, Scoti quocunque locatum
Invenient lapidem hunc, regnare tenentur ibidem.

English Translations.

Except old saws do feign,
And wizards' wits be blind,
The Scots in place must reign,
Where they this stone shall find.

* * * * *

Consider, Scot, where'er you find this stone,
If fates fail not (or lie not), there fix'd must be your throne.

Another from Langtoft, vol. ii. p. 527.

The Scottis sall bruke that realme, as natyve Ground,
(Geif weirdis fayll nocht) quhair euir this chier is found.

That part of the history of the *Lia-faile* which is considered authentic, may soon be told.—It was at an early period brought from Ireland to Dunstaffnage; from thence to Scone, in 842, by Kenneth II.; and, lastly, to Westminster, in 1296. In the Wardrobe Account of Edward, for March 1299, there is the following entry of a payment to “Walter the painter, for a step to the foot of the *New Chair, in which the Stone of Scotland* was placed, near the altar, before the shrine of St Edward, in Westminster Abbey, and to the carpenters and painters painting the said step; and the gold and colours to paint it with; and making a case to cover the said chair, L.1: 19: 7.”—*Remarks on the Wardrobe Account*, page xli. Walsingham says, that the use Edward put it to, was to serve as a chair for the celebrating priests at Westminster.

In the treaty of peace between Robert Bruce and Edward III., there is a particular stipulation for the restoration of this Stone. The Londoners, however, had taken a fancy to it, and excited a commotion to prevent its removal; and Robert had no difficulty to persuade his people, to waive the performance of the agreement. Indeed, so deep-rooted has been the belief of the Scots in the augury attached to it, that many looked upon the accession of James to the British throne as the fulfilment of the prediction. Even in the present day, when there is so much anxiety evinced for the recovery of objects held in national estimation, we do not hear of any application being made to his Majesty for the restoration of the *Lia-faile*. There is no doubt but many of those who witnessed the original aggression, would console themselves with the reflection, that the “*Lang-shanked Southerone*” had caught a Tartar.

[63](#) The servility of the Scottish Barons was not always unrequited. By the Rotuli Scotiæ, 19 Edward I. *et passim* 24, it appears he gave obligations of the following import.

	<i>Annual Value.</i>
To the Bishop of Glasgow, lands of	L.100
To James the Steward	100
To Patrick Earl of Dunbar	100
To John de Soulis	100 merks.
To William Sinclair	100
To Patrick de Graham	100
To William de Soulis	100

Edward afterwards changed his plan, and gave these barons and prelates gratifications in money, or other value. But to John Comyn the King gave the enormous sum of L.1563: 14: 6½d.—*Tytler’s Hist.* vol. i. p. 99.

[64](#) Prophetic announcements respecting him were also, at an after period, sent abroad by the Scottish clergy.—“*Nam revelatione mirifica ostensum est fide dignioribus diversis,*

sanctissimum apostolum Andream, regni Scotiæ, protectorem et patronum, dicto Willielmo Wallace gladium cruentatum manu aliter commisisse, stricte sibi præcipiendo eo utrobique uti ad defensionem regni Anglicos propulsando.—Custos itaque effectus, misit manum suam ad fortia, Anglicos prosternens, Anglicatos reconcilians, oppressos relevans, et quotidianis incrementis proficiens.” *M.S. Cuprensis*. See Fordun’s *Scotichronicon*, vol. ii. p. 170.—This vision of St Andrew is also taken notice of by Blind Harry.—*Vide Buke Sewynd*, v. 57.

⁶⁵ “Riccardtoun is evidently a corruption of Richardtown. It is generally said to have been so called from a Sir Richard Wallace, who lived in the vicinity of the village, and who is said to have been uncle to the celebrated patriot Sir William Wallace. Of his house no vestige now remains. The place, however, where it stood is well known. The village of Riccardtown is within one mile of the market town of Kilmarnock.”—*Stat. Acc.* vol. vi. p. 117.

⁶⁶ “Among other antiquities, there may be mentioned a place called Beg, above Allinton, where the brave Wallace lay in a species of rude fortification, with only fifty of his friends, yet obtained a complete victory over an English officer of the name of Fenwick, who had two hundred men under his command. This gallant hero, it is well known, had several places of retirement towards the head of this parish, and in the neighbourhood, some of which still retain his name to this day. Wallace-hill, in particular, an eminence near Gallalaw, and a place called Wallace-Gill, in the parish of Loudoun, a hollow glen to which he probably retired for shelter, when pursued by his enemies.”—*Stat. Acc.* ii. 74.

⁶⁷ Dugdale, vol. i. p. 266.

⁶⁸ Froisart.

⁶⁹ The ruins which are now called Crosby Castle, are situated in the district of Cunningham, within a short distance of the village of West Kilbride. They occupy part of the ground on which stood the old castle belonging to Sir Raynald Crawford. By the date on the wall, it seems to have undergone repairs in 1676. The present building has never been a place of great strength. From the appearance of the ground, however, and other indications in the neighbourhood, the former castle must have been of a different character. On the edge of a deep precipitous glen, well adapted for concealment, it afforded every facility for eluding the pursuit of an enemy. A noisy brook dashes from rock to rock down the dark and well-wooded ravine, whose craggy sides must often have witnessed the meeting of Wallace and his associates.

⁷⁰ The Charter of Wallace, by which Scrimgeor held the Constabulary of Dundee, is still in existence, and will be given in vol. ii. of this work. The seal affixed to the instrument is that of Baliol, and accompanies, as a frontispiece, the present volume.

The peculiarities of a constable's office, are thus enumerated in *Bray's History of Surrey*, vol. iii. p. 136. "In an instrument of William de Wickham, dated at Eshu, 19. January 1379, 3. Richard II., by which he appointed William de Wimbledon constable, the duty of his office is stated to be, to keep, govern, and oversee the castle, together with the manor, lordship, lands, franchises, liberties, parks, chases, warrens, &c. belonging to the same; also to hold the courts and to prosecute, challenge, claim, and defend all rights and franchises belonging to the bishop and church of Winchester within the said bailiwick."

⁷¹ The following is a copy of the "band of manrent" alluded to, from the original Latin, in the possession of the family of Somerville.

“Be it kend till all men be thir present letters, me, Sir Walter of Newbigging, and me, Sir David of Towie, for all the dayes of our lyves to be obleidged and bound be the faith of our bodies and thir present letters in mandred, and sworne counsell as brothers in law, to be with one another in all actiones, causes, and quarrills pertaineing to us, both in peace and in warr, against all that lyves and dyes, excepting our alleadgeance to our soveraigne lord the king. In witnes of the whilk thing, and of ther present letters, wee have hung to our sealles, att Aberdean, the twentieth day of Apryle, the year of God 1281, before ther witnesses, William Somervill, our brother, and John Somervill and Thomas Stelfeir.” To this band of mandrey is appended two sealles, very legible and knowne, for the Somervills and Barclayes differed nothing from what they are at present, save a little in the placing of the armes.“—*Memorie of the Somervills*, vol. i. p. 75, 76.

[72](#)

Respecting the armour and sword of Wallace, Doctor Jamieson has the following note. “In the Castle of Dunbarton, they pretend to show the mail, and, if I mistake not, also the sword of Wallace. If he was confined in that fortress by Monteith, before being sent into England, as some have supposed, it is not improbable that his armour might be left there. The popular belief on this head, however, is very strong; of which I recollect a singular proof, which took place many years ago, and of which I was an eye-witness. In the procession of King Crispin, at Glasgow, his majesty was always preceded by one on horseback, appearing as his *champion*. In former times, this champion of the awl thought it enough to wear a leathern jerkin, formed like one of mail. One fellow, however, was appointed, of a more aspiring genius than his predecessors, who was determined to appear in real mail; and who, having sent to Dunbarton Castle, and hired the use of Wallace’s armour for a day, made his perambulations with it through the streets of Glasgow. I can never forget the

ghastly appearance of this poor man, who was so chilled and overburdened by the armour, that, as the procession moved, he was under the necessity of frequently supporting himself with a cordial. It was said that he took to bed immediately after the termination of this procession, and never rose from it. From that time forward, his successors in office were content to wear the proper badge of their profession.”—*Dr Jamieson’s Notes on Blind Harry*.

On this extract from the Doctor’s invaluable work, the writer has to remark, that information derived from inquiry made on the subject, does not entirely confirm the correctness of *all* the statements that extract contains. That a man in *real armour* figured in the procession of King Crispin at Glasgow, about forty years ago, is a well-known fact; but that the armour had belonged to Wallace, is any thing but certain. If so precious a deposit had been in the charge of the Governor of Dumbarton Castle, it is conceived he must have possessed more good nature than became his situation, if he lent it out to grace any such fooleries. Certain it is, if such armour was in Dumbarton Castle at the time, it is unknown to those connected with the garrison at present; and we can *not conceive that a relic, so valuable in the estimation of the public, would have totally disappeared, without its being known what had become of it. The inquiries of the writer enable him to state, that the mail used on this occasion was lent to the followers of King Crispin by a gentleman belonging to Glasgow of the name of Wilsone. It was plate-armour and highly polished. The sons of the awl, however, had a taste of their own in such matters, and took the liberty of painting it in oil, of a colour more to their fancy. But on being returned in this altered condition, it was thrown aside by the indignant proprietor. All that they *pretend* to show in the Castle of Dumbarton, as having belonged to Wallace, is a sword of a very antique fashion, intended to be used with both hands, but by no means of a weight that would prevent men of ordinary strength of the present day from wielding it. There is no

proof, however, that it belonged to the Deliverer of Scotland; and, if we may credit the account given by old people, of its having been dragged up from the bottom of the Clyde by the anchor of a vessel about sixty years ago, its identity becomes more than doubtful. Such, however, is the prevalence of the report in its favour, that it was some time since sent to London for the inspection of certain official characters connected with the Board of Ordnance. At the time it was sent off, it wanted several inches of its length, which, it seems, had been broke off by some accident. Whatever may have been the opinion of those to whom it was sent, respecting its connection with Wallace, we know not; but as they were at the trouble of getting it repaired, in a manner that reflects credit on the talents of the artist, and returning it with a handsome scabbard, they have at least paid a compliment to the prejudice in its favour.

⁷³ A specimen of this formidable weapon the writer has seen in the Museum at Inverness.

⁷⁴ According to Pinkerton and other authorities, Henry did not finish his work till 1470. It is therefore more probable that the curiosity of James was excited by the original narrative of Blair; a book which, from his long captivity in England, he had perhaps heard little about, till his return to Scotland. The rehearsal, therefore, of the heroic achievements of his illustrious countryman, may have produced all the excitement which the Editor of the Perth edition supposes, though not made by the Minstrel.

⁷⁵ “A little south of the village, there is a conical height called Kin-hill, which is evidently artificial, and seems to have been a military work. There are the remains of a ditch or rampart of a circular form, which proves that it is not of Roman origin. It is probably of later date, and appears to have been the place from which Sir William Wallace sallied

forth on the night when he took by surprise the *Peel of Gargunnock*.”—*Stat. Acc.* xviii. 116, 117.

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The concealing of money and other valuables in the earth, appears to have been a very common practice in Scotland, during the calamitous periods of her history; and many an instance has been recorded of little depôts coming to light; which it is very probable were composed of the hard-earned plunder of the military adventurer, whose ambition, avarice, or duty, called him off to other fields, where he and his secret perished together.

From the many notices we have seen of the discovery of hidden treasures, we shall select the following, as alluding more particularly to the period embraced in our narrative. We cannot, however, agree with the learned Editor in the opinion, that the coins in question were hidden by the soldiers of Edward; they held the country by too precarious a tenure to make such deposits. It is more likely to have been the share of booty belonging to some patriot Scot, who had afterwards fallen in the cause of his country's independence. “There was lately found, on the farm of Mr Rankine of Whitehall, parish of New Cumnock, Ayrshire, by a person employed in turning up the ground with a spade, about two feet from the surface, a small vase, of an antique form, similar to those in the Englefield Collection, and of very coarse materials, containing about a hundred silver pennies of Alexander III. of Scotland, and Edward I. of England, in good preservation, having the head and characters distinctly legible. The English coins were more numerous than the Scotch. Those of Alexander represent him in profile, as do all the coins of his reign, and have round the head, *Alexander Dei Gra*::; and on the other side, *Rex Scotorum*, with a cross extending to the edge, and a spur level in each of the quarters. This coin is No. 33, first page of plates appended to Adam de Cardonnel's *Numismata Scotiæ*. Those of Edward represent him in full face, with *Edw. Ang*.; *Dus Hyb*.; and on the reverse of the

different coins, *Civitas Cantor*, *Civitas London*, *Civitas Lincoln*, and almost all the mint-towns of England, with the cross extending to the edge, and three roses in each quarter. From the great number of these coins found in this part of the country, it is probable they were deposited in the earth by the soldiers of Edward, who had taken refuge in these mountainous regions, when flying from the well-merited indignation of the Scotch. They must have been placed in the ground some time about the beginning of the fourteenth century. Bruce having obtained the crown in the year 1306, and relating, as they do, to a most interesting period of our history, and which is embalmed in the memory of every Scotsman, they are worthy of occupying a place in the cabinets of the curious. A few of them have been sent to the Museum of Edinburgh College.”—*Scotsman*.

Within these few years also, a depôt was discovered at Ascog, in the island of Bute, in which four thousand silver pennies of Edward I. were found, most of them of the London mintage.

⁷⁷ “This appears to have been the head of the ancient family of Heron who held Ford Castle in Northumberland. In the reign of Henry III. it was in possession of Sir William Heron, who was Governor of the Castles of Bamborough, Pickering, and Scarborough, Lord Warden of the Forests north of Trent, and Sheriff of Northumberland for eleven successive years.”—Vide *Hutchinson’s Northumberland*, ii. 19. “This Castle has attracted much attention, as having been the scene of the enchantments of its fair mistress, by means of which our infatuated James IV. was disarmed before the battle of Flodden; and it has acquired additional celebrity, from the no less bewitching muse of the Author of *Marmion*.”—*Dr Jamieson’s Notes on Blind Harry*.

⁷⁸ It would be rather difficult to assign sufficient reasons for the inferiority of the Scottish archers to those of England; and perhaps it may be one of those popular errors, which,

being once promulgated, has passed unquestioned. The ridicule which James I. has thrown upon a certain portion of his countrymen, in his poem of Chryst's Kirk on the Green, has no doubt tended to confirm, or perhaps to give rise to the opinion. The advice which Robert Bruce gave his countrymen, always to attack and disperse the English archers, as early in the engagement as possible, is likewise quoted as an instance of the dread which the Scots entertained for this description of their enemies' force. But this advice most probably was suggested, more from the vast multitudes of bowmen which the English had it in their power to bring into the field, than from any peculiar or individual advantage they possessed at their weapon. The archers whom Bruce attacked and dispersed at the battle of Bannockburn were chiefly Welch;—when individual trials of skill occurred, any inferiority on the part of the Scots was never very conspicuous; and there appears no reason it should have been so. The attention they bestowed on the art was at least equal to that of their neighbours. This is evident, from the numerous wapenschaws established all over the country. In the works of Lindsay of Pittscottie, we have the following account of a “waigeour of archerie,” between the Queen Dowager of Scotland and her son James V.:—“In this yeir cam an Inglisch ambassadour out of Ingland, callit Lord Williame, ane bischope, and vther gentlmen, to the number of thrie scoir horss, quhilkis war all able, wailed gentlmen, for all kynd of pastime, as schotting, louping, wrastling, runing, and casting of the stone. Bot they war weill assayed in all these or they went home; and that be thair awin provocation, and almost evir tint, quhill at the last the kingis mother favoured the Inglismen, becaus shoe was the king of Inglandis sister: and thairfoir shoe tuik ane waigeour of archerie vpoun the Inglismanis handis, contrair the King hir sone, and any half duzoun Scottismen, either noblmen, gentlmen, or yeamanes, that so many Inglisch men sould schott againes them at riveris, buttis, or prick bonnett. The King, heiring of

this bonspeill of his mother, was weill content. So thair was laid an hundreth crounes and ane tun of wyne pandit on everie syd. The ground was chosin in St Androis; the Scottis archeris was thrie landit gentlmen and thrie yeamanes, to witt, David Weimes of that ilk, David Arnott of that ilk, and Mr Johne Wedderburne, viccar of Dundie. The yeamanes was Johne Thomsone in Leith, Stevin Tabroner, and Alexander Baillie, who was ane pyper, and schott vondrous neir, and wan the vaigour from the Inglismen; and thairefter went in to the toun and maid ane banquet to the king and the queine, and the Inglisch ambassadour, with the wholl tuo hundreth crounes, and the tuo tunes of wyne. Albeit that the Inglismen confessed that the Scottismen sauld have been fried of the payment of that banqueitt, quhilk was so gorgeous that it was of no les awaill than the said gold and wyne extended to.”—*Chronicles of Scotland, by Lindsay of Pitscottie*, vol. ii. p. 347, 348. It may also be observed, that the value which the Scots set upon the quality of the feathers used for their arrows, bespeaks a considerable proficiency in the art. Those of the Earn appear, from the following extract, to have been in the greatest request. “In the west and north-west of Scotland, there is a great repaying of the Erne, of a marvellous nature: the people are very curious to catch him, and punze his wings, that hee fly not. Hee is of a hudge quantity, and a ravenous kind as the hawks, and the same qualitie. They doe give him such sort of meat, in great quantity at once, that hee lives contented therewith 14, 16, or 20 dayes, and some of them a moneth. Their feathers are good for garnishing of arrowes, for they receive no raine nor water, but remaine alwayes of a durable estate, and uncorruptible. The people doe use them either when they be a hunting, or at warres.”—*A Memoriall of the most Rare and Wonderful Things in Scotland*.

[79](#)

“So late as the reign of James I. of England, there is an order dated A. D. 1616, that no less then nine bloodhounds

should be kept on the Border, upon Esk and other places mentioned.”—*Pennant’s Tour*, 1772. i. 77. ii. 397.

John Harding has given a curious account of the means used by Edward I. for taking Bruce, similar to that here said to have been employed against Wallace.

“The king Edward with *hornes* and *houndes* him soght,
With menne on fote, through marris, mosse & myre,
Through wodes also & mountens, (wher they fought),
And euer the kyng Edward hight men greate hyre,
Hym for to take by might conquere;
But thei might hym not gette, by force ne by traine,
He satte by the fyre when thei (went) in the rain.”

* * * * *

The following description of these dogs is from an old writer, well acquainted with their character. “In Scotland are dogs of marveyulous condition, above the nature of other dogs. The first is a hound of great swiftnesse, hardiness and strength, fierce and cruell upon all wilde beasts, and eger against thieves that offer their masters any violence. The second is a rach, or hound, verie exquisite in following the foote, (which is called drawing), whether it bee of man or beast; yea, he will pursue any maner of fowle, and find out whatsoever fish haunting the land, or lurking amongst the rocks, specially the otter, by that excellent sent of smelling wherewith he is indued. The third sort is no greater than the aforesaid raches, in colour for the most part red, with blacke spots, or else black and full of red markes. These are so skilfull, (being used by practise), that they will pursue a thiefe, or thiefe-stolne goods, in the most precise maner, and finding the trespasser, with great audacity they will make a race upon him, or if hee take the water for his safegard, he shrinketh not to follow him; and entring and issuing at the same places where the party went in and out, hee never ceaseth to range till he hath noysed his footing, and bee come to the place wherein the thiefe is shrowded or

hid. These dogs are called Sleuth-hounds. There was a law amongst the borderers of England and Scotland, that whosoever denyed entrance to such a hound, in pursute made after felons and stolne goods, should be holden as accessary unto the theft, or taken for the selfe same thiefe.”—*Account of the Red Deer and Wild Beasts in Scotland*.

⁸⁰ In the Scottish armies of the 13th and 14th centuries, every man was supplied with a horn, generally that of a bullock, which he blew with vehemence, as he rushed on to the charge. The horrible noise this occasioned had often the effect of throwing the cavalry into confusion. These horns are sometimes alluded to in our national ballads.

⁸¹ See [Appendix A](#).

⁸² I tell you a truth, Liberty is the best of all things:
My son, never live under any slavish bond.

⁸³ “The uncle of Wallace, a priest, so often inculcated, and so deeply imprinted, the following lines upon his mind and memory, that by them he squared all the thoughts of his great soul, and efforts of his vigorous body:

*“Dico tibi verum, libertas optima rerum;
Nunquam servili, sub nexu vivito, fili.”*

Scotichron. Maj. lib. 12. cap. iii.—See also Fordun, Lib. xii. cap. iii.

⁸⁴ See [Appendix, B](#).

⁸⁵ According to a tradition still current about Crawford, Wallace is said to have first approached the castle in the disguise of an old beggar, with a patch over one eye, and his sword concealed under his cloak. In this dress, he entered into conversation with a woman engaged in washing clothes in the Clyde. From her he learned, that part of the garrison,

amounting to about fifteen men, were carousing in a “hostelrie” hard by, kept by two brothers of the name of Watt. To this place he repaired, and getting among them, it was not long before he discovered that he was the subject of their conversation. Some, more elated with the contents of the cup than their neighbours, loudly expressed the satisfaction they would feel at having a “bout” with the champion of the Scots; while he who appeared to bear command among them, declared how willingly and handsomely he would reward the man who would bring them together. Wallace offered, for “sma’ hire,” to comply with their wishes; and rising, as if for the purpose, drew forth his formidable weapon, and commenced an attack upon the party, whom he was fortunate enough, by his superior strength and dexterity, to overpower and put to death. His horn was then sounded; and his companions, quitting their lurking places, rallied around him, and surprised the castle in the manner described. The house where the above action is understood to have taken place, is still to be seen in the village of Crawford-John. It continues to be occupied by the descendants of one of the two brothers above alluded to, who was married to a woman named Dalziel, and whose progeny continued to rent it as tenants, till about three hundred years ago, when one of them, who was piper to the proprietor, received a perpetual feu of the house, and a small portion of land attached to it, for some piece of service he had performed. The room in which the above adventure is said to have occurred, is at the end of the building, nearest to the ruins of Crawford Castle; and the present occupant, Mr Dalziel, with praiseworthy attention, endeavours to preserve, as much as possible, the original appearance of the house. The ditch into which the dead bodies of the English were thrown, is still pointed out.

⁸⁶ Wyntoune, vol. ii. p. 92.

⁸⁷ *Vide* Introduction to this work, p. 26.

⁸⁸ Fordun calls him, *Willielmus de Hasliope*

⁸⁹ Wyntown, vol. ii. p. 92–95.

⁹⁰ Memorie of the Somervills, vol. i. p. 80, 81.

⁹¹ The family, from which Sir Bryce Blair is descended, has come down till the present time. He was third in succession from William de Blair, mentioned in a contract between Ralph de Eglinton and the town of Irvine, in 1205; and who is said to have died in the reign of Alexander II., betwixt the years 1214 and 1249, leaving a son also named William, who, in a charter of Alexander III., is styled *Willielmus de Blair, Dominus de eodem*, or of that Ilk. This William left two sons; 1st Bryce, and 2d David. He was succeeded by the eldest, Sir Bryce Blair of that Ilk, who, having given umbrage to the English, by joining our hero, was put to death in the treacherous manner described in our history. His brother David, who succeeded to the estates, had submitted to Edward, along with the aristocracy in 1296. Though the head of this family was considered as the chief of all the Blairs in Scotland, yet their title was often called in question by the Blairs of Balthycok, a family of great antiquity. The affair was at last brought before James VI., who decided, that “*the oldest man, for the time being, of either family should have the precedence.*” It is probable that John Blair, who acted as chaplain to Wallace, was a cadet of this family.

⁹² See [Appendix, C.](#)

⁹³ The family banner of Bek, according to Walter of Exeter, a cotemporary authority, was, “*Gules, with a fer de moulin of ermine.*” Though Henry de Hornecester was in the habit of carrying the banner of St Cuthbert, it was only on extraordinary occasions that this unwieldy ensign was displayed; and it is not likely, that, amid the bustle of so

unexpected an attack, they could spare time to get it ready, even if the occasion had been a proper one, it being chiefly reserved for high festivals. As it had been brought into Scotland the preceding year, it was very likely retained, along with that of St John of Beverly, to grace the processions of the proud and imperious churchman in his new diocese.

⁹⁴ It has been asserted that Henry de Percy was killed on this occasion. It is, however, a mistake; Percy, at the time of the rencounter, was either in the eastern part of Scotland, along with Robert de Clifford, or in attendance on his uncle the Earl of Warren, in Northumberland.

⁹⁵ See [Appendix, D.](#)

⁹⁶ Annals, vol. i. p. 299.

⁹⁷ Vol. ii. p. 248.

⁹⁸ It is hoped that the writer will not be considered as attempting to justify any thing like wanton cruelty on the part of Wallace and his compatriots. When he finds authors, Scottish as well as English, bewailing the fate of these unfortunate churchmen, he considers it but an act of justice to the accused, that the crime of the other party should be put upon record, in order that the reader may be able to ascertain the degree of sympathy to which the sufferers may be entitled.

⁹⁹ The following diary of the progress of Edward through Scotland in 1296, has been lately published by Mr N. H. Nicolas, in a volume of the Transactions of the Antiquarian Society of London. It is translated from a MS. in old Norman French; and the names of the places are sometimes a little obscure.

‘On the 28th March 1296, being Wednesday in Easter week, King Edward passed the Tweed, and lay in Scotland.

—

‘At Coldstream Priory.

‘Hatton or Haudene, 29th March, Thursday.

‘Friday, being Good-Friday, 30th March, Sack of Berwick.

‘Battle of Dunbar, April 24, 26, 27.

‘Edward marches from Berwick to Coldingham; 28th April to Dunbar.

‘Haddington, Wednesday, Even of Ascension, May 3.

‘Lauder, Sunday, May 6.

‘Rokisburgh, Monday, May 7. where Edward remained fourteen days.

‘Jedworth, May 23.

‘Wyel, Thursday, May 24.; Friday, 25., to Castleton; Sunday, 27., again to Wyel.

‘Jedworth, Monday, May 28.

‘Rokisburgh, Friday, June 1.

‘Lauder, Monday, June 4.

‘Newbattle, Tuesday, June 5.

‘Edinburgh, Wednesday, June 6. siege of Edinburgh.

‘Linlithgow, June 14.

‘Stirling, Thursday, June 14. At Outreard, June 20.

‘Perth, Thursday, June 21., where he remained three days.

‘Kincleven on the Tay, June 25.

‘Cluny, Tuesday, June 26. Abode there till July 1.

‘Entrecoit, Monday, July 2.

‘Forfar, Tuesday, July 3.
‘Fernwell, Friday, July 6.
‘Montrose, Saturday, July 7. Abode there till the 10th.
‘Kincardine in the Mearns, Wednesday, July 11.
‘Bervie, Thursday, July 12.
‘Dunn Castle, Friday, July 13.
‘Aberdeen, Saturday, July 14.
‘Kinkell, Friday, July 20.
‘Fyvie, Saturday, July 21.
‘Banff, Sunday, July 22.
‘Invercullen, Monday, 23.
‘In tents on the river Spey, district of Enzie, Tuesday, July 24.
‘Repenage, in the county of Moray, Wednesday, July 25.
‘Elgin, Thursday, July 26. Remained for two days.
‘Rothes, Sunday, July 29.
‘Innerkerack, Monday, July 30.
‘Kildrummie, Tuesday, July 31.
‘Kincardine in the Mearns.
‘Kildrummie, Tuesday.
‘Kincardine in the Mearns, Thursday, August 2.
‘Breachin, Saturday, August 4.
‘Aberbrothoc, Sunday, August 5.
‘Dundee, Monday, August 6.
‘Baligarnach, the Redcastle, Tuesday, August 7.
‘St Johnston’s, Wednesday August 8.

‘Abbey of Lindores, Thursday, August 9. Tarried Friday.
‘St Andrew’s, Saturday, August 11.
‘Markinch, Sunday. August 12.
‘Dunfermline, Monday, August 13.
‘Stirling, Tuesday, August 14. Tarried Wednesday 15th.
‘Linlithgow, Thursday, August 16.
‘Edinburgh, Friday, August 17. Tarried Saturday 18th.
‘Haddington, Sunday, August 19.
‘Pykelton, near Dunbar, Monday, August 20.
‘Coldingham, Tuesday, August 21.
‘Berwick, Wednesday, August 22.
‘Having spent twenty one weeks in his expedition.’

¹⁰⁰ This grant included Argyle as well as Lorn.

¹⁰¹ This person was the chief of the ancient and warlike clan Gregor, and one of the few of the West Highland chiefs who took a part in the struggle for the independence of the country. He remained steady in his loyalty to Robert Bruce, who he is said to have rescued from John of Lorn at Dalreoch. On this occasion he was mounted on a milk-white steed. He afterwards harboured the King in a large cave near Cragcrastan, which is to this day called “*Uagh na riogh*”, or the *King’s Cave*, from which he crossed over and met the Earl of Lennox at Lochlomond. Malcolm fought at the Battle of Bannockburn, and is said to have been the person who brought the relict of St Fillan’s arm from the country of that name, then part of his property, to King Robert’s chaplain, who very adroitly passed it off for a miracle, and thereby excited the hopes and stimulated the valour of the army. So sensible was Bruce of this piece of service, that he founded a priory in honour of the saint in

Strathfillan in 1314. Malcolm was much celebrated in the songs of the bards. He fought under King Edward Bruce in Ireland; and having received a wound at the battle of Dundalk, he retired home in consequence; and as he never entirely recovered, he was called ever after, “*Mórfhear bacach*” or the lame lord.

¹⁰² The rock on which the castle stood, was then known, as it is to this day, by the name of *Crag-an-àradh*, or the *rock of the ladder*. The Minstrel calls it *Crage unyn*. This deviation is extremely small, and more in the orthography than the orthoepy. The West-Highlanders pronounce *crag-an-àradh*, nearly as if spelled *craganari*. The difference may have easily occurred in the act of transcribing. The mode of crossing the ravine as above described, was in use till the present road was made by government, when a bridge was substituted for the less commodious expedient of a ladder.

¹⁰³ See [Appendix, E](#).

¹⁰⁴ Vol. ii. p. 297.

¹⁰⁵ Vol. ii p. 197.

¹⁰⁶ See [Appendix, F](#).

¹⁰⁷ The military genius of Bruce had not yet developed itself. Nothing can exhibit a greater contrast than the early and the later career of this illustrious individual. The indecision and inertness which mark his first appearance in public life, and the sublimity of heroism to which he afterwards attained, almost entitle him to be considered as the Cimon of Scottish history.

¹⁰⁸ Some curious and authentic information on this subject may be found in vol. i. p. 252–260 of Tytler’s History of Scotland,—a valuable work at present in the course of publication.

¹⁰⁹ “The vestiges of Tiber Castle, which has been a large building, are to be seen on the banks of the Nith. A small part of the wall next the river remains; fosses are visible; and some intrenchments, where it was most accessible. It is supposed that the barony of *Tiber* is named from Tiber, or Tiberius. There is a Roman encampment too. The English had a garrison in this castle, in the time of Sir William Wallace, who took it by surprise.”—*Stat. Acc. Parish of Penpont*, i. 209.

¹¹⁰ William de Warren was the son of John, Earl of Warren and Surrey (according to Dugdale), by Alice, daughter of Hugh le Brun, Count of March, uterine sister of Henry the Third. In 5th Edward I., he was sent into Wales on the King’s business. In 22d Edward I., he was employed in pressing ships in the southern and western counties, and in cutting down timber for the use of the Royal Navy, which was to rendezvous at Portsmouth. In 25th Edward I., he was taken prisoner by the Scots, on which occasion the King committed the care of his lands to his own attorney, William de Berquey. According to Dugdale, he had a claim, through his wife Mary, to the Isle of Man; but Edward having reserved the Island for his own use, it is uncertain what compensation, or, if any, was made. He appears to have allowed her, by the name of *Regina Manniæ, quondam uxor Domini William filii Warren*, for her support, the value of 2 hogsheads wine, 40 quarters wheat, and 40 of malt, amounting to 31*l.* 6*s.* 8*d.*, but on what account is not stated. William died during his father’s lifetime, leaving his wife *enceinte* of John, who succeeded his grandfather in his honours. See *Observations on the Wardrobe of Edward I.*, page lviii. lix.

¹¹¹ Wyntown, vol. ii, p. 97, and Fordun, *Lib. xi. cap. xxix.*

¹¹² This system of warfare, from the following effusion, appears also to have met the approbation of the immortal Bruce:—

*“Scotica sit guerra pedites, mons, mossica terra:
Silvæ pro muris sint, arcus, et hasta securis.
Per loca stricta greges munientur. Plana perignes
Sic inflammantur, ut ab hostibus evacuentur.
Insidiæ vigiles sint, noctu vociferantes.
Sic male turbati redient velut ^E ense fugati
Hostes pro certo, sic regæ docente Roberto.”*

Scottish version, ex edit. Hearn.

On fut suld be all Scottis weire,
Be hyll and mosse thaim self to weire.
Lat wod for wallis be bow and speire,
That innymeis do thaim na dreire.
In strait placis gar keip all stoire,
And byrnen the planen land thaim before:
Thanen sall thai pass away in haist,
Quhen that they find nathing bot waist.
With wyllis and wakenen of the nicht,
And mekill noyes maid on hycht.
Thanen sall they turnen with gret affrai,
As thai were chasit with several away.
This is the counsall and intent.
Of gud King Robert’s testament.

^E *Famis ense* MSS. Cupr. and Perth.—See Fordun,
vol. ii. p. 232. [Edin. Ed. 1775.]

¹¹³ The grettast Lordis of oure land
Til hym he gert thame be bowand:
Ild thai, wald thai, all gert he
Bowsum til hys Byddyng be:
And til hys Byddyng qwhay war noucht bown
He tuk, and put thame in Presown.

Wyntown, vol. ii. p. 96.

¹¹⁴ See [Appendix G](#).

¹¹⁵ Langtoft partly attributes the loss of this battle to the indolence of the English general. The return of so considerable a body of troops, on account of their not being supported by the rest of the army, would no doubt encourage the Scots, and perhaps suggested to their leader the admirable manœuvre which he afterwards put in practice.

¹¹⁶ Langtoft, vol. ii. p. 297.

¹¹⁷ This man, though a brave soldier, it seems, was no swimmer. Being advised by some of his companions to throw himself into the river, he replied, "It shall never be said of me, that I did voluntarily drown myself. God forbid, that such a dishonour should fall upon me, or any Englishman;" and, setting spurs to his horse, rushed into the thick of the battle, killing many of his opponents, and was fast making his way to the bridge, when he was called to by his nephew, who was wounded, to save him. "Get up and follow me," was the answer. "Alas! I am weak, and cannot," returned the other. Sir Marmaduke's squire dismounted, and placed him behind his uncle, who brought him off in safety to Stirling Castle, where they both found refuge.

Notwithstanding this unfortunate expedition, Sir Marmaduke returned the following year to the Scottish wars. He was also engaged 29th and 32d Edw. I. and 1st Edw. II., and died 16th Edw. II., leaving issue by Isabel, his wife, William, his son and heir. He himself succeeded Robert de Twenge, to Cleveland and other possessions in the North of Yorkshire.—*Dugdale*.

¹¹⁸ P. F. Tytler, Esq.

¹¹⁹ Among those who distinguished themselves in this memorable engagement, there is reason to believe that the burgesses of Stirling, and the tenants of the Abbey-Alands at Cambuskenneth, were particularly active; and it is

supposed, that, from their behaviour on this occasion, they were allowed to assume an allusion to the battle in the town's seal, which, after the date of the above transaction, displayed on the obverse a bridge, composed of seven arches; in the centre appeared a crucifix, on the south side of which stand three soldiers with bows, (the national weapon of the English), endeavouring to force the passage, and on the north side are the same number of soldiers, armed with spears, the characteristic weapon of the Scots. The legend is, "*Híc armis Bruti Scoti stant, híc crucie tuti.*"

[120](#) See also an interesting paper on this subject, in *The Edinburgh Literary Journal*, No. 70.

[121](#) Notes to "Wallace."

[122](#) In Dugdale's *Baronage*, vol. i. p. 426. In this memoir all the statements are taken from Surtees' *History of Durham*, excepting where other authorities are cited.

[123](#) *Royal Wills*, p. 18, and *Testamenta Vetusta*, p. 8.

[124](#) *Dugdale's Baronage*, vol. i, p. 426.

[125](#) *Le Neve's Fasti Ecclesiæ Anglicanæ*, p. 353.

[126](#) *Rot. Parl.* vol. i. p. 224.

[127](#) Wyntown states the same thing; and the words he puts in the mouth of the subtile ecclesiastic are highly complimentary to the spirit and military talents of Bruce, against the consequences of which he effectually succeeded in awakening the apprehensions of Edward.—*Vide*, vol. ii. p. 45–46.

[128](#) Robert de Gledstones, who was elected Bishop of Durham in 1333, but was set aside by the Pope, and died soon

afterwards. His labours are preserved in the Cottonian MS. Titus, A. ii.

[129](#) “Habuit de familia sua xxvj. vexillarios.” *Bannerets* were most probably meant.

[130](#) Rot. Parl. vol. i. p. 102, *et seq.*

[131](#) This passage probably meant, that among the Bishop’s followers there were thirty-nine bannerets.

[132](#) Dugdale’s Baronage, vol. i. p. 426.

[133](#) During one of Edward’s progresses to Scotland, a palfrey belonging to the royal train threw and killed its rider; and Anthony seized the palfrey as a deodand: “dedeins sa fraunchise roiale.”

[134](#) He gave 40s. for as many fresh herrings, “Aliis magnatibus tune in Parlamento ibi consistentibus pro nimiâ caristiâ emere non curantibus.” *Grayst.* c. 14. On another occasion, hearing one say, “this cloth is so dear, that even Bishop Anthony would not venture to pay for it;” he immediately ordered it to be bought and cut up into horse-cloths.—*Ibid.*

[135](#) “Castissimè vixit, vix mulierum faciem fixis oculis aspiciens; unde in translatione S. Willelmi Eboracensis cum alii Episcopi ossa ejus timerent tangere, remordente eos conscientiâ de virginitate amissâ, iste audacter manus imposuit; et quod negotium poposcit reverenter egit.”—*Ibid.*

[136](#) “Quietis impatiens vix ultra unum somnum in lecto expectans, dixit illum non esse hominem qui in lecto de latere in latus se verteret.”—*Ibid.*

[137](#) “In nullo loco mansurus, continuè circuibat de manerio in manerium, de austro in boream; et equorum, canum et

avium sectator.”—*Ibid.* And here one cannot avoid being reminded of the satirical lines of Piers Plowman:

“And piked a bouthe on palfrays: fro place to maners
Have an hepe of houndes at his ers: as he a Lord were.”

Bishop-Middleham, then a fortress of the first class, appears, from the date of several charters, to have been Anthony Bek’s chief residence within the county of Durham. The reasons which led to this preference are obvious. Defended by a morass on two sides, and by broken ground to the north, the fortress presented an almost impregnable stronghold during the wars of the Border, whilst Auckland lay bare and defenceless, on the direct route of Scottish invasion. It is no wonder that, in after times, Middleham was deserted for the green glades of Auckland.

The following lines are extracted from an inedited poem on the “Superstitions of the North.”

“There Valour bowed before the rood and book,
And kneeling Knighthood served a Prelate Lord;
Yet little deigned he on such train to look,
Or glance of ruth or pity to afford.
There time has heard the peal rung out by night,
Has seen from every tower the cressets stream:
When the red bale-fire on yon western height,
Had roused the Warder from his fitful dream;
Has seen old Durham’s lion-banner float
O’er the proud bulwark, that, with giant pride,
And feet deep plunged amidst the circling moat,
The efforts of the roving Scot defied.

“Long rolling years have swept those scenes away,
And peace is on the mountain and the fell;
And rosy dawn, and closing twilight gray,
But hears the distant sheep-walk’s tinkling bell.
And years have fled since last the gallant deer
Sprung from yon covert at the thrilling horn:
Yet still, when Autumn shakes the forest sear,
Black Hugo’s voice upon the blast is borne.
Woe to the wight who shall his ire provoke,
When the stern huntsman stalks his nightly round,
By blasted ash, or lightning-shivered oak,
And cheers with surly voice his spectre hound.”

Of this black Hugh, take the following legendary account:—“Sir Anthon Bek, Busshop of Dureme in the tyme of King Eduarde, the son of King Henry, was the maist prowde and masterfull Busshop in all England; and it was com’only said that he was the prowdest Lord in Christienty. It chanced that, emong other lewd persons, this Sir Anthon entertained at his court one Hugh de Pountchardon, that for his evill deeds and manifold robberies had been driven out of the Inglische Court, and had come from the southe to seek a little bread, and to live by stalyng. And to this Hughe, whom also he imployed to good purpose in the warr of Scotland, the Busshop gave the

lande of Thikley, since of him caulied Thikley-Pountchardon, and also made him his chief huntsman. And after, this blake Hugh dyed afore the Busshop: and efter that the Busshop chasid the wild hart in Galtres forest, and sodainly ther met with him Hugh de Pontchardon that was afore deid, on a wythe horse; and the said Hugh loked earnestly on the Busshop, and the Busshop said unto him, ‘Hughe, what makethe thee here?’ and he spake never word, but lifte up his cloke, and then he shewed Sir Anton his ribbes set with bones, and nothing more; and none other of the varlets saw him but the Busshop only; and the said Hughe went his way, and Sir Anton toke corage, and cheered the dogges; and shortly efter he was made Patriarque of Hierusalem, and he sawe nothing no moe; and this Hughe is him that the silly people in Galtres doe call *Le gros Venour*, and he was seen twice efter that by simple folk, afore that the forest was felled in the tyme of Henry, father of King Henry that now ys.”

[138](#) “Sed ipso mortuo Radulphus filius Willelmi Dominus de Graystoke patronatum præfatæ Ecclesiæ per litem, obtinuit; et presentato per ipsum per Episcopum admisso et instituto, capella indotota remansit.”—*Grayst.* c. 22. The patronage still remains with the heir of Greystoke.

[139](#) Castrum de Somerton curiosissimè ædificavit.—*Grayst.* c. 22.

[140](#) Ibid.

[141](#) “Ante illum enim ob reverentiam corporis S. Cuthberti non est permissum corpus mortuum ingredi ecclesiam Dunelmensem.” Anthony Bek was, therefore, the first who dared to bring

“A slovenly, unhandsome corse,
Betwixt the wind and his nobility.”

[142](#) If, however, the funeral of the patriarch Bishop was conducted with the same solemnities as that of his successor Cardinal Langley, the breaking an entrance through the wall was a matter of necessity rather than superstition, for Langley's hearse was drawn into the nave of the cathedral by four stately black horses, which, with all their housings of velvet, become the official perquisite of the sacrist.

[143](#) John Hay Allan, Esq.

[144](#) MacPhadian's.

[145](#) In this instance, it would rather seem that Henry has merely preserved the name as he found it latinized by Blair.

[146](#) Book vii. l. 660.

[147](#) Book vii. l. 674.

[148](#) King's highway.

[149](#) N. H. Nicolas, Esq.

[150](#) Vol. i. p. 218.

[151](#) See some Remarks on the Titles and Surname of this Earl in the Archæologia, vol. xxi. p. 195, 196.

[152](#) P. 327.

[153](#) *Vide* Siege of Carlaverock, edited by N. H. Nicolas, Esq.

[154](#) FOEDERA, N. E. Vol. II. p. 203.

The following translation may be acceptable to some readers.

One gold ring, and a sapphire prepared by the hands of St Dunstan.

One silver box, gilt, for containing a ring, to be worne round the neck of a man.

A large ruby, not set in gold, which was found on Sir Piers de Gaveston when he was taken; value one thousand livres.

Three large rubies, set in rings,—an emerald,—a diamond of great value (in a silver box enamelled), which was found on the said Piers when he was taken.

Two seals, one large and one small; and one little seal, (*une clief pendaunte*) —a key attached to it, one crooked Sterling (i. e. silver penny), and a chalcedony, which were found in the purse when he was taken.

In a coffer, iron-bound, one silver mirror, enamelled; one comb; one tooth-pick, which had been given to the King by the Countess de Bar at Ghent.

One *coronal* of gold, and sundry precious stones, valued at one hundred marcs.

One *chapelet* of silver, ornamented with sundry precious stones, valued at twelve sols (*doze soutz*).

In another coffer, a large silver pot, and three utensils (*peiz*) for heating water, weighing six livres fifteen sols and ten deniers.

Three silver dishes for spiceries, and weighing four livres.

Two silver fruit-dishes, with the arms of the King of England, weighing seventy-eight sols four deniers.

One purse, of cloth of gold, containing two Jerusalem stones.

One silver bit, and four gilt buttons, and two *lions* for each, of leather.

One old seal cut, and a stone of chalcedony.

Three silver forks for eating pears.

One white girdle of silver lace.

One *chapelet de Paris*, value six sols eight deniers.

In a bag, one burnished bacinnet and vizor (*od surcils*).

In another bag, one pair trappings with the arms of said Piers.

Two surcoats of velvet for covering armour.

One bridle for palfrey, with the King's arms.

Four shirts and three kerchiefs *de Gascoigne* embroidered.

An old banner with the arms of said Piers.

Forty-one stallions and hunters, and one palfrey.

Nine sumpter-horses. Two cart-horses.

Two carts and all the harness.

[155](#) Siege of Carlaverock, by Walter of Exeter.

[156](#) Vide, Siege of Carlaverock, edited by N. H. Nicolas, Esq.

Transcribers' Notes

Variations in punctuation, spelling, and hyphenation have been retained except as noted below.

Simple typographical errors were corrected; occasional unbalanced quotation marks have been retained except as noted below.

Ambiguous hyphens at the ends of lines have been retained.

Black Letter text is represented here as **boldface**.

Primary footnotes have been placed into a single ascending sequence and are identified by number. Footnotes to footnotes have been placed into a single ascending sequence and are identified by letter.

Text uses “Bagamont” and “Bagimont”, “control” and “controul”, “Dunbarton” and “Dumbarton”; “Riccardtoun”, “Richardtown”, and “Riccardtown”.

Page [14](#): Missing closing quotation mark added after “overwhelmed the lances”; it may belong further down, after “lanceas funderent”.

Page [56](#): may have two footnote 3’s; they’ve been combined here.

Page [59](#): “vallies” was printed that way.

Page [65](#): Missing closing quotation mark added after “captivity of William.”

Page [76](#): “16th March 1285–6” was printed that way.

Footnote [38](#), referenced on page [77](#): missing closing quotation mark has not been remedied.

Page [80](#): Possibly missing opening double-quotation mark in paragraph beginning “The whole assembly stood motionless” not remedied.

Page [111](#): Opening double-quotation mark added at beginning of poem.

Footnote [71](#), referenced on page [139](#): Missing opening quotation mark or extraneous closing quotation mark; not remedied.

Page [182](#): Extraneous opening quotation mark removed just before “Have you forgot”.

Page [209](#): Closing single quotation mark added at the end of the diary entries.

Page [213](#): Missing closing quotation mark added after “Uagh na riogh”.

Footnotes [135](#) and [137](#), referenced on page [266](#): Missing opening quotation mark added at the beginning of each.

Footnotes [138](#) and [141](#), referenced on page [268](#): Missing opening quotation mark added at the beginning.

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